WARRANTY ATLAS · Alaska (AK)

Law last amended: 2024 (eff. 2024-10-27) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: AS 45.25.210; AS 45.25.200 (claims, audits); AS 45.25.020, 45.25.190 (forum)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Independent/retail time guide	§ 45.25.210(c)(2)
Mfr-backed service contract	**Not reached**	-	§ 45.25.990(23)(A), (C)
CPO warranty	**Not addressed**	-	§ 45.25.990(23)(A)
Independent service contract	**Not reached**	-	§ 45.25.990(23)(C)

Hourly rate: Unless otherwise agreed, the rate may not be less than the rate the dealer charges retail customers for similar nonwarranty service work. The statute sets no labor-rate sample or formula (the 100-RO/90-day method in (d) covers parts markup only). The manufacturer may disapprove only if the rate is materially miscalculated or unreasonable compared with similarly situated AK dealers. ≤1 rate increase per calendar year.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Written or electronic notice stating the reasons for disapproval. A claim for a condition discovered and properly repaired during a separate repair may not be denied if the dealer documents the need.	AS 45.25.200(c); see (a), (b), (d)
Payment	30 days after approval. Dealer filing deadline: within 90 days after the dealer completes the work. The dealer may correct and resubmit a disapproved claim within 30 days after receiving the disapproval notice.	
Chargebacks	12 months; fraud: If the manufacturer reasonably suspects fraud, it may audit for fraud…. The audit must be initiated within 1 year after the claim was paid, and there may be no more than one warranty audit per calendar year. The statute limits audits and says nothing separately about chargebacks.	AS 45.25.200(e); see (g)
Rate resubmission	not more than one rate increase in a calendar year. Sample: No statutory labor-rate sample. Excluded: Discounted / promotional, Routine maintenance, Tires, Prep / reconditioning, Insurance-paid, Other (see text).	AS 45.25.210(c)(1); see (d), (f), (i), (j)
Mfr response	30 days; no response = approved: Yes. Challenge: The rate is materially miscalculated, or unreasonable compared to other similarly situated new motor vehicle dealers in Alaska. Forum: Alaska courts, with venue in the dealer's judicial district (AS 45.25….	AS 45.25.210(g); see (h)
Penalties	No express damages or fee-shifting provision for AS 45.25.010-.310. Disputes are heard in Alaska courts (45.25.020), with optional arbitration (45.25.190). The UTPA cross-reference, AS 45.50.471(b)(43), reaches only AS 45.25.400-.590 (dealer practices). None found. Ch. 45.25 has no manufacturer-licensing sanction.	AS 45.25.020, 45.25.190; AS 45.50.471(b)(43)
Audit procedures	Audit climate score 10/100 (Low restrictiveness; chargeback limits 7/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: No more than one warranty audit of paid claims pe…; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(AS 45.25.200(c); see (a), (b), (d)): "If a manufacturer does not disapprove a claim as required by this subsection, the claim is considered approved. The manufacturer shall pay the claim within 30 days after the approval of the claim."*
Chargebacks *(AS 45.25.200(e); see (g)): "A manufacturer may not initiate or conduct an audit to determine the validity of paid claims for new motor vehicle dealer warranty work unless the manufacturer initiates the audit within one year after the payment of the claim."*
Rate *(AS 45.25.210(c)(1); see (d), (f), (i), (j)): "Unless otherwise agreed to by the manufacturer and the new motor vehicle dealer, the schedule of compensation may not contain (1) rates less than the rates that the new motor vehicle dealer charges retail customers for similar nonwarranty service work"*
Factory time *(§ 45.25.210(c)(2)): "Unless otherwise agreed to by the manufacturer and the new motor vehicle dealer, the schedule of compensation may not contain ... (2) time allowances less than time allowances provided in independent labor time guides."*

Notes

Both floors in (c), the retail rate and the independent-labor-time-guide time, apply only 'unless otherwise agreed'. Manufacturers may not recover warranty costs through surcharges or fees (45.25.300(8)). The chapter's 'motor vehicle' excludes motor homes, recreational vehicles (incl. ATVs and snow machines) and motorcycles (45.25.990(12)). Current akleg print shows only the heading for 45.25.320 (repealed 2018). A separate incentive-audit window is in 45.25.200(f).

Source: official · https://www.akleg.gov/basis/statutes.asp?media=print&secStart=45.25.200&secEnd=45.25.320 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Alabama (AL)

Law last amended: 2022 (eff. 2022-06-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Ala. Code § 8-20-7; Ala. Code § 8-20-7(e) (claims, audit/chargeback); Ala. Code §§ 8-20-11, 8-20-12 (remedies, limitations)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 8-20-7(c); see (b) (warrantor supplies 'the time allowance')
Mfr-backed service contract	**Not addressed**	-	§ 8-20-7(a)(6)
CPO warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 8-20-7(a)(6)
Independent service contract	**Not addressed**	-	§ 8-20-7(a)(6)

Hourly rate: Floor = dealer's retail rate for like nonwarranty service (if not unreasonable); at dealer's election, set from 100 sequential qualified-repair ROs or all ROs in 90 consecutive days (whichever fewer), ≤180 days old: total labor charges ÷ hours; effective 45 days after receipt unless rebutted; ≤1x per 12 months.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. The disapproval must be specific and in writing. Preauthorized claims may not be disapproved. A claim may not be unreasonably denied only for an incidental clerical or administrative error; a denial must rest on a material defect and deviation from the manufa…	§ 8-20-7(e)
Payment	30 days after approval. Dealer filing deadline: Silent. After neglect, oversight or mistake, the dealer may file an amended claim, or a claim it missed filing within the warrantor's tim…	
Chargebacks	12 months; fraud: No longer period for fraud. The statute gives the audit and chargebac…. The warrantor may audit and charge back only fraudulent claims, for up to 12 months from the date the claim was paid. The statute grants no other chargeback ground. § 8-20-4(3)u has a parallel rule for incentive claims.	§ 8-20-7(e)
Rate resubmission	not more frequently than once per 12-month period. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Internal, Routine maintenance, Accessories, Tires, Alignments, Prep / reconditioning, State inspections, Government, Collision / body / glass, Insurance-paid, Goodwill, Other (see text).	§ 8-20-7(f)(3); see (f)(2) (sample), (f)(4) (frequency), (f…
Mfr response	45 days; no response = approved: Yes. Challenge: Within 45 days the warrantor must reasonably substantiate that the submission is materially incomplete, materially inaccurate, or materially unreasonable. One relevant factor is the prevailing wage rates paid by similarly situated dealers in the state ((f)(8)… Forum: Court action by the dealer within 120 days of the written rejection…..	§ 8-20-7(f)(6)a.; see (f)(6)b., (f)(7), (f)(8)
Penalties	Civil action to enjoin violations and recover damages plus costs, including a reasonable attorney's fee (§ 8-20-11). Four-year limitations period, with accrual on discovery (§ 8-20-12). Rate disputes go to court under § 8-20-7(f)(7). None in ch. 20. The chapter has no licensing-agency sanction provision.	Ala. Code §§ 8-20-11, 8-20-12, 8-20-7(f)(7)
Audit procedures	Audit climate score 31/100 (Elevated restrictiveness; chargeback limits 31/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 8-20-7(e)): "any claim not specifically disapproved in writing within 30 days after the receipt shall be construed to be approved and payment must follow within 30 days."*
Chargebacks *(§ 8-20-7(e)): "the warrantor retains the right to audit such claims and to charge back the dealer for any fraudulent claims for a period not to exceed 12 months from the date the claim was paid."*
Rate *(§ 8-20-7(f)(3); see (f)(2) (sample), (f)(4) (frequency), (f…): "The dealer shall calculate its labor rate by determining the total charges for labor from the qualified repairs submitted and dividing that amount by the total number of hours that produced the charges."*
Factory time *(§ 8-20-7(c); see (b) (warrantor supplies 'the time allowanc…): "Time allowances for the diagnosis and performance of warranty work and service shall be reasonable and adequate for the work to be performed."*

Notes

The retail-rate floor in (c) does not apply to motor-home residential components or to 'parts related to motorcycle repairs'. 'Warranty work' covers new-vehicle warranty, recall and CPO warranty ((a)(6)). § 8-20-7.1 (recall/stop-sale claims) applies the § 8-20-7 claim rules but cites 'subsection (d)'; the claim rules are actually in (e). Both the chargeback window and the audit right are limited to FRAUDULENT claims.

Source: official · https://alison.legislature.state.al.us/code-of-alabama?section=8-20-7 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Arkansas (AR)

Law last amended: 2023 (eff. 2023-08-01) · Next scheduled change: none found · Last verified: 2026-10-23 · Built 2026-11-02

Cites: Ark. Code Ann. § 23-112-313; Ark. Code Ann. § 23-112-310(d) (rate floor, rate-change requests, claim payment); Ark. Code Ann. §§ 23-112-105, 23-112-308, 23-112-309 (remedies/sanctions)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 23-112-313(c)(1)
Mfr-backed service contract	**Not addressed**	-	§ 23-112-313(a)
CPO warranty	**Not addressed**	-	§ 23-112-313(a)
Independent service contract	**Not addressed**	-	§ 23-112-313(a)

Hourly rate: Not less than the dealer's retail labor rate per hour, provided it is reasonable vs same line-make dealers in the relevant/competitive market area. Rate = total labor sales ÷ labor hours from qualified customer-pay ROs (excluding routine maintenance), from the lesser of 100 sequential ROs (≤180 days old) or a 90-day look-back. Change requests are deemed approved if not acted on within 45 days.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Written notice within the 30-day period stating the specific grounds (§ 313(e)(2)(A)(i); § 310(d)(2)(B)). A claim may not be disapproved for a clerical error that does not make the claim amount incorrect, including errors from the manufacturer's prior-approva…	§ 23-112-313(e)(2)(B); see (e)(1)-(3) and § 23-112-310(d)(2…
Payment	30 days after approval. Dealer filing deadline: Silent. The dealer may correct and resubmit a disapproved claim within 30 days of receiving the disapproval.	
Chargebacks	12 months; fraud: A fraudulent claim may be charged back within 2 years of the claim da…. The manufacturer or franchiser may audit warranty and recall claims within one year from the date the claim was paid or credit issued; incentive and reimbursement programs are auditable for 12 months after the date of the transactions. Only false or unsubstan…	§ 23-112-313(e)(4)(A)(ii)-(iii); see (e)(4)(C)-(D)
Rate resubmission	Silent. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Routine maintenance, Tires, Other (see text).	§ 23-112-313(c)(4); see (c)(6), (f)
Mfr response	45 days; no response = approved: Yes. Challenge: The retail-rate floor applies only 'provided the rate is reasonable compared to other same line-make dealers in the dealer's relevant market area or the dealer's competitive market area' (§ 310(d)(1)(A)). § 313(c)(3) adds 'provided the rate is reasonable'. Forum: Not specified for rate disputes. Commission hearings (§ 23-112-501 et….	§ 23-112-310(d)(1)(D)(ii); see (d)(1)(A), (D)(i), (D)(iii)
Penalties	A licensee suffering pecuniary loss from another licensee's willful failure to comply may recover reasonable damages and attorney's fees (§ 23-112-105(a)). A dealer that prevails against a manufacturer also has an action for attorney's fees (§ 23-112-105(b)). The Commission may deny, suspend or revoke a license on satisfactory proof th…	Ark. Code Ann. §§ 23-112-105, 23-112-308, 23-112-309
Audit procedures	Audit climate score 34/100 (Elevated restrictiveness; chargeback limits 34/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 23-112-313(e)(2)(B); see (e)(1)-(3) and § 23-112-310(d)(2…): "Any claims not specifically disapproved in writing within thirty (30) days from their submission shall be deemed approved, and payment shall follow within thirty (30) days."*

Chargebacks *(§ 23-112-313(e)(4)(A)(ii)-(iii); see (e)(4)(C)-(D)): "Audit the claims within a one-year period from the date the claim was paid or credit issued by the manufacturer or franchiser; and (iii) Charge back any false or unsubstantiated claims."*

Rate *(§ 23-112-313(c)(4); see (c)(6), (f)): "The motor vehicle dealer shall calculate the labor rate by dividing the amount of the motor vehicle dealer's total labor sales from any qualified repair orders by the total labor hours that generated the labor charges"*

Factory time *(§ 23-112-313(c)(1)): "Time allowances for the diagnosis and performance of warranty or recall campaign work and service shall be reasonable and adequate for the work to be performed."*

Notes

Current text comes from Justia's 2025 code (mirror). Every quote was matched to an official enrolled act or edition: Act 756/2009 § 12 (rewrote § 313(e)), Act 1077/2021 §§ 4, 6 (§ 310(d)(1), § 313(c)), Act 515/2023, and the 2011 Official Edition PDF on labor.arkansas.gov (§§ 23-112-105, -308, -310(d)(2)). § 313(e)(1) literally reads claims 'shall be either approved or disapproved within thirty (30) days following their approval or disapproval', a drafting glitch; the operative clocks are (e)(2)(B) and § 310(d)(2). § 23-112-308 was amended by Act 816 of 2025 (eff. 8/5/2025) only in (a)(25) (temporary tags, dealer extra plates); the warranty ground in (a)(18) is unchanged. Motorcycles/ATVs have a separate floor (§ 310(d)(1)(C)). Motor-home/RV warrantor rules are in subchapter 10 (e.g., § 23-112-1016). No frequency limit on rate requests was found.

Source: enrolled_act · https://arkleg.state.ar.us/Acts/FTPDocument?path=%2FACTS%2F2021R%2FPublic%2F&file=1077.pdf&ddBienniumSession=2021%2F202… · Confidence: medium. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Arizona (AZ)

Law last amended: 2024 (eff. 2024-09-14) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: A.R.S. § 28-4451(C)-(F), (K); A.R.S. § 28-4451(G)-(I), (L) (audits, claims); A.R.S. §§ 28-4493, 28-4497 (license sanctions, injunction)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 28-4451(D)
Mfr-backed service contract	**Not addressed**	-	§ 28-4451(C)
CPO warranty	**Not addressed**	-	§ 28-4451(C)
Independent service contract	**Not addressed**	-	§ 28-4451(C)

Hourly rate: Must be 'fair and reasonable'. At the dealer's option, the dealer declares a retail labor rate from the lesser of 100 sequential nonwarranty customer-paid ROs or 90 consecutive days of customer-paid ROs for warranty-like repairs (≤180 days old): total labor sales ÷ labor hours. The rate is presumed fair and takes effect in 30 days unless rebutted vs similarly situated same line-make AZ dealers; dealer can protest to the director. ≤1 declaration per 12 months.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Disapproval must be in writing or by electronic transmission. A properly submitted claim may not be denied solely for an incidental failure to meet a claim-processing requirement that does not question the claim's legitimacy.	§ 28-4451(I); see (L)
Payment	30 days after approval. Dealer filing deadline: Silent. If a claim is rejected for an incidental processing requirement, the dealer may correct or complete and resubmit it within 60 day…	
Chargebacks	12 months; fraud: The 12-month limit does not apply if the manufacturer reasonably susp…. Audits must be 'reasonable and periodic'. A chargeback is allowed only after the dealer has had notice and a chance to use any available manufacturer mediation, and after all legal appeals are exhausted if mediation fails.	§ 28-4451(G)
Rate resubmission	not more than once in any twelve-month period. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Engine / transmission assembly, Routine maintenance, Prep / reconditioning, Other (see text).	§ 28-4451(E); see (F), (K)
Mfr response	30 days; no response = approved: Yes. Challenge: Declared rates are presumed fair and reasonable. To rebut, the manufacturer must reasonably substantiate that the rate is inaccurate or unreasonable compared to other similarly situated same line-make new motor vehicle dealers in Arizona. Forum: Dealer protest to the ADOT director within 30 days after receiving th….	§ 28-4451(E); see (K), (O)-(T)
Penalties	Rate disputes go through the director's protest and ALJ process, with judicial review (§ 28-4451(E), (O)-(T)). No express private damages provision was found in §§ 28-4451 to 28-4464. The ADOT director may suspend or cancel the license of a licensee that 'has violated or is violating a law of this state' (§ 28-4493(A)(3)). Injunction a…	A.R.S. §§ 28-4451(O)-(T), 28-4493(A)(3), 28-4497
Audit procedures	Audit climate score 34/100 (Elevated restrictiveness; chargeback limits 34/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 28-4451(I); see (L)): "Any claim not disapproved in writing or by means of electronic transmission within thirty days after receipt is deemed approved, and payment must be made within thirty days after approval."*

Chargebacks *(§ 28-4451(G)): "Audits shall only be for the twelve month period immediately following the date of the payment. This limitation does not apply if the manufacturer, factory branch, distributor or distributor branch reasonably suspects fraud."*

Rate *(§ 28-4451(E); see (F), (K)): "The new motor vehicle dealer's retail labor rate shall be determined by dividing the amount of the dealer's total labor sales contained in the submitted repair orders by the total number of labor hours that generated those sales."*

Factory time *(§ 28-4451(D)): "Time allowances for the diagnosis and performance of warranty work and service shall be reasonable and adequate for the work or services to be performed."*

Notes

(K) works in both directions: the manufacturer may lower the reimbursement rate going forward if the dealer's retail rate falls. Time allowances must be 'reasonable and adequate' ((D)). No-cost parts are paid at the retail parts rate ((J)). Stop-sale compensation is 1.5%/month and recall claims use the same 30/30 deemed-approval rule ((U)-(Y)). § 28-4464: the article does not apply to manufacturers that have never used franchised dealers. The 2024 HB 2410 amendments did not change the labor-rate text.

Source: official · https://www.azleg.gov/ars/28/04451.htm · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · California (CA)

Law last amended: 2019 (eff. 2020-01-01) · Next scheduled change: none found · Last verified: 2026-10-23 · Built 2026-11-02

Cites: Cal. Veh. Code § 3065; Cal. Veh. Code § 3065.2 (retail labor/parts rate); Cal. Veh. Code §§ 3065.4, 11705(a)(7), 11726

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 3065(a)(1)
Mfr-backed service contract	**Not addressed**	-	§ 3065.25(b)
CPO warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 3065.25(b)
Independent service contract	**Not addressed**	-	§ 3065.25(b)

Hourly rate: Retail labor rate from the fewer of any 100 consecutive qualified ROs or all ROs in a 90-consecutive-day period (≤180 days old): total labor charges ÷ hours. Takes effect on the 30th day unless the franchisor contests it as materially inaccurate or fraudulent. ≤1x per calendar year. A voluntary signed agreement for other rates is allowed if it 'adequately and fairly compensates'.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Written notice stating specific grounds. Disapproval is allowed only if the claim is false or fraudulent, the repairs were not properly made, the repairs were inappropriate because of the franchisee's improper act or omission, or there was material noncomplia…	§ 3065(d)(1); see (d)(2)-(6)
Payment	30 days after approval. Dealer filing deadline: Silent. A reasonable appeal process giving at least 30 days after the written disapproval to rebut, and at least 30 days to cure document…	
Chargebacks	9 months; fraud: For a false claim submitted with intent to defraud, a longer audit an…. Audits on a reasonable basis, never punitive, retaliatory or unfairly discriminatory, and no more than one random audit per 9 months (any additional audit needs written disclosure of its basis). Chargeback grounds are the same four as the denial grounds. No e…	§ 3065(e)(1); see (e)(2)-(6), (f)
Rate resubmission	no more frequently than once per calendar year. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Routine maintenance, Prep / reconditioning, Accessories, Collision / body / glass, Insurance-paid, State inspections, Goodwill, Government, Service-contract paid, Tires, Alignments, Internal, Other (see text).	§ 3065.2(a)(2); see (a)(1), (b), (c), (j)
Mfr response	30 days; no response = approved: Yes. Challenge: Material accuracy only. The notice must be limited to an assertion that the rate is 'materially inaccurate or fraudulent', and the franchisor 'shall not deny' the submission. Forum: New Motor Vehicle Board protest (§ 3065.4), with the burden on the fr….	§ 3065.2(d)(1); see (d)(3)-(5), (e); § 3065.4(a)
Penalties	Board protests (§§ 3065(d)(6), (e)(6), 3065.4). Superior-court action to enforce a Board rate determination, with injunctive relief and actual reasonable expenses (§ 3065.4(c)). Damages, reasonable attorney fees and injunctive relief for pecuniary loss from a licensee's willful failure to comply with Art. 1, Ch. 4, Div. 5 or a Board de…	Cal. Veh. Code §§ 3065.4, 11705(a)(7), 11726
Audit procedures	Audit climate score 72/100 (Very high restrictiveness; chargeback limits 59/75 + process and oversight 13/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: yes; frequency cap: No more than one random audit per 9-month period….; written reasons: yes; response period: 30 days; internal appeal: yes; held pending appeal: yes; extrapolation: restricted; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 3065(d)(1); see (d)(2)-(6)): "within 30 days from receipt by the franchisor shall be deemed approved on the 30th day. All claims made by franchisees under this section and Section 3064 for labor and parts shall be paid within 30 days after approval."*

Chargebacks *(§ 3065(e)(1); see (e)(2)-(6), (f)): "Audits of franchisee warranty records may be conducted by the franchisor on a reasonable basis for a period of nine months after a claim is paid or credit issued."*

Rate *(§ 3065.2(a)(2); see (a)(1), (b), (c), (j)): "The franchisee shall calculate its retail labor rate by determining the total charges for labor from the qualified repair orders submitted and dividing that amount by the total number of hours that generated those charges."*

Factory time *(§ 3065(a)(1)): "The franchisor shall use time allowances for the diagnosis and performance of work and service that are reasonable and adequate for a qualified technician to perform the work or services."*

Notes

'Warranty' includes new-vehicle warranty, CPO warranty, TSB and customer-service-campaign repairs during the warranty period, and federal recalls (§ 3065.25(b)). Rates other than retail are allowed only by a voluntary signed agreement that adequately and fairly compensates (§ 3065(b)). Time-allowance change requests may not be unreasonably denied (§ 3065(a)(1)). Retaliation for seeking retail rates is barred (§ 3065.2(i)). Failure to approve or pay on time for reasons beyond the franchisor's reasonable control is not a violation (§ 3065(d)(5)). Franchisors must file warranty reimbursement schedules with the New Motor Vehicle Board within 30 days after license issuance or renewal, and any change on or before its effective date (13 CCR § 586(b)-(c)).

Source: official · https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=VEH&sectionNum=3065 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Colorado (CO)

Law last amended: 2023 (eff. 2023-08-07) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: C.R.S. § 44-20-141.5; C.R.S. § 44-20-135 (claim filing, audits, chargebacks); C.R.S. §§ 44-20-121(1)(b), 44-20-128 (sanctions)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 44-20-141.5(7)(a)
Mfr-backed service contract	**Not addressed**	-	§ 44-20-141.5(1)(g)
CPO warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 44-20-141.5(1)(g)
Independent service contract	**Not addressed**	-	§ 44-20-141.5(1)(g)

Hourly rate: At the dealer's request, the retail labor rate: the dealer's choice of 100 sequential nonwarranty ROs or all nonwarranty ROs over 90 consecutive days (from the last 90 days); nonwarranty labor sales ÷ hours. Effective 45 days after submission unless contested as materially inaccurate; court or executive-director determination, retroactive. ≤1 increase request per year.

Audit fields

Field	Rule	Pinpoint
Claim decision	Silent; late claim deemed approved: no rule in statute.	§ 44-20-135(2). No approval or payment clock was found in p…
Payment	Silent. Dealer filing deadline: 9 months after making the sale or providing the service.	
Chargebacks	9 months; fraud: Subsection (1) does not limit any fraud action brought in court ((3)).. The window runs from the date the claim was SUBMITTED, not paid. No documentation demand or audit more than 15 months after submission, and no chargeback, reimbursement or credit arising from an audit or document request made more than 9 months after submissi…	§ 44-20-135(1)(a); see (1)(b), (3), (4)
Rate resubmission	increase requests not more often than once annually (labor and parts each). Sample: 100 ROs or 90 days (dealer chooses); ROs <= 90 days old. Excluded: Discounted / promotional, Routine maintenance, Tires, Internal, Prep / reconditioning, Goodwill, State inspections, Fleet, Government, Insurance-paid, Other (see text).	§ 44-20-141.5(3)(a); see (3)(c)-(d), (4)(a), (4)(c), (5)(b)
Mfr response	45 days; no response = approved: Yes. Challenge: Material inaccuracy only. SB 23-078 removed the 'substantially different from similarly situated dealers' ground. Forum: The dealer files a complaint in a court of competent jurisdiction or….	§ 44-20-141.5(6)(a)(I); see (6)(b)-(d), (3)(c)
Penalties	In a rate proceeding the court awards the prevailing party reasonable attorney fees and costs, and a prevailing dealer recovers the full unpaid reimbursement as damages (§ 44-20-141.5(6)(d)). Chargebacks that violate § 44-20-135(1) are void on the executive director's determination (§ 44-20-135(4)). A manufacturer's or distributor's li…	C.R.S. §§ 44-20-141.5(6)(d), 44-20-135(4), 44-20-121(1)(b), 44-20-128…
Audit procedures	Audit climate score 41/100 (High restrictiveness; chargeback limits 37/75 + process and oversight 4/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 44-20-135(2). No approval or payment clock was found in p…): "The motor vehicle dealer shall have nine months after making a sale or providing service to submit warranty, sales, or incentive claims to the manufacturer, distributor, or manufacturer representative."*
Chargebacks *(§ 44-20-135(1)(a); see (1)(b), (3), (4)): "A manufacturer, distributor, or manufacturer representative shall have the right to audit warranty, sales, or incentive claims of a motor vehicle dealer for nine months after the date the claim was submitted."*
Rate *(§ 44-20-141.5(3)(a); see (3)(c)-(d), (4)(a), (4)(c), (5)(b)): "A motor vehicle dealer may establish the retail labor rate and the retail parts markup percentage by submitting to the manufacturer either of the following as decided by the motor vehicle dealer:"*
Factory time *(§ 44-20-141.5(7)(a)): "Shall not establish an unreasonable flat-rate time, nor establish unreasonable flat-rate labor times for new line-makes that are inconsistent with the existing rates"*

Notes

Current consolidated text was read on Justia (2025 C.R.S.) through the browser, because the official C.R.S. is Lexis-hosted. The 2023 changes were checked against enrolled SB 23-078. The section does not apply to recreational-vehicle dealers or manufacturers ((9)); powersports rules are in § 44-20-439.5. 'Warranty obligation' includes CPO warranty ((1)(g)). The retail-rate sample KEEPS work paid by third-party warranty and service contract companies ((4)(c)(XI)). 'Express service' is excluded. Flat-rate times may not be unreasonable ((7)(a)).

Source: mirror · https://content.leg.colorado.gov/sites/default/files/2023a_078_signed.pdf · Confidence: medium. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Connecticut (CT)

Law last amended: 2026 (eff. 2026-10-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Conn. Gen. Stat. § 42-133s; Conn. Gen. Stat. § 42-133ee (civil action); Conn. Gen. Stat. § 14-67c (manufacturer license sanctions)
Flagged state.

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 42-133s(h)
Mfr-backed service contract	**Not addressed**	-	§ 42-133s(a)
CPO warranty	**Not addressed**	-	§ 42-133s(a)
Independent service contract	**Not addressed**	-	§ 42-133s(a)

Hourly rate: Retail rate: all nonwarranty customer-paid ROs from the month before submission; total labor sales ÷ labor hours. Presumed fair unless rebutted within 30 days vs other same line-make dealers 'in the vicinity'; effective 30 days after declaration; protest to the DMV Commissioner; ≤2 declarations per calendar year.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Disapproval must be in writing or by electronic transmission. No denial or charge-back based solely on a claim-processing failure, clerical error or other administrative technicality that does not question the claim's legitimacy. Dealers need keep defective p…	§ 42-133s(j)
Payment	30 days after approval. Dealer filing deadline: Silent. The dealer may resubmit under reasonable manufacturer guidelines not later than 30 days after the initial denial or charge-back.	
Chargebacks	12 months; fraud: If there is evidence of fraud, the one-year limit does not restrict l…. Charge-back only for false or unsubstantiated claims, within one year after payment. No charge-back after a timely audit based solely on processing, clerical or administrative technicalities. From Oct. 1, 2026, no offset or charge-back of used-vehicle stop-sa…	§ 42-133s(j)
Rate resubmission	not more than twice in one calendar year. Sample: All qualifying ROs, prior calendar month. Excluded: Discounted / promotional, Engine / transmission assembly, Routine maintenance, Tires, Prep / reconditioning, Other (see text).	§ 42-133s(c); see (d), (f)
Mfr response	30 days; no response = approved: Yes. Challenge: The rate is presumed fair and reasonable. To rebut, the manufacturer must reasonably substantiate that it is 'unfair and unreasonable in light of the practices of all other franchised motor vehicle dealers in the vicinity offering the same line-make vehicles'. Forum: Dealer protest to the DMV Commissioner within 30 days after receiving….	§ 42-133s(c)
Penalties	Civil action in Superior Court for an injunction, actual damages, costs and a reasonable attorney's fee (§ 42-133ee). After a hearing, the DMV Commissioner may suspend or revoke a manufacturer's license, or impose a civil penalty of up to $3,000 per violation, for failure to comply with §§ 42-133r to 42-133dd (§ 14-67c).	Conn. Gen. Stat. §§ 42-133ee, 14-67c
Audit procedures	Audit climate score 21/100 (Moderate restrictiveness; chargeback limits 19/75 + process and oversight 2/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 30 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 42-133s(j)): "Any claim not disapproved in writing or by means of electronic transmission not later than thirty days after receipt shall be deemed approved and payment shall be made within thirty days."*
Chargebacks *(§ 42-133s(j)): "manufacturers or distributors retain the right to audit such claims and to charge-back the dealer for false or unsubstantiated claims for a period of one year following payment."*
Rate *(§ 42-133s(c); see (d), (f)): "The retail rate customarily charged by the dealer for labor may be established by submitting to the manufacturer or distributor all nonwarranty customer-paid service repair orders covering repairs made during the month prior to the submission"*
Factory time *(§ 42-133s(h)): "Time allowances for the diagnosis and performance of warranty work and service shall be reasonable and adequate for the work to be performed."*

Notes

Time allowances must be 'reasonable and adequate' ((h)). No cost recovery through surcharges ((g)). No-cost parts are paid at the average markup ((e)). The labor sample is a full prior month of customer-pay ROs, which is unusual. P.A. 26-24 (effective 10/1/2026) also replaces the § 42-133r definitions (§ 20) and amends §§ 42-133bb and 42-133cc (facility rules). P.A. 26-24 § 20 re-enacts the § 42-133r definitions unchanged and adds only facility (substantial alteration) and consumer-data definitions; no effect on warranty scope, audits, chargebacks or rates.

Source: official · https://www.cga.ct.gov/current/pub/chap_739.htm · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Delaware (DE)

Law last amended: 2024 (eff. 2024-08-29) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: 6 Del. C. § 4903; 6 Del. C. § 4916 (civil actions); 6 Del. C. §§ 4918, 4920 (limitations, association standing)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 4903(b); see (a)(1)c.
Mfr-backed service contract	**Required**	Factory time (reasonable/adequate standard where stated)	§ 4903(b)
CPO warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 4903(a)(1)a.
Independent service contract	**Not addressed**	-	§ 4903(a)(1)a.

Hourly rate: Not less than the dealer's rate to nonwarranty customers for like services. Declared from 100 sequential customer-paid ROs or 90 days of customer-paid ROs (whichever less), covering like repairs ≤180 days old. No arithmetic formula in the text. Presumed fair; effective within 30 days (clock restarts after reasonably requested information); ≤1 change per 9 months; Public Service Commission protest with burden on the manufacturer.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Disapproval must be specific and in writing. No denial or reduction if the dealer documents a good-faith attempt to follow the manufacturer's reasonable written policies and that the work was actually performed. No denial or chargeback for a dealer administra…	§ 4903(d)(1); see (a)(1)d., (d)(2)-(3)
Payment	30 days after approval. Dealer filing deadline: The manufacturer must allow at least 180 days for claim submission..	
Chargebacks	6 months; fraud: The 180-day limit does not apply to fraudulent claims.. The window is 180 days after payment (shortened from 1 year in 2024). Chargebacks are allowed only for fraud, unnecessary work, or work not properly performed. No chargeback for administrative error, and documentation-procedure chargebacks are limited as abov…	§ 4903(d)(1)-(2)
Rate resubmission	not more than once every 9 months. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Fleet, Insurance-paid, Service-contract paid, Government, Tires, Routine maintenance, Alignments, Engine / transmission assembly, Prep / reconditioning, Other (see text).	§ 4903(b)(1); see (b)(2)
Mfr response	30 days; no response = approved: Yes. Challenge: The declared schedule is presumed fair and reasonable. In a protest, the manufacturer must prove 'the dealer's submission did not meet the respective submission requirements'. This is a compliance-only test with no market comparison. Forum: Public Service Commission protest within 30 days of the denial notice….	§ 4903(b)(1); see (b)(4)
Penalties	Action for damages equal to actual pecuniary loss, plus equitable or injunctive relief, costs and reasonable attorney's fees; the burden shifts after a prima facie showing. Punitive damages for willful or wanton or continued multiple violations, and the court may assess monetary penalties against the manufacturer (§ 4916). Dealer assoc…	6 Del. C. §§ 4916, 4918, 4920, 4903(b)(4)
Audit procedures	Audit climate score 41/100 (High restrictiveness; chargeback limits 41/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 4903(d)(1); see (a)(1)d., (d)(2)-(3)): "any claim not specifically disapproved in writing within 30 days after the receipt shall be construed to be approved and payment must follow within 30 days."*
Chargebacks *(§ 4903(d)(1)-(2)): "the manufacturer retains the right to audit such claims and to charge back the dealer for claims due to fraud, work done unnecessarily, or work not properly performed for a period of 180 days following payment."*
Rate *(§ 4903(b)(1); see (b)(2)): "established by the dealer submitting to the manufacturer 100 sequential customer paid service repair orders or 90 days of customer paid service repair orders, whichever is less, covering like repairs made no more than 180 days before the submission"*
Factory time *(§ 4903(b); see (a)(1)c.): "Time allowances for the diagnosis and performance of warranty work and service shall be reasonable and adequate for the work to be performed."*

Notes

Since 2024, § 4903 covers predelivery, manufacturer-sponsored maintenance programs, manufacturer extended warranties, CPO warranties, manufacturer-issued service contracts, parts exchange, recall and warranty work ((a)(1)a., (b)). The statute gives no arithmetic formula for the rate. (d)(2) contains a typo ('shall not be effect'). Incentive audits are limited to 180 days after the program ends ((e)). Used-vehicle recall compensation is 1.5%/month of average Black Book value ((g)). No cost recovery through surcharges ((a)(2)).

Source: official · https://delcode.delaware.gov/title6/c049/index.html · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Florida (FL)

Law last amended: 2009 (eff. 2009-05-28) · Next scheduled change: none found · Last verified: 2026-10-23 · Built 2026-11-02

Cites: Fla. Stat. § 320.696; Fla. Stat. § 320.64(25) (audits, denials, chargebacks); Fla. Stat. §§ 320.64, 320.695, 320.697, 320.699

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 320.696(4)(b) (flush text)
Mfr-backed service contract	**Conditional**	Factory time (reasonable/adequate standard where stated)	§ 320.696(1)(a)
CPO warranty	**Conditional**	Factory time (reasonable/adequate standard where stated)	§ 320.696(1)(a)
Independent service contract	**Not reached**	-	§ 320.696(1)(a)

Hourly rate: Agreed hourly rate. If there is no agreement within 30 days of the dealer's written request, the dealer chooses the greater of (1) retail customer labor rate = total retail labor sales ÷ hours for the preceding month, or (2) a gross-profit-percentage method using the mean technician wage. The rate is applied uniformly and can never be below the rate paid on Jan. 2, 2008. Requests ≤ semiannually; increases retroactive to claims filed 15 days after receipt of the request.

Audit fields

Field	Rule	Pinpoint
Claim decision	Silent; late claim deemed approved: no rule in statute. A claim may be denied, or charged back, only for the portion shown false or fraudulent or not substantially compliant with the licensee's reasonable written, uniformly applied procedures (§ 320.64(25)). No denial, reduction or chargeback because the dealer fa…	§ 320.696(1)(c); see (2) and § 320.64(25)
Payment	30 days after receipt of the claim. Dealer filing deadline: Silent.	
Chargebacks	12 months; fraud: None. After 12 months, payments are 'final and incontrovertible for a…. No more than one warranty, retail customer repair or other service-related audit per calendar year (§ 320.696(2); the cap does not name incentive audits). A post-payment chargeback is allowed only as a result of a timely conducted audit, and only for the port…	§ 320.64(25); see § 320.696(2)
Rate resubmission	written requests for changes not more than semiannually. Sample: All qualifying ROs, prior calendar month. Excluded: Internal, Prep / reconditioning, Fleet, Insurance-paid, Service-contract paid, Government, Discounted / promotional, Warranty / recall, Other (see text).	§ 320.696(4)(b)1.; see (4)(b)2., (4)(c), (5)
Mfr response	30 days; no response = approved: no rule in statute. Challenge: The statute has no reasonableness or market-comparison challenge. If there is no agreement within 30 days of the dealer's written request, the dealer elects the greater of the two statutory methods. The rate is applied uniformly and can never be below the rat… Forum: DHSMV administrative proceeding (§ 320.699), or court action (§§ 320.….	§ 320.696(4)(b); see (5)
Penalties	Three times the pecuniary loss, plus costs and a reasonable attorney's fee; the burden shifts to the licensee after a prima facie showing (§ 320.697). Injunction by the department, or by a dealer in the department's name, without bond (§ 320.695). Administrative hearing on dealer request (§ 320.699). The license may be denied, suspende…	Fla. Stat. §§ 320.64, 320.695, 320.697, 320.699
Audit procedures	Audit climate score 64/100 (Very high restrictiveness; chargeback limits 46/75 + process and oversight 18/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: yes; frequency cap: No warranty, retail customer repair or other serv…; written reasons: yes; response period: 45 days; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: limited to the submission.	

Statute quotes

Claims *(§ 320.696(1)(c); see (2) and § 320.64(25)): "Compensation not paid to a motor vehicle dealer within 30 days after receipt of a claim is not timely."*
Chargebacks *(§ 320.64(25); see § 320.696(2)): "Audits of warranty, maintenance, and other service-related payments shall be performed by an applicant or licensee only during the 12-month period immediately following the date the claim was paid."*
Rate *(§ 320.696(4)(b)1.; see (4)(b)2., (4)(c), (5)): "dealer's hourly labor rate for retail customer repairs, determined by dividing the amount of the dealer's total labor sales for retail customer repairs by the number of total labor hours that generated those sales for the month preceding the request"*
Factory time *(§ 320.696(4)(b) (flush text)): "A licensee shall not eliminate flat-rate times from or establish an unreasonable flat-rate time in its warranty repair manual, warranty time guide, or any other similarly named document."*

Notes

Coverage depends on the issuer: § 320.696 reaches warranty, maintenance plan, extended warranty, CPO warranty and service contracts 'issued by the licensee or its common entity, unless issued by a common entity that is not a manufacturer', plus recalls, campaigns, authorized goodwill, directives and bulletins. The licensee must keep reasonable flat-rate times, including for new models. 'Retail customer repair' is not limited to the same model or model year. The statute sets no claim approval clock or deemed-approval rule; only payment within 30 days of receipt.

Source: official · http://www.leg.state.fl.us/statutes/index.cfm?App_mode=Display_Statute&URL=0300-0399/0320/Sections/0320.696.html · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Georgia (GA)

Law last amended: 2025 (eff. 2025-07-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: O.C.G.A. § 10-1-641; O.C.G.A. § 10-1-662(a)(13)-(15) (audits, chargebacks, denials); O.C.G.A. §§ 10-1-623, 10-1-666, 10-1-667 (remedies/enforcement)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 10-1-641(a)(1)(D)
Mfr-backed service contract	**Conditional**	Factory time (reasonable/adequate standard where stated)	§ 10-1-622(15)
CPO warranty	**Not addressed**	-	§ 10-1-622(15)
Independent service contract	**Not reached**	-	§ 10-1-622(15)

Hourly rate: At the dealer's election, 'reasonable compensation'. The principal factors are the dealer's retail rate and rates of similarly situated same line-make dealers in a comparable area. Labor retail rate from 100 sequential nonwarranty customer-paid ROs for warranty-like repairs or 90 consecutive days (whichever less), ≤180 days old: total labor sales ÷ hours. The franchisor may contest within 30 days; commissioner hearing with burden on the franchisor. ≤1 declaration per calenda…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Disapproval must be specific and in writing. A franchisor may not deny, delay, restrict or bill back a warranty claim unless that is the direct result of a material defect affecting the claim's validity (§ 10-1-662(a)(15)).	§ 10-1-641(b)(2); see § 10-1-662(a)(14)-(15)
Payment	30 days after approval. Dealer filing deadline: Silent. A claim rejected for clerical error may be resubmitted in corrected form within 30 days (§ 10-1-662(a)(14)).	
Chargebacks	12 months; fraud: If the franchisor has reason to believe fraudulent or intentionally f…. The window is measured back from the audit or chargeback notice to the transaction, not from payment. Chargeback only if the franchisor proves by a preponderance that the transaction was fraudulent, intentionally and materially false, not reasonably substanti…	§ 10-1-662(a)(13); see (a)(14)
Rate resubmission	no dealer shall declare a retail rate for parts or labor or both more than once in one calendar year. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Routine maintenance, Tires, Prep / reconditioning, Other (see text).	§ 10-1-641(a)(2)(C); see (a)(2)(D), (F)
Mfr response	30 days; no response = approved: no rule in statute. Challenge: The franchisor must reasonably substantiate that the rate 'is unreasonable in light of the practices of all other similarly situated franchised motor vehicle dealers in a comparable geographic area in this state offering the same line-make vehicles'. The prin… Forum: Petition to the state revenue commissioner (Department of Revenue) wi….	§ 10-1-641(a)(2)(C)
Penalties	Petition to the Department of Revenue, or a court action for damages equal to 'the greater of (1) the actual pecuniary loss or (2) three times the actual pecuniary loss, not to exceed $750,000.00', plus costs, reasonable attorney's fees and equitable or injunctive relief. The burden shifts on a prima facie showing. Punitive damages for…	O.C.G.A. §§ 10-1-623, 10-1-666, 10-1-667
Audit procedures	Audit climate score 44/100 (High restrictiveness; chargeback limits 42/75 + process and oversight 2/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 30 days; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 10-1-641(b)(2); see § 10-1-662(a)(14)-(15)): "any claim not specifically disapproved in writing within 30 days after the receipt shall be construed to be approved and payment must follow within 30 days."*

Chargebacks *(§ 10-1-662(a)(13); see (a)(14)): "To conduct an audit, investigation, or inquiry of any dealer or dealership as to any activity, transaction, conduct, or other occurrence which took place more than one year prior to such audit, investigation, or inquiry"*

Rate *(§ 10-1-641(a)(2)(C); see (a)(2)(D), (F)): "The retail rate for labor shall be calculated by determining the dealer's total labor sales from the submitted repair orders and dividing that amount by the total number of hours that generated those sales."*

Factory time *(§ 10-1-641(a)(1)(D)): "Time allowances for the diagnosis and performance of such work and service shall be reasonable and adequate for the work to be performed."*

Notes

The 30-day claim rule in (b)(2) ('All such claims...') follows the recall sentence in (b)(1). (d)(7) treats it as the warranty-claim standard, but its literal antecedent is recall claims. The labor-rate subparagraph (a)(2)(C) has NO deemed-approval sentence; only the parts subparagraph (B) says a rate not disapproved in 30 days is 'deemed approved'. Hence deemed_approved_if_no_response = null. Time allowances must be 'reasonable and adequate' ((a)(1)(D)). § 10-1-645 allows a uniform time-standards manual. Stop-sale compensation is 1%/month ((d)). Current text was read on Justia through the browser (2025 Code of Georgia).

Source: mirror · https://law.justia.com/codes/georgia/title-10/chapter-1/article-22/part-3/section-10-1-641/ · Confidence: medium. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Hawaii (HI)

Law last amended: 2012 (eff. 2012-07-06) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Haw. Rev. Stat. § 437-28(a)(21)(G); Haw. Rev. Stat. § 437-56(d)-(e); Haw. Rev. Stat. § 437-57; Haw. Rev. Stat. § 437-59(d)-(e); Haw. Rev. Stat. §§ 437-28(a),(c), 437-35, 437-36, 437-39, 437-51
Flagged state.

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	§ 437-28(a)(21)(G)
Mfr-backed service contract	**Not addressed**	-	§ 437-28(a)(21)(G)
CPO warranty	**Not addressed**	-	§ 437-28(a)(21)(G)
Independent service contract	**Not addressed**	-	§ 437-56(c) (parts-markup RO exclusion only)

Hourly rate: Retail rate: warranty labor rate per hour can be no less than the rate the dealer charges retail customers, and no more than it. The statute gives no RO-sample method for labor; the RO method in § 437-56(b) is for parts markup only.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Written notice to the dealer of the grounds for disapproval (§ 437-28(a)(21)(G); § 437-56(d))	§ 437-28(a)(21)(G) (30/30); § 437-56(d) (deemed approval)
Payment	30 days after approval. Dealer filing deadline: Dealer must be allowed at least 30 days after the repair is completed to submit (§ 437-56(d)); no outer limit stated.	
Chargebacks	12 months; fraud: 1-year limit does not apply to fraudulent claims. No audit of paid claims or chargeback more than 1 year after payment; chargeback only if mfr carries burden that the claim was fraudulent or dealer did not substantially comply with reasonable written procedures; 30 days' written notice before imposing; deale…	§ 437-57(a)
Rate resubmission	Silent. Sample: No statutory labor-rate sample. Excluded: none listed.	§ 437-28(a)(21)(G)
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Forum: DCCA administrative hearing (Office of Administrative Hearings) for d….	§ 437-51(a)
Penalties	Suit to enjoin, with damages and a reasonable attorney's fee (§ 437-36; the section is framed around unlicensed activity, but the court may enjoin any chapter violation). DCCA hearing under § 437-51: each party bears its own costs and attorney's fees; hearing cost shared Board may suspend, revoke, fine ($100-$1,000 per violation) or de…	HRS §§ 437-28(a),(c), 437-35, 437-36, 437-37.5, 437-39, 437-51(g)
Audit procedures	Audit climate score 35/100 (Elevated restrictiveness; chargeback limits 30/75 + process and oversight 5/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: yes; response period: 30 days; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 437-28(a)(21)(G) (30/30); § 437-56(d) (deemed approval)): "shall be paid within thirty days after approval and shall be approved or disapproved within thirty days after receipt … Failure to disapprove a claim within the required time frame constitutes approval of the claim."*
Chargebacks *(§ 437-57(a)): "chargeback any warranty or incentive payment previously made more than one year after the date the manufacturer or distributor made the payment to the dealer. This section shall not apply to fraudulent claims."*
Rate *(§ 437-28(a)(21)(G)): "pay its dealers a labor rate per hour for warranty work that is less than that charged by the dealer to the retail customers of the dealer nor shall the rates be more than the retail rates"*
Factory time *(§ 437-28(a)(21)(G)): "In no event shall any manufacturer or distributor pay its dealers a labor rate per hour for warranty work that is less than that charged by the dealer to the retail customers of the dealer"*

Notes

CLAIM-CLOCK CONFLICT: § 437-28(a)(21)(G) requires approval or disapproval within 30 days of receipt and payment within 30 days of approval. § 437-56(d), from the same 2010 act, requires approval or disapproval and payment within 45 days of receipt, with deemed approval if not disapproved 'within the required time frame'. The table uses the stricter 30/30. The labor rate is a floor AND a ceiling ('nor shall the rates be more than the retail rates'). Section (21)(G) is a licensing ground (Part I); §§ 437-56/57 are in Part II (DCCA hearing). No cost recovery (§ 437-56(e)). Recall and stop-sale claims carry the same limits as warranty claims (§ 437-59(e)); § 437-59(d) bars recall-related chargebacks, subject to § 437-57. Parts markup: effective within 90 days, presumed fair; at most once per 12 months; mfr may request additional information, which restarts the 90-day clock. The statute has…

Source: official · https://data.capitol.hawaii.gov/hrscurrent/Vol10_Ch0436-0474/HRS0437/HRS_0437-0056.htm (also HRS_0437-0028.htm, HRS_043… · Confidence: high.
Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Iowa (IA)

Law last amended: 2023 (eff. 2023-07-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Iowa Code § 322A.5; Iowa Code § 322.3(14), (16); Iowa Code §§ 322.11, 322.14, 322.31

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 322A.5(2)(c)
Mfr-backed service contract	**Not addressed**	-	§ 322A.5(2)(a)
CPO warranty	**Not addressed**	-	§ 322A.5(2)(a)
Independent service contract	**Not addressed**	-	§ 322A.5(2)(b)(4)

Hourly rate: Not less than the franchisee's rates for like services to retail customers, provided the rates are reasonable. The franchiser 'may' compute the retail labor rate as retail labor sales for warranty-like services ÷ hours, from 100 sequential customer-paid ROs or all ROs in 90 days, whichever is less, within 180 days, excluding routine maintenance such as tire or oil service. Effective 45 days after approval. A denial can be contested before DIAL, with the burden on the franchi…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Denial in writing within 30 days. Allowed grounds: repair not related to warranty or recall; repair not properly performed; lacks reasonably required documentation; noncompliance with program terms; bona fide, fact-based belief of an intentionally false or fr…	§ 322A.5(4)(a)
Payment	30 days after approval. Dealer filing deadline: A claim may not be reduced or disallowed for being submitted fewer than 60 days after the work was completed (§ 322.3(16)); no maximum stated. A claim may be rejected, but not denied, solely for an unintentional failure such as a clerical error; the dealer may resubmit th…	
Chargebacks	12 months; fraud: The 12-month limit does not apply if an Iowa court of competent juris…. The 12 months run from claim SUBMISSION, not payment: no reduction or disallowance of warranty compensation once 12 months have passed since submission (§ 322.3(14)). The 30-day rules do not preclude denials, reductions or chargebacks not otherwise barred by…	§ 322.3(14)(a)
Rate resubmission	Once in any one-year period. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Routine maintenance, Tires.	§ 322A.5(2)(b)(3)(a)
Mfr response	Silent; no response = approved: no rule in statute. Challenge: At a DIAL hearing the franchiser bears the burden of proving its denial was reasonable. The compensation floor applies 'provided the rates are reasonable' (§ 322A.5(2)(b)(4)) Forum: Complaint to the department (Iowa DOT); contested-case hearing before….	§ 322A.5(2)(b)(3)(b)
Penalties	An additional award of reasonable attorney fees and litigation expenses where the district court finds a franchiser or franchisee violated an express or implied warranty (§ 322A.5(1); a consumer-warranty fulfillment clause). Franchise clauses restricting jurisdiction to an out-of-state forum are void (§ 322A.19) Manufacturer or distrib…	Iowa Code §§ 322A.5(1), 322A.5(2)(b)(3)(b), 322A.19, 322.11, 322.14,…
Audit procedures	Audit climate score 30/100 (Elevated restrictiveness; chargeback limits 27/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: limited to the submission.	

Statute quotes

Claims *(§ 322A.5(4)(a)): "shall be paid within thirty days after the claim's approval … If a franchiser does not deny a claim in writing within thirty days after the receipt of the claim, the claim shall be deemed to be approved"*
Chargebacks *(§ 322.3(14)(a)): "shall not reduce the amount of compensation for, or disallow a claim for, any of the following if twelve months or more have passed since the claim was submitted"*
Rate *(§ 322A.5(2)(b)(3)(a)): "one hundred sequential retail service orders paid by the franchisee's customers, or all of the franchisee's retail service orders paid by the franchisee's customers in a ninety-day period, whichever is less, for services provided within the previous one-hundred-eighty-day period"*
Factory time *(§ 322A.5(2)(c)): "The franchiser shall provide to the franchisee a list of time allowances for the performance of warranty services. Time allowances for the performance of warranty services, including diagnostic services, shall be reasonable and adequate for the services to be performed."*

Notes

Time allowances, incl. diagnostics, must be 'reasonable and adequate' (§ 322A.5(2)(c)). § 322A.5(5) extends the obligations to franchisers of separately warranted transmissions, engines or rear axles. The text is nearly identical to K.S.A. 8-2415(c). Iowa measures the 12-month chargeback bar from submission; Kansas measures it from payment.

Source: official · https://www.legis.iowa.gov/docs/code/322A.pdf (Iowa Code 2026; ch. 322 at https://www.legis.iowa.gov/docs/code/322.pdf) · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Idaho (ID)

Law last amended: 2011 (eff. 2011-07-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Idaho Code § 49-1626; Idaho Code § 49-1617; Idaho Code § 49-1617B; Idaho Code § 49-1610(2); Idaho Code §§ 49-1602(2), 49-1620

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 49-1626(2); see (1) (manufacturer provides 'the time allowance for the performance of that work')
Mfr-backed service contract	**Not addressed**	-	§ 49-1613(4) (anti-coercion only; not a reimbursement rule)
CPO warranty	**Not addressed**	-	§ 49-1626(1)
Independent service contract	**Not addressed**	-	§ 49-1626(11)(a)(iii) (retail-rate RO exclusion only)

Hourly rate: Not less than the dealer's rate charged to retail customers for nonwarranty labor, provided it is not unreasonable compared with same or competitive franchises in the area. The dealer declares the rate from 100 sequential customer-paid ROs or 90 days of ROs, whichever is less, covering repairs within 180 days. The declared rate is presumed fair and takes effect within 90 days. At most one change per 12 months.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. A claim must be specifically disapproved in writing within 30 days of receipt, or it is approved; the statute has no stated-grounds requirement	§ 49-1626(5)
Payment	30 days after approval. Dealer filing deadline: No fixed deadline. A claim may be submitted if the defect was identified and documented before the warranty expired, including after franchise termination for work done while the franchise was in effect (§ 49-1626(4)). 30 days from notice of a denial or chargeback to resubmit a claim denied for a clerical error or other administrative technicalit…	
Chargebacks	12 months; fraud: May audit for fraudulent claims during any period in which a fraud ac…. Chargeback only after an audit, and only if the mfr shows by a preponderance that the repair was improperly or substandardly performed or unnecessary, or that the claim is unsubstantiated under mfr requirements (§ 49-1626(9)). Dealer may resubmit clerical den…	§ 49-1626(8)
Rate resubmission	Once every 12 months. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Insurance-paid, Service-contract paid, State inspections, Fleet, Engine / transmission assembly, Routine maintenance, Tires, Prep / reconditioning, Other (see text).	§ 49-1626(11)(b)
Mfr response	30 days; no response = approved: Yes. Challenge: Rate presumed fair and reasonable. The retail-rate floor applies only if the rate is 'not unreasonable when compared with other motor vehicle franchises from the same or competitive lines ... in the geographic area' (§ 49-1626(11)) Forum: After mediation (§ 49-1617A), protest to the Idaho Transportation Dep….	§ 49-1626(11)(b)
Penalties	Protest: costs and reasonable attorney's fees to a dealer who prevails and suffered pecuniary loss; treble pecuniary loss for a willful violation (§ 49-1617(3)). Civil action for actual damages, declaratory or injunctive relief, costs and attorney's fees; dealer associations have standing (§ 49-1617B). Damages and equitable relief for…	Idaho Code §§ 49-1602, 49-1610(2), 49-1613(1)(b), 49-1617(3), 49-1617…
Audit procedures	Audit climate score 29/100 (Moderate restrictiveness; chargeback limits 27/75 + process and oversight 2/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 30 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 49-1626(5)): "shall be paid within thirty (30) days following their approval … any claim not specifically disapproved in writing within thirty (30) days after receipt shall be construed to be approved"*

Chargebacks *(§ 49-1626(8)): "after the expiration of one (1) year after the date of payment of the warranty claim, a manufacturer or distributor shall not audit the records of a motor vehicle dealer to determine compliance with the terms of a warranty claim."*

Rate *(§ 49-1626(11)(b)): "one hundred (100) sequential customer paid service repair orders or ninety (90) days of customer paid service repair orders, whichever is less, covering repairs made no more than one hundred eighty (180) days before the submission"*

Factory time *(§ 49-1626(2); see (1) (manufacturer provides 'the time allo…): "Time allowances for the diagnosis and performance of warranty work and service shall be reasonable and adequate for the work to be performed."*

Notes

Time allowances for diagnosis and repair must be 'reasonable and adequate' (§ 49-1626(2)). No cost recovery by surcharge (§ 49-1626(13)). RVs keep the procedures, but the (11) retail rate does not apply to living-area components (§ 49-1626(14)). Per the prior head-start file (not re-verified here), 2023 H0127/H0129 and 2026 S1424 died; the official ch. 16 PDF shows no post-2011 change to § 49-1626.

Source: official · https://legislature.idaho.gov/wp-content/uploads/statutesrules/idstat/Title49/T49CH16.pdf (section page: https://legisl… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Illinois (IL)

Law last amended: 2021 (eff. 2022-01-01) · Next scheduled change: none found · Last verified: 2026-10-23 · Built 2026-11-02

Cites: 815 ILCS 710/6; 815 ILCS 710/12; 815 ILCS 710/13; 815 ILCS 710/29; 625 ILCS 5/5-103(a); 92 Ill. Adm. Code 1001.790

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	OEM time x multiplier	710/6(b)
Mfr-backed service contract	**Conditional**	OEM time x multiplier	710/6(f); also 710/6(b) ('time guide ... for extended warranty repairs')
CPO warranty	**Conditional**	OEM time x multiplier	710/6(b)
Independent service contract	**Not addressed**	-	710/6(a)

Hourly rate: The dealer's 'same effective labor rate' for customer-pay repairs, computed from 100 sequential ROs chosen and submitted by the dealer, less simple-maintenance ROs. Floor: not less than the rates charged to retail customers for like nonwarranty service. The dealer may request a warranty labor-rate increase at most once per calendar year.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Written notice within the 30-day period stating the specific grounds for disapproval	710/6(b) (claims paragraph)
Payment	30 days after approval. Dealer filing deadline: Silent. Dealer may correct and resubmit disapproved claims within 30 days of receiving the disapproval; resubmitted claims are subject to…	
Chargebacks	12 months; fraud: Beyond 1 year, the mfr may charge back a fraudulent claim only if it…. Audit within 1 year of payment or credit, and charge back false or unsubstantiated claims; the same 1-year rule covers incentive programs. A separate sentence bars any debit reduction or chargeback of any item on a warranty RO 'absent a finding of fraud or il…	710/6(b)
Rate resubmission	Requests for warranty labor-rate increases at most once per calendar year. Sample: 100 ROs (RO count only). Excluded: Routine maintenance.	710/6(b)
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Forum: Motor Vehicle Review Board protest (Secs. 12(b), 29), arbitration if….	710/29
Penalties	Damages and equitable relief incl. an injunction; treble damages if willful or wanton; mandatory reasonable attorney's fees, expert fees and costs to a dealer that substantially prevails (Sec. 13). MVRB protest or agreed arbitration (Sec. 12); MVRB protest costs: $250 processing fee and refundable $2,500 deposit per party, with Board e…	815 ILCS 710/12, 710/13, 710/14, 710/29
Audit procedures	Audit climate score 30/100 (provisional: 18-30, one limit rests on conflicting statute text) (Elevated restrictiveness; chargeback limits 27/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: unresolved (conflict in statute); rate validation: limited to the submission.	

Statute quotes

Claims *(710/6(b) (claims paragraph)): "The motor vehicle dealer shall be permitted to correct and resubmit such disapproved claims within 30 days of receipt of disapproval. Any claims not specifically disapproved in writing within 30 days from their submission shall be deemed approved"*
Chargebacks *(710/6(b)): "audit such claims within a one year period from the date the claim was paid or credit issued … No debit reduction or charge back … absent a finding of fraud or illegal actions"*
Rate *(710/6(b)): "same effective labor rate (using the 100 sequential repair orders chosen and submitted by the dealer less simple maintenance repair orders) … warranty labor rate increases a maximum of once per calendar year"*
Factory time *(710/6(b)): "In the event that a time guide has not been agreed to for warranty repairs, or said time guide does not define time for an applicable warranty repair, the manufacturer's time guide shall be used, multiplied by 1.5."*

Notes

Sec. 6 gives no mfr response window, rebuttal standard or effective date for a labor-rate request; the only rate mechanics are the 100-RO 'same effective labor rate' sentence and the once-per-calendar-year limit on increase requests. Baseline: pay 'no less than the amount the retail customer pays for the same services with regard to rate and time'. Time: an agreed time guide for extended-warranty repairs may replace actual time. With no agreed guide, or where the guide does not define the operation, the mfr guide x 1.5 applies. Diagnostic time and TAC/engineering communication time (incl. hold time) are paid. No cost-recovery fees or surcharges. Sec. 6(f) extends duties to affiliates issuing a 'warranty or service or repair plan'. Sec. 6 has two overlapping claims paragraphs, both 30/30 with deemed approval. No administrative license sanction appears in the Franchise Act. Vehicle Code r…

Source: official · https://www.ilga.gov/Documents/legislation/ilcs/documents/081507100K6.htm (full Act: https://www.ilga.gov/legislation/i… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Indiana (IN)

Law last amended: 2025 (eff. 2025-07-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Ind. Code § 9-32-13-15.5; Ind. Code § 9-32-13-15; Ind. Code § 9-32-13-17; Ind. Code § 9-32-13-31; Ind. Code § 9-32-16-15; Ind. Code § 9-32-16-2; Ind. Code § 9-32-17-1

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	§ 9-32-13-15.5(b)
Mfr-backed service contract	**Not addressed**	-	§ 9-32-13-30.1(a) (anti-coercion on sales only)
CPO warranty	**Not addressed**	-	§ 9-32-13-15(a)
Independent service contract	**Not addressed**	-	§ 9-32-13-30.1(b) (sales-side only)

Hourly rate: Dealer's retail labor rate = total labor sales for warranty-like repairs ÷ hours that generated them, using the lesser of 100 sequential customer-paid ROs or 90 consecutive days (ROs within 180 days). Takes effect automatically if the manufacturer does not rebut within 60 days. Applies 'unless otherwise agreed'. At most one declaration per 12 months. The dealer may revert to the nonretail rate at most once per 12 months.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Written notice to the dealer of the grounds for disapproval (§ 17(a)(3))	§ 9-32-13-17(a)(1)-(3)
Payment	30 days after approval. Dealer filing deadline: Silent. No denial based solely on an incidental failure to meet a claim-processing requirement (clerical error or administrative technica…	
Chargebacks	12 months; fraud: Limits do not apply if the mfr can prove fraud on a claim. Audit or charge back only false or fraudulent claims, repairs not properly made, work not necessary, or claims not substantiated under the mfr's written procedures. No discrimination among dealers. Written notice of the specific grounds; an appeals process wi…	§ 9-32-13-17(b)
Rate resubmission	One declaration of the parts markup or labor rate per 12-month period; the dealer may revert to the nonretail rate at most once per 12 months. Sample: 100 ROs or 90 days (dealer chooses); ROs <= 180 days old. Excluded: Discounted / promotional, Routine maintenance, Prep / reconditioning, Accessories, Collision / body / glass, State inspections, Goodwill, Tires, Other (see text).	§ 9-32-13-15.5(b)
Mfr response	60 days; no response = approved: Yes. Challenge: Rebuttal must substantiate how the declaration is unreasonable or materially inaccurate. The § 15 retail-rate duty applies 'as long as the dealer's retail rate is reasonable', judged against similar repairs by similarly situated Indiana repair facilities Forum: Complaint to the dealer services division of the Secretary of State w….	§ 9-32-13-15.5(c)
Penalties	Dealer complaint or petition to the Office of Administrative Law Proceedings; the ALJ may order mediation (§ 9-32-16-15). Complaint to the dealer services division (§ 9-32-13-31(a)). No express private damages action found in art. 32 for these sections Civil penalty up to $10,000 per violation (§ 9-32-17-1); license denial, suspension,…	IC 9-32-13-31, 9-32-16-2, 9-32-16-15, 9-32-17-1
Audit procedures	Audit climate score 35/100 (Elevated restrictiveness; chargeback limits 27/75 + process and oversight 8/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: yes; response period: 30 days; internal appeal: yes; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 9-32-13-17(a)(1)-(3)): "not later than thirty (30) days after the claim is approved; … fail to approve or disapprove a claim not later than thirty (30) days after receipt … disapprove a claim without notice to the dealer in writing of the grounds"*

Chargebacks *(§ 9-32-13-17(b)): "for up to twelve (12) months after the date on which the claim is paid. However, the limitations of this subsection do not apply if the manufacturer or distributor can prove fraud on a claim."*

Rate *(§ 9-32-13-15.5(b)): "dividing the total labor sales for warranty like repairs by the number of hours that generated those sales in one hundred (100) customer paid sequential repair orders or ninety (90) consecutive days of customer paid repair orders"*

Factory time *(§ 9-32-13-15.5(b)): "Unless otherwise agreed, it is an unfair practice for a manufacturer or distributor to fail to compensate a dealer anything less than the dealer's retail rates for parts or labor the dealer uses in performing the warranty services"*

Notes

The retail-rate duty applies 'Unless otherwise agreed'. The optional § 16 uniform reimbursement contract needs at least 30% of same-line franchisees; its time-standards manual must allow a 'reasonable and adequate' diagnosis time. §§ 15 and 15.5 exclude manufactured housing, heavy-duty vocational vehicles (49 CFR 523.8) and RVs. § 15.5 also binds independently warranting component or major-assembly makers. No cost-recovery surcharge (§ 15.5(i)). § 15(b) bars a statewide uniform hourly labor rate. § 17 has no deemed-approval clause; failing to decide within 30 days is an unfair practice. § 17(f) requires compensation for customer assistance with OTA or remote repairs performed at the dealership.

Source: official · https://iga.in.gov/ic/2026/Title_9.pdf (Indiana Code 2026, Title 9; ch. 9-32-13) · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Kansas (KS)

Law last amended: 2019 (eff. 2019-07-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: K.S.A. 8-2415; K.S.A. 8-2411; K.S.A. 8-2410(a)(4); K.S.A. 8-2413

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	8-2415(c)(3)
Mfr-backed service contract	**Not addressed**	-	8-2415(c)(1)(B)
CPO warranty	**Not addressed**	-	8-2415(a)
Independent service contract	**Not addressed**	-	8-2415(a)

Hourly rate: Not less than rates charged to retail customers for like services, provided they are reasonable. The manufacturer 'may' compute the retail labor rate as retail labor sales for warranty-like services ÷ hours, from 100 sequential customer-paid ROs or all ROs in 90 days, whichever is less, within 180 days, excluding routine maintenance such as tire or oil service. Effective 45 days after approval. A denial goes to a hearing before the director of vehicles, with the burden on th…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Specific disapproval in writing or by electronic transmission within 30 days. No unreasonable proof may be required. A reasonably substantiated claim may not be divided or reduced. Failure to follow processing requirements is not grounds for denial or reducti…	K.S.A. 8-2415(e)
Payment	30 days after approval. Dealer filing deadline: Compensation may not be reduced or disallowed because the claim was submitted fewer than 60 days after the work was completed (8-2415(d)); no maximum stated.	
Chargebacks	12 months; fraud: With evidence of fraud, the mfr may audit for longer and charge back…. Chargeback only for false or unsubstantiated claims. The mfr's reimbursement claim must be presented within 90 days of the audit. No setoff against dealer funds until a final decision on any challenge or appeal	K.S.A. 8-2415(e)
Rate resubmission	Once in any one-year period. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Routine maintenance, Tires.	K.S.A. 8-2415(c)(2)(C)(i)
Mfr response	Silent; no response = approved: no rule in statute. Challenge: At the hearing the mfr bears the burden of proving its denial was reasonable. The floor applies 'provided the rates are reasonable' (8-2415(c)(3)). The mfr may not act unreasonably to delay rate adjustments (8-2415(d)) Forum: Complaint to the director of vehicles; hearing under K.S.A. 8-2411 (K….	K.S.A. 8-2415(c)(2)(C)(ii)
Penalties	Injunction on application of the board, the director or 'any person having any interest in the subject matter' (8-2413(a)); mandatory nonbinding mediation on request, which tolls deadlines (8-2413(b)). No express damages action in these sections Civil penalty of $50-$1,000 per violation and/or license suspension or revocation (8-2411(b…	K.S.A. 8-2410(a)(4), 8-2411(b), 8-2413
Audit procedures	Audit climate score 45/100 (High restrictiveness; chargeback limits 42/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: limited to the submission.	

Statute quotes

Claims *(K.S.A. 8-2415(e)): "If a claim is not specifically disapproved in writing or by electronic transmission within 30 days after … receives it, the claim shall be considered to be approved and payment shall follow within 30 days."*
Chargebacks *(K.S.A. 8-2415(e)): "retains the right to audit claims for warranty work for a period of one year after the date on which the claim is paid and to chargeback any amounts paid on claims that are false or unsubstantiated."*
Rate *(K.S.A. 8-2415(c)(2)(C)(i)): "copies of 100 sequential retail service orders paid by the dealer's customers, or all of the dealer's retail service orders paid by the dealer's customers in a 90-day period, whichever is less, for services provided within the previous 180-day period."*
Factory time *(8-2415(c)(3)): "The compensation to the dealer for warranty parts and labor shall not be less than the rates charged by the dealer for like parts and services to retail customers, provided the rates are reasonable."*

Notes

Applies to 'first or second stage' manufacturers and distributors. No time-allowance sentence, unlike Iowa. Rate and parts rules mirror Iowa § 322A.5(2), but the Kansas chargeback window runs from payment.

Source: official · https://ksrevisor.gov/statutes/chapters/ch08/008_024_0015.html · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Kentucky (KY)

Law last amended: 2026 (eff. 2026-07-15) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: KRS 190.046; KRS 190.0462; KRS 190.057; KRS 190.062; KRS 190.070(1)(n); KRS 190.990(1)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 190.046(1); Class 7+ exception at (2)(d)4
Mfr-backed service contract	**Not addressed**	-	§ 190.046(2)(d)5 (Class 7+ component manufacturers only)
CPO warranty	**Not addressed**	-	§ 190.046(1)
Independent service contract	**Not addressed**	-	§ 190.046(1)

Hourly rate: 'Reasonable compensation', where the principal factor is 'the amount of money that the dealer is charging its other customers for the same type service or repair work'. Floor: not less than the dealer's charges to retail customers for like nonwarranty services (parts at least cost + 30% gross profit), or the warranty-compensation schedule filed with the Motor Vehicle Commission. The statute has no RO-sample formula.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Specific disapproval in writing within 30 days. Failure to meet mfr processing requirements is not grounds for denial or reduction if the dealer presents reasonable documentation (§ 190.046(6)). No unreasonable proof may be required (§ 190.046(2)(e))	KRS 190.046(3)(c)-(d)
Payment	30 days after approval. Dealer filing deadline: Mfr may not require submission sooner than 30 days after the dealer completes the work (90 days for Class 7+ vehicles, § 190.046(2)(d)9.). If a claim is incomplete or inaccurate, or a problem is found in audit, the mfr must promptly notify the dealer and extend the su…	
Chargebacks	12 months; fraud: With evidence that would lead a person of ordinary caution to believe…. Audits of warranty, recall, sales and incentive claims only within 12 months after payment, or the end of a program lasting 1 year or less, whichever is later. No documentation demands after that window. Before any chargeback, written notice with a copy of th…	KRS 190.046(7)(a)
Rate resubmission	Silent. Sample: No statutory labor-rate sample. Excluded: none listed.	KRS 190.046(2)(a)
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Forum: Motor Vehicle Commission administrative hearing (KRS 190.057, conduct….	KRS 190.046(3)(f)
Penalties	Civil action in Franklin Circuit Court for an injunction, actual damages, costs and a reasonable attorney's fee (KRS 190.062(1); the text says 'a violation of this section') The Motor Vehicle Commission may deny, suspend or revoke a mfr or distributor license and/or impose civil penalties up to $1,000 per violation for noncompliance wi…	KRS 190.062, 190.070(1)(n), 190.990(1)
Audit procedures	Audit climate score 31/100 (Elevated restrictiveness; chargeback limits 27/75 + process and oversight 4/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: yes; response period: 5 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(KRS 190.046(3)(c)-(d)): "All claims shall be either approved or disapproved … within thirty (30) days after their receipt … Any claims not specifically disapproved in writing within thirty (30) days after the receipt of the form shall be considered to be approved"*

Chargebacks *(KRS 190.046(7)(a)): "A manufacturer or distributor may only audit warranty, recall, sales, or incentive claims for a period of twelve (12) months following payment, or the end of a program which does not exceed one (1) year in length, whichever is later"*

Rate *(KRS 190.046(2)(a)): "the principal factor to be considered shall be the amount of money that the dealer is charging its other customers for the same type service or repair work."*

Factory time *(§ 190.046(1); Class 7+ exception at (2)(d)4): "Each manufacturer or distributor shall provide to its dealers with each model year a schedule of time allowances for the performance of warranty repair work and services, ... and shall be reasonable and adequate for the work to be performed."*

Notes

HEAVY-TRUCK REGIME, effective 7/15/2026 (2026 Ky. Acts ch. 83), for vehicles of Class 7 or higher under 49 C.F.R. 565.15: (2)(b) and (2)(c), incl. the retail floor, apply 'Except as provided in paragraph (d)'. Parts: at least actual acquisition cost incl. freight, handling and taxes, plus a 30% gross profit margin. Also reimbursed: technician and warranty-admin training/certification, warranty IT (diagnostic computers, software), and special tools. Payment is per repair (as agreed, or at retail-equivalent amounts) or periodic, at least annually, at the dealer's election. Labor: actual hours of a trained or certified tech are the basis, unless the mfr proves by clear and convincing evidence they were unreasonable; labor guides are not sufficient evidence. Component manufacturers are liable as if primary, and the OEM stays primarily liable. Parts may not be refused after testing unless re…

Source: official · https://apps.legislature.ky.gov/law/statutes/statute.aspx?id=57533 (KRS 190.046, effective July 15, 2026) · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Louisiana (LA)

Law last amended: 2021 (eff. 2021-08-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: La. R.S. 32:1262(A); La. R.S. 32:1262(B); La. R.S. 32:1258; La. R.S. 32:1259; La. R.S. 32:1260

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 32:1262(A)(3)
Mfr-backed service contract	**Not addressed**	-	§ 32:1261(A)(1)(w)(i) (anti-coercion only)
CPO warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 32:1262(A)(1)(a); 'warranty work' at (A)(1)(f)
Independent service contract	**Not addressed**	-	§ 32:1262(A)(8)(i) (excluded from rate calculation only)

Hourly rate: Not less than rates charged to retail customers for 'non-warranty qualifying repairs', meaning repairs of the kind the original new-vehicle warranty covers but on vehicles past its time or mileage limits. Labor rate = total labor charges ÷ hours, from all ROs containing 100 sequential qualifying ROs or all ROs in 90 consecutive days, whichever gives fewer, within 180 days. Presumed accurate; effective 45 days after receipt unless rebutted. At most once per 12 months. Protest…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Written notice of the grounds for disapproval ((A)(14)). No denial based solely on an incidental failure to meet a claim-processing requirement, a clerical error or an administrative technicality ((B)(3))	R.S. 32:1262(A)(14)
Payment	30 days after approval. Dealer filing deadline: No claim may be rejected as late if submitted within 60 days of the date the RO was written (B)(7).	
Chargebacks	12 months; fraud: Limits are not effective for intentionally false or fraudulent claims…. A paid claim may be charged back only if false or fraudulent, not properly made, unnecessary under accepted workmanship standards, or not reasonably substantiated under reasonable written requirements notified before the claim arose (B)(2). No chargeback wher…	R.S. 32:1262(B)(1)
Rate resubmission	Once in a twelve-month period (parts markup, labor rate, or both). Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Other (see text), Internal, Routine maintenance, Accessories, Tires, Alignments, Prep / reconditioning, State inspections, Government, Insurance-paid, Service-contract paid, Goodwill, Collision / body / glass.	R.S. 32:1262(A)(4)
Mfr response	45 days; no response = approved: Yes. Challenge: Reasonably substantiate that the submission is materially inaccurate. The rebuttal needs a full explanation, evidence validating each reason, a copy of all calculations, and a proposed adjusted rate based on the dealer's qualifying ROs Forum: Protest to the Louisiana Motor Vehicle Commission within 60 days of r….	R.S. 32:1262(A)(9)(a)
Penalties	LMVC protest for rate disputes ((A)(11)); the LMVC may award costs (R.S. 32:1260(C)). No express private damages action in §§ 1258-1262 Civil penalty up to $5,000 per day of violation, $10,000 per day for subsequent violations (R.S. 32:1260(A)). License denial, suspension or revocation for failure to comply with the chapter (R.S. 32:12…	La. R.S. 32:1258, 32:1259, 32:1260
Audit procedures	Audit climate score 33/100 (Elevated restrictiveness; chargeback limits 27/75 + process and oversight 6/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: No more than 2 sales-related and 2 service-relate…; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(R.S. 32:1262(A)(14)): "shall be paid within thirty days after approval and shall be approved or disapproved within thirty days after receipt. When any claim is disapproved, the dealer shall be notified in writing of the grounds for disapproval."*
Chargebacks *(R.S. 32:1262(B)(1)): "Any audit for warranty parts or service compensation shall be for the twelve-month period immediately following the date of the payment of the claim by the manufacturer or distributor."*
Rate *(R.S. 32:1262(A)(4)): "All consecutive repair orders that include one hundred sequential qualifying repair orders. (ii) All repair orders closed during any period of ninety consecutive days. … shall submit the option that produces the fewer number of repair orders"*
Factory time *(§ 32:1262(A)(3)): "Time allowances for the performance of warranty work shall be reasonable and adequate in relation to the nature and scope of the work for a qualified technician of ordinary skill to perform the work."*

Notes

'Warranty' expressly includes a new-vehicle warranty, a recall, or a CERTIFIED PRE-OWNED warranty ((A)(1)(a)). The rate floor keys to retail 'non-warranty qualifying repairs'. Time allowances must be 'reasonable and adequate' for a qualified technician of ordinary skill ((A)(3)). Free or reduced-cost parts earn the dealer's markup ((A)(12)). No unduly burdensome method may be required ((A)(13)). § 1262 does not apply to marine products, motorcycles, ATVs or RVs ((C)). (A) obligations for recreational products may be modified by contract ((A)(15)).

Source: official · https://legis.la.gov/Legis/LawPrint.aspx?d=321503 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Massachusetts (MA)

Law last amended: 2012 (eff. 2012-10-16) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Mass. Gen. Laws ch. 93B, § 9(b) (compensation, labor-rate method); ch. 93B, § 9(b)(4) (claims); § 9(c)-(h) (audits/chargebacks); ch. 93B, §§ 3(a), 9(i), 15 (remedies)
Flagged state.

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 9(b)(3); scope § 9(b)(1)
Mfr-backed service contract	**Conditional**	Factory time (reasonable/adequate standard where stated)	§ 9(b)(1)
CPO warranty	**Conditional**	Factory time (reasonable/adequate standard where stated)	§ 9(b)(1)
Independent service contract	**Not reached**	-	§ 9(b)(1)

Hourly rate: Retail rate: 100 sequential non-warranty customer-paid ROs or 60 consecutive days of them, whichever is less, all no older than 180 days; total labor sales divided by total labor hours. Rate is presumed fair and takes effect 30 days after the declaration, subject to audit and rebuttal. The dealer may sue, and the manufacturer bears the burden. One declaration per calendar year. Floor: 'not be less than the rate and price customarily charged for retail customer repairs'.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Disapproval must be in writing or by electronic transmission within 30 days of receipt; no statement of grounds required	ch. 93B, § 9(b)(4)
Payment	30 days after approval. Dealer filing deadline: Silent.	
Chargebacks	12 months; fraud: Audits may reach periods beyond 1 year if there is evidence of fraud…. Measured from claim payment or end of program period, whichever is later. Chargeback only if the claim was fraudulent or false, the repairs were improper or unnecessary, or the dealer failed reasonable written requirements then in effect (d). Before any charg…	ch. 93B, § 9(c); see also § 9(d)-(i)
Rate resubmission	once per calendar year. Sample: 100 ROs or 60 days (fewer of the two samples); ROs <= 180 days old. Excluded: Routine maintenance, Other (see text), Tires, Prep / reconditioning.	ch. 93B, § 9(b)(2)(ii); exclusions § 9(b)(2)(iii); frequenc…
Mfr response	30 days; no response = approved: Yes. Challenge: The declared average labor rate is presumed fair and reasonable. In court the manufacturer must prove the declared rate was 'inaccurate or unreasonable'. Forum: Court of competent jurisdiction; the dealer must file within 30 days….	ch. 93B, § 9(b)(2)(ii)
Penalties	§ 15(a): damages and equitable relief, including injunctive relief, in superior court or D. Mass. § 15(c): reasonable costs and attorneys' fees when the other side's claims or defenses were in bad faith. § 15(b): parties must meet and confer before suit. § 15(d): a settlement offer can cap the award.	Mass. Gen. Laws ch. 93B, §§ 3(a), 9(i), 15
Audit procedures	Audit climate score 40/100 (High restrictiveness; chargeback limits 25/75 + process and oversight 15/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: yes; frequency cap: none; written reasons: yes; response period: 30 days; internal appeal: no; held pending appeal: no; extrapolation: restricted; clerical-error protection: no; rate validation: limited to the submission.	

Statute quotes

Claims *(ch. 93B, § 9(b)(4)): "A claim not disapproved in writing or by means of electronic transmission not later than 30 days after receipt shall be considered approved and payment shall be made within 30 days."*
Chargebacks *(ch. 93B, § 9(c); see also § 9(d)-(i)): "for 1 year after the date on which a claim is paid or the end of any program period, whichever is later, and to charge back any amounts paid on claims identified in subsections (d) and (e)."*
Rate *(ch. 93B, § 9(b)(2)(ii); exclusions § 9(b)(2)(iii); frequenc…): "100 sequential nonwarranty, customer-paid service repair orders or 60 consecutive days of nonwarranty, customer-paid service repair orders, whichever is less, covering repair orders made not more than 180 days before the submission"*
Factory time *(§ 9(b)(3); scope § 9(b)(1)): "Time allowances for the diagnosis and performance of warranty work and service shall be reasonable and adequate for the work to be performed."*

Notes

Scope: warranty, maintenance plan, extended warranty, CPO or service contract issued by the manufacturer or distributor or its common entity, but not by a common entity that is not a manufacturer. Also recall, campaign, authorized goodwill, directive or bulletin work. Floor: 'not less than the rate and price customarily charged for retail customer repairs'. Time allowances must be 'reasonable and adequate'. Powersport and RV labor is paid at 'the rate normally charged by the motor vehicle dealer to the public'. RV parts get cost plus 30%. The labor window is 60 days, not the more common 90. The declaration takes effect by operation of law at 30 days, and the rebuttal/proposal deadline is also 30 days after submission. Dealers need not keep defective parts more than 90 days after claim submission. The 6-month filing window in § 9(j) covers incentive claims only; warranty claims have no s…

Source: official · https://malegislature.gov/Laws/GeneralLaws/PartI/TitleXV/Chapter93B/Section9 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Maryland (MD)

Law last amended: 2020 (eff. 2020-05-08) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Md. Code, Transp. § 15-212(c); Md. Code, Transp. § 15-212(b)(2)-(3); Md. Code, Transp. § 15-212(d); Md. Code, Transp. § 15-213

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 15-212(c)(1)(iii); rate at (c)(2)(i)
Mfr-backed service contract	**Not addressed**	-	§ 15-212(b)(3)(ii)
CPO warranty	**Not addressed**	-	§ 15-212(c)(1)(i)
Independent service contract	**Not addressed**	-	§ 15-212(c)(4)(v) (excluded from qualifying ROs only)

Hourly rate: Not less than 'the dealer's current labor rate for nonwarranty repairs of a like kind for retail customers', established by submitting whichever produces fewer ROs within 180 days: 100 qualifying sequential customer-paid ROs, or 90 days of qualifying ROs. Presumed accurate. The licensee must approve or rebut within 30 days; otherwise the rate takes effect on day 31. One submission per year. The licensee may verify effective rates annually and adjust prospectively.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. No written-grounds requirement stated. Failure to comply with a specific mfr requirement is not grounds for denial or reduction if the dealer presents documentation or other reasonable evidence that the repair and claim followed warranty guidelines ((c)(10)).…	Transp. § 15-212(c)(9)(i)-(iii)
Payment	30 days after approval. Dealer filing deadline: Silent.	
Chargebacks	9 months; fraud: The 9-month limit does not limit the right to audit any claim or to c.… Chargeback only of claims the mfr shows are false or unsubstantiated, within 9 months from payment or credit. Audits follow GAAP. No audit solely because the dealer requests retail-rate reimbursement ((c)(7)(v)). (c)(14) protections apply	Transp. § 15-212(c)(11)(i)
Rate resubmission	Not more than once in 1 year; a revision or supplement to correct or clarify is not a new submission. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Accessories, Discounted / promotional, Collision / body / glass, State inspections, Insurance-paid, Service-contract paid, Routine maintenance, Tires, Prep / reconditioning, Goodwill, Other (see text).	Transp. § 15-212(c)(3)(i)
Mfr response	30 days; no response = approved: Yes. Challenge: Rebuttal must consist of reasonable substantiating evidence that the declared rate is materially inaccurate. In any action, the issues are limited to material inaccuracy and the licensee bears the burden ((c)(6)(v), (vii)) Forum: MVA license action and Administrator orders (§ 15-212(b), (d)); civil.…	Transp. § 15-212(c)(6)(ii), (iv)
Penalties	Damages and reasonable attorneys' fees for financial injury from a subtitle violation, in any court of competent jurisdiction (§ 15-213) License refusal, suspension, revocation or nonrenewal for failing to comply with a written warranty agreement or to reasonably compensate for warranty work ((b)(2)-(3)). The Administrator may fine up…	Md. Code, Transp. §§ 15-212(b), (d); 15-213
Audit procedures	Audit climate score 38/100 (Elevated restrictiveness; chargeback limits 34/75 + process and oversight 4/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(Transp. § 15-212(c)(9)(i)-(iii)): "Approved or disapproved within 30 days of receipt. … A claim not approved or disapproved within 30 days of receipt shall be deemed approved. … Payment of or credit issued on a claim … shall be made within 30 days of approval."*
Chargebacks *(Transp. § 15-212(c)(11)(i)): "If a claim … is shown by the manufacturer or distributor to be false or unsubstantiated, the manufacturer or distributor may charge back the claim within 9 months from the date the claim was paid or credit issued."*
Rate *(Transp. § 15-212(c)(3)(i)): "whichever of the following produces fewer repair orders closed, as of the date of submission, within the preceding 180 days: 1. 100 qualifying sequential customer–paid repair orders; or 2. 90 days of qualifying customer–paid repair orders."*
Factory time *(§ 15-212(c)(1)(iii); rate at (c)(2)(i)): "A licensee shall specify in writing ... (iii) A time allowance for the performance of labor described in this paragraph that is reasonable and adequate."*

Notes

Warranty rules are in § 15-212(c); § 15-212.1 covers incentive and reimbursement programs, not warranty. Time allowances must be 'reasonable and adequate' ((c)(1)(iii)). The labor floor is the 'current labor rate for nonwarranty repairs of a like kind'; the statute gives a parts formula only, no labor arithmetic. Free parts earn the dealer's markup ((c)(5)). Anti-retaliation and uniformity rules are in (c)(7). (c)(1)-(7) do not apply to travel trailers or non-OEM motor-home living components ((c)(8)). The 9-month chargeback window is the shortest in this group, and audits themselves are not time-limited.

Source: official · https://mgaleg.maryland.gov/mgawebsite/Laws/StatuteText?article=gtr&section=15-212&enactments=false · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Maine (ME)

Law last amended: 2013 (eff. 2014-08-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: 10 M.R.S. § 1176; 10 M.R.S. § 1176-A; 10 M.R.S. § 1174(3)(C-3), (5); 10 M.R.S. § 1173(1); 10 M.R.S. §§ 1171-B(3), 1188; 10 M.R.S. § 1186
Flagged state.

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	§ 1176, first paragraph
Mfr-backed service contract	**Not addressed**	-	§ 1176, first paragraph
CPO warranty	**Not addressed**	-	§ 1176, first paragraph
Independent service contract	**Not addressed**	-	§ 1176, first paragraph

Hourly rate: The 'retail rate customarily charged by that franchisee for the same labor when not performed in satisfaction of a warranty', as long as the nonwarranty labor rate is 'routinely posted in a place conspicuous to its service customer'. The statute has no RO-sample method for labor; the 100-RO / 60-day method is for parts markup only.

Audit fields

Field	Rule	Pinpoint
Claim decision	60 days; late claim deemed approved: no rule in statute. Written notice within the 60-day period, with the specific reasons for disapproval	10 M.R.S. § 1176, ¶1
Payment	60 days after approval. Dealer filing deadline: A claim may be submitted within 90 days after the services are performed. The franchisor may not deny claim elements based on an incidental failure to meet a claim requirement, a clerical error or anothe…	
Chargebacks	Silent; fraud: Silent. The mfr may 'reasonably and periodically' audit to determine the validity of paid claims. The only express time limit (12 months before the audit-notice date) applies to audits of incentive payments, not warranty claims. Paid-claim elements may not be denied…	10 M.R.S. § 1176-A
Rate resubmission	Silent. Sample: No statutory labor-rate sample. Excluded: none listed.	10 M.R.S. § 1176, ¶1
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Forum: Complaint to the Maine Motor Vehicle Franchise Board (§ 1188; Board r….	10 M.R.S. § 1188(1)
Penalties	Damages and equitable relief incl. an injunction; mandatory attorney's fees and costs to a prevailing dealer (§ 1173(1)). Court costs and reasonable attorney fees, based on time, to a dealer who successfully sues on a disapproved claim (§ 1176) Franchise Board civil penalty of $1,000-$10,000 per violation; multiple transactions within…	10 M.R.S. §§ 1171-B(3), 1173(1), 1176, 1186, 1188
Audit procedures	Audit climate score 15/100 (Low restrictiveness; chargeback limits 12/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: limited to the submission.	

Statute quotes

Claims *(10 M.R.S. § 1176, ¶1): "must be paid within 60 days of its approval. All the claims must be either approved or disapproved within 60 days of their receipt. A claim may be submitted within 90 days after the performance of services."*
Chargebacks *(10 M.R.S. § 1176-A): "A manufacturer may reasonably and periodically audit a new motor vehicle dealer to determine the validity of paid claims or any charge-backs for customer or dealer incentives. Audits of incentive payments may be only for the 12-month period immediately preceding"*
Rate *(10 M.R.S. § 1176, ¶1): "reimburse the franchisee for any labor so performed at the retail rate customarily charged by that franchisee for the same labor when not performed in satisfaction of a warranty; as long as the franchisee's rate … is routinely posted"*
Factory time *(§ 1176, first paragraph): "the franchisor shall reimburse the franchisee for any labor so performed at the retail rate customarily charged by that franchisee for the same labor when not performed in satisfaction of a warranty"*

Notes

Parts: vehicles over 10,000 lb GVWR get only 'adequately and fairly compensate'; all others get the retail markup. The GVWR split does not apply to labor. Motor-home living components are excluded from retail parts pricing. No cost recovery. The franchisor may not restrict labor or parts in ways that impair warranty service. Recall labor and parts claims are processed and paid like § 1176 warranty claims (§ 1174(3)(C-3)). No denial of a warranty or recall claim discovered during a separate customer repair (§ 1174(5)). The statute has no time-allowance rule.

Source: official · https://legislature.maine.gov/statutes/10/title10sec1176.html · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Michigan (MI)

Law last amended: 2018 (eff. 2019-03-28) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Mich. Comp. Laws § 445.1577a (labor-rate method); Mich. Comp. Laws § 445.1577(1), (3)-(11) (compensation, claims, chargebacks, audits); Mich. Comp. Laws §§ 445.1580, 445.1581 (remedies)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 445.1577(1)
Mfr-backed service contract	**Not addressed**	-	§ 445.1577(1)
CPO warranty	**Not addressed**	-	§ 445.1577(1)
Independent service contract	**Not addressed**	-	§ 445.1577(1)

Hourly rate: The principal factor is the retail labor rates of similarly situated same line-make dealers in a comparable area of Michigan. A dealer seeking more than the agreed rate submits 100 consecutive and sequential non-warranty customer-paid ROs or 90 consecutive days of them, whichever is less, no older than 180 days. Labor rate is total labor sales divided by hours. The manufacturer has 45 days to approve or contest; the rate takes effect 30 days after approval. Disputes go to ci…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Must be 'specifically disapproved in writing' within 30 days after receipt of the claim form	Mich. Comp. Laws § 445.1577(3); (6)
Payment	30 days after approval. Dealer filing deadline: Silent. No right to resubmit is stated. A claim may not be denied for an incidental failure to follow a processing requirement, such as a…	
Chargebacks	12 months; fraud: 6 years after payment for fraudulent claims. Chargeback only if the claim is fraudulent, or false, unsubstantiated, lacking proper documentation, or shows an improper diagnosis process or repair procedure. The dealer has 14 days after chargeback notice to supply documentation ((5)). Before any chargebac…	Mich. Comp. Laws § 445.1577(4)(b); fraud (4)(a); (5), (10),…
Rate resubmission	once per calendar year. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Other (see text), Routine maintenance, Tires, Prep / reconditioning, Accessories, Collision / body / glass, State inspections, Goodwill, Government.	Mich. Comp. Laws § 445.1577a(2)(a); formula (2)(c); exclusi…
Mfr response	45 days; no response = approved: Yes. Challenge: Contest within 45 days by 'reasonably substantiating that the rate is inaccurate, incomplete, or unreasonable' in light of the principal factor: retail labor rates of similarly situated same line-make dealers in a comparable geographic area of Michigan ((1)(b… Forum: Circuit court of the dealer's county. File within 60 days after recei….	Mich. Comp. Laws § 445.1577a(2)(c)-(e)
Penalties	§ 445.1580(2): the manufacturer is liable for all damages the dealer sustains from a violation. (3): declaratory judgment. (4): all court costs and reasonable attorney fees. § 445.1581: injunctive relief or TRO, which may be granted without bond.	Mich. Comp. Laws §§ 445.1580, 445.1581
Audit procedures	Audit climate score 30/100 (Elevated restrictiveness; chargeback limits 19/75 + process and oversight 11/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: yes; frequency cap: none; written reasons: yes; response period: 45 days; internal appeal: yes; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(Mich. Comp. Laws § 445.1577(3); (6)): "Any claim not specifically disapproved in writing within 30 days after the manufacturer receives the claim form is considered approved, and the manufacturer shall pay the claim within 30 days."*
Chargebacks *(Mich. Comp. Laws § 445.1577(4)(b); fraud (4)(a); (5), (10),…): "the manufacturer may not charge back the amount paid if the claim is found to be false, unsubstantiated, to lack proper documentation, or show an improper diagnosis process or repair procedures more than 12 months after payment."*
Rate *(Mich. Comp. Laws § 445.1577a(2)(a); formula (2)(c); exclusi…): "100 consecutive and sequential nonwarranty customer-paid service repair orders that contain repairs for like services or all nonwarranty customer-paid service repair orders covering a period of 90 consecutive days, whichever is less."*
Factory time *(§ 445.1577(1)): "A manufacturer shall also include in the schedule of compensation a reasonable time allowance for labor for diagnostic work and repair work, included in the manufacturer's labor time allowance or listed as a separate compensable item."*

Notes

The deemed-approval sentence in (2)(c) ('If a manufacturer fails to disapprove within 45 days ... the declared retail rate is considered approved') sits among the parts-markup sentences. The labor sentences only require approval or disapproval within 45 days. Applying deemed approval to labor is a reasonable reading but an inference. The time allowance comes from the manufacturer's schedule; the dealer may request more diagnostic or repair time, and the manufacturer 'shall not unreasonably deny' it. The reimbursement duty covers recall and warranty service required by the manufacturer. The Act's promotion/incentive claims run on a 15-day payment clock ((9)). Act 118 has no administrative penalty.

Source: official · https://www.legislature.mi.gov/Laws/MCL?objectName=mcl-445-1577 ; https://www.legislature.mi.gov/Laws/MCL?objectName=mc… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Minnesota (MN)

Law last amended: 2023 (eff. 2023-10-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Minn. Stat. § 80E.041, subds. 1-7 (compensation; labor rate); Minn. Stat. § 80E.041, subd. 8 (claims, audit, chargeback); Minn. Stat. §§ 80E.16 (civil penalty), 80E.17 (civil remedies)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Independent/retail time guide	subd. 4(a)
Mfr-backed service contract	**Not addressed**	-	subd. 1
CPO warranty	**Not addressed**	-	subd. 1
Independent service contract	**Not addressed**	-	subd. 1

Hourly rate: At the dealer's election, the effective non-warranty labor rate: total customer labor charges on qualifying repairs divided by labor hours, from 100 sequential ROs with warranty-like repairs or 90 consecutive days, whichever is less, no older than 180 days. The manufacturer may disapprove in writing within 30 days, with substantiation against comparable same line-make dealers; otherwise the rate is approved. Internal dispute resolution comes first, then suit under § 80E.17….

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Must be 'specifically disapproved in writing' within 30 days after receipt. No denial or chargeback based solely on a clerical error or technicality that does not question legitimacy.	Minn. Stat. § 80E.041, subd. 8(a), (c)
Payment	30 days after approval. Dealer filing deadline: Silent. Resubmit within 30 days after notice of a denial or chargeback based on an incidental processing failure, clerical error or admin…	
Chargebacks	12 months; fraud: Silent. Audit right lasts 'a period of one year'. Chargebacks only for claims 'not reasonably substantiated or fraudulent', and the manufacturer bears the burden of proof. The same audit and chargeback limits apply to other incentive and reimbursement programs. No ch…	Minn. Stat. § 80E.041, subd. 8(a)-(c)
Rate resubmission	once per year. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Other (see text), Engine / transmission assembly, Routine maintenance, Tires, Prep / reconditioning, Accessories.	Minn. Stat. § 80E.041, subd. 4(a); sample subd. 2(a); exclu…
Mfr response	30 days; no response = approved: Yes. Challenge: Written disapproval with 'a reasonable substantiation that the effective nonwarranty labor rate submission is inaccurate, incomplete, or unreasonable in light of a comparison to the retail rate charged by other similarly situated franchised' same line-make de… Forum: Civil suit under § 80E.17, filed within 60 days after receiving the p….	Minn. Stat. § 80E.041, subd. 4(b)-(c); subd. 7
Penalties	§ 80E.17: injunction against further violations, actual damages, and costs and disbursements including reasonable attorney's fees § 80E.16 subd. 1: fine up to $2,000 per violation of § 80E.041, and up to $25,000 for failing to comply with a final judgment or order. Imposed in a civil action brought by the Attorney General.	Minn. Stat. §§ 80E.16, 80E.17
Audit procedures	Audit climate score 21/100 (Moderate restrictiveness; chargeback limits 19/75 + process and oversight 2/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 30 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(Minn. Stat. § 80E.041, subd. 8(a), (c)): "Any claims not specifically disapproved in writing within 30 days after the manufacturer receives them are deemed to be approved and payment must follow within 30 days"*
Chargebacks *(Minn. Stat. § 80E.041, subd. 8(a)-(c)): "the manufacturer retains the right to audit the claims for a period of one year and to charge back any amounts paid on claims not reasonably substantiated or fraudulent claims."*
Rate *(Minn. Stat. § 80E.041, subd. 4(a); sample subd. 2(a); exclu…): "The effective nonwarranty labor rate is determined by dividing the total customer labor charges for qualifying nonwarranty repairs in the repair orders submitted under subdivision 2 by the total number of labor hours that generated those sales."*
Factory time *(subd. 4(a)): "Compensation for warranty labor must equal the dealer's effective nonwarranty labor rate multiplied by the time guide used by the dealer for nonwarranty customer-paid service repair orders."*

Notes

The subd. 4 method applies only 'at the election of the dealer'. Otherwise labor pay must only be 'reasonable'. Since 10/1/2023, labor hours come from the dealer's own customer-pay time guide, not the manufacturer's allowance. Where no guide exists, actual time is paid, but not less than the time charged to retail customers. All diagnostic time counts, including time spent with manufacturer technical assistance. The statute sets no effective date for an approved rate. Cost recovery is limited: 60 days' notice with substantiation, and it is suspended while a dispute is pending (subd. 6). 'Manufacturer' includes distributors and engine manufacturers (subd. 10).

Source: official · https://www.revisor.mn.gov/statutes/cite/80E.041 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Missouri (MO)

Law last amended: 2023 (eff. 2023-08-28) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Mo. Rev. Stat. § 407.828.1-.2, .7, .9 (compensation; exclusions; rate requests); Mo. Rev. Stat. § 407.828.4, .10-.12 (claims; audits/chargebacks; AHC complaints); Mo. Rev. Stat. §§ 407.822, 407.835; § 301.562 (remedies; license discipline)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 407.828.2
Mfr-backed service contract	**Not addressed**	-	§ 407.828.1
CPO warranty	**Not addressed**	-	§ 407.828.1
Independent service contract	**Not addressed**	-	§ 407.828.1

Hourly rate: Principal factor: 'the prevailing wage rates being charged for similar labor and service by the franchisee' to retail customers for non-warranty work. The statute sets no RO sample size or formula. Subsection 7 lists work excluded from the retail-rate calculation. The franchisee may request a rate change at most twice per calendar year and may challenge denials at the AHC within 60 days.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Must be 'specifically disapproved in writing' within 30 days after receipt. Written notice of an adverse decision starts the dealer's 60-day window to complain to the Administrative Hearing Commission.	Mo. Rev. Stat. § 407.828.4; .10; .12
Payment	30 days after approval. Dealer filing deadline: No statutory deadline. The franchisor may not require a claim to be submitted sooner than 30 days after the work is completed.. If a claim is incomplete or inaccurate, the franchisor must promptly notify the dealer, and the filing deadline extends at least…	
Chargebacks	12 months; fraud: 2 years after payment for suspected fraudulent claims, if the franchi…. Only unsubstantiated claims may be charged back. No documentation demands more than 12 months after payment. Before any chargeback, reimbursement or credit, the franchisor must give written notice with a copy of the audit and the detailed reason for each item…	Mo. Rev. Stat. § 407.828.11(1)-(3); .12
Rate resubmission	twice per calendar year (requests for a different labor rate or parts rate). Sample: No statutory labor-rate sample. Excluded: Discounted / promotional, Other (see text), Engine / transmission assembly, Routine maintenance, Tires, Prep / reconditioning.	Mo. Rev. Stat. § 407.828.9; exclusions .7; principal factor…
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Principal factor for reasonable labor compensation: 'the prevailing wage rates being charged for similar labor and service by the franchisee' to retail customers for nonwarranty work (the dealer's own rates since the 2023 amendment) Forum: Administrative Hearing Commission (§ 407.822). File within 60 days af….	Mo. Rev. Stat. § 407.828.12; principal factor § 407.828.2
Penalties	§ 407.835.1: actual damages plus litigation expenses, including expert fees and attorney fees, and injunctive relief. § 407.835.2: punitive damages for willful violations. Arbitration mandates, jury waivers, out-of-state forums and fee-shifting to the dealer are void (.3). AHC complaint with automatic stay (§§ 407.822, 407.828.12). Dep…	Mo. Rev. Stat. §§ 407.822, 407.828.12, 407.835; § 301.562
Audit procedures	Audit climate score 37/100 (Elevated restrictiveness; chargeback limits 30/75 + process and oversight 7/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: yes; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(Mo. Rev. Stat. § 407.828.4; .10; .12): "Any claims not specifically disapproved in writing within thirty days after the receipt of the form shall be considered to be approved and payment shall be made within fifteen days thereafter."*

Chargebacks *(Mo. Rev. Stat. § 407.828.11(1)-(3); .12): "A franchisor may only audit warranty, sales, or incentive claims and charge-back to the franchisee unsubstantiated claims for a period of twelve months following payment, subject to all of the provisions of this section."*

Rate *(Mo. Rev. Stat. § 407.828.9; exclusions .7; principal factor…): "A franchisee shall not request a franchisor to approve a different labor rate or parts rate more than twice in one calendar year."*

Factory time *(§ 407.828.2): "The schedule shall also include reasonable and adequate time allowances for the diagnosis and performance of preparation, delivery, and warranty service to be performed in a careful and professional manner."*

Notes

The statute has no labor-rate declaration procedure, sample or response deadline. Disputes run through the AHC complaint process. Time comes from the franchisor schedule, which must include 'reasonable and adequate time allowances'. Deemed-approved claims are paid in 15 days (it was 10 before 2023 S.B. 398). Dealers need not keep defective parts more than 30 days after submission. Free parts are paid at average markup, except whole engine, propulsion engine (including EV battery) and transmission assemblies (.8). Incentive claims are paid within 10 days of approval (.6).

Source: official · https://revisor.mo.gov/main/OneSection.aspx?section=407.828 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Mississippi (MS)

Law last amended: 2021 (eff. 2021-07-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Miss. Code Ann. §§ 63-17-85(j), 63-17-86 (compensation; labor-rate method); Miss. Code Ann. § 63-17-117 (warranty audits, chargebacks); Miss. Code Ann. §§ 63-17-85 (license sanctions, civil penalty), 63-17-101, 63-17-119 (damages)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 63-17-85(j)
Mfr-backed service contract	**Not addressed**	-	§ 63-17-55(ee)
CPO warranty	**Conditional**	Factory time (reasonable/adequate standard where stated)	§ 63-17-55(ee)
Independent service contract	**Not addressed**	-	§ 63-17-55(ee)

Hourly rate: At the dealer's written request, the retail rate is total labor charges on qualified repairs divided by hours. The sample is all consecutive ROs containing 100 sequential qualified-repair ROs, or all ROs closed in 90 consecutive days, whichever gives fewer, no older than 180 days. The rate is presumed reasonable and takes effect 45 days after receipt unless the manufacturer rebuts once. The dealer may protest to the Motor Vehicle Commission, where the manufacturer bears the…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Written notice of disapproval within the 30 days, stating 'the specific grounds upon which the disapproval is based'. No denial based solely on an incidental clerical or administrative failure that does not question legitimacy (§ 63-17-117(3)).	Miss. Code Ann. § 63-17-85(j) (codified text, Justia 2025);…
Payment	30 days after approval. Dealer filing deadline: Silent. None stated for warranty claims. The 60-day amended/supplemental-claim right in § 63-17-117(3) covers incentive claims only.	
Chargebacks	12 months; fraud: Audit and chargeback limits 'shall not be effective in the case of in…. The window runs from payment of the disputed claim. Chargeback only if the manufacturer shows by a preponderance of the evidence that the claim was false or fraudulent, the repairs were improper or unnecessary under generally accepted workmanship standards, o…	Miss. Code Ann. § 63-17-117(1); (2), (4)
Rate resubmission	once per twelve-month period. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Other (see text), Internal, Routine maintenance, Accessories, Tires, Alignments, Prep / reconditioning, State inspections, Government, Insurance-paid, Collision / body / glass, Goodwill.	Miss. Code Ann. § 63-17-86(1); formula (2); frequency (3);…
Mfr response	45 days; no response = approved: Yes. Challenge: The submitted rate is presumed reasonable. To rebut, the manufacturer must reasonably substantiate that it is 'materially incomplete, materially inaccurate or ... materially unreasonable'. Forum: Protest to the Mississippi Motor Vehicle Commission within 60 days of….	Miss. Code Ann. § 63-17-86(5)-(6)
Penalties	§ 63-17-119(1): a dealer with pecuniary loss from a violation may recover damages plus costs, including reasonable attorneys' fees. Out-of-state venue and jury waivers are void. § 63-17-101: a licensee may recover reasonable damages and attorney fees for another licensee's willful noncompliance. § 63-17-85(j)-(k): Motor Vehicle Commiss…	Miss. Code Ann. §§ 63-17-85, 63-17-101, 63-17-119
Audit procedures	Audit climate score 27/100 (Moderate restrictiveness; chargeback limits 27/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(Miss. Code Ann. § 63-17-85(j) (codified text, Justia 2025);…): "All claims made by motor vehicle dealers hereunder for such labor and/or parts shall be paid within thirty (30) days following their approval. All such claims shall be either approved or disapproved within thirty (30) days after their receipt"*
Chargebacks *(Miss. Code Ann. § 63-17-117(1); (2), (4)): "Any audit for warranty parts or service compensation shall be performed within the twelve-month period immediately following the date of the payment of the disputed claim by the manufacturer or distributor."*
Rate *(Miss. Code Ann. § 63-17-86(1); formula (2); frequency (3);…): "all consecutive repair orders that include one hundred (100) sequential repair orders reflecting qualified repairs, or all repair orders closed during any period of ninety (90) consecutive days, whichever produces the fewer number of repair orders"*
Factory time *(§ 63-17-85(j)): "Time allowances for the diagnosis and performance of warranty work shall be reasonable and adequate for such work to be performed using the actual time required by a qualified technician of ordinary skill to perform such work."*

Notes

The official Mississippi Code is Lexis-only. Text comes from the enrolled 2021 HB 746 and matches the Justia 2025 mirror; the codified § 63-17-85(j) drops 'incidental expenses'. The statute has no deemed-approval rule for warranty claims. The payment clock runs only from approval. Dealers may not charge the manufacturer a labor rate 'in excess of the rate charged to its retail customers'. Time allowances must be 'reasonable and adequate' using 'the actual time required by a qualified technician of ordinary skill'. 'Warranty work' covers new-vehicle warranty, recall and CPO warranty, not service contracts. Recall and stop-sale claims follow the same § 63-17-85(j) limits (§ 63-17-73(4)(f)). The MMVC agency website still shows pre-2021 text.

Source: enrolled_act · https://billstatus.ls.state.ms.us/documents/2021/html/HB/0700-0799/HB0746SG.htm (enrolled HB 746, Laws 2021 ch. 315). C… · Confidence: high.
Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Montana (MT)

Law last amended: 2025 (eff. 2025-10-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Mont. Code Ann. § 61-4-213(1)-(9), (13) (reimbursement; labor-rate method; definitions); Mont. Code Ann. § 61-4-213(12) (claims, chargebacks, audits); Mont. Code Ann. §§ 61-4-210, 61-4-216, 61-4-217 (penalties; administrative hearings; standing/remedies)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Independent/retail time guide	§ 61-4-213(1)(a)(i)
Mfr-backed service contract	**Not addressed**	-	§ 61-4-213(13)(f)
CPO warranty	**Required**	Independent/retail time guide	§ 61-4-213(13)(f)
Independent service contract	**Not addressed**	-	§ 61-4-213(13)(f)

Hourly rate: Prevailing retail labor rate: total labor charges on qualified repairs divided by total hours charged. The sample is all consecutive ROs containing 100 sequential qualified-repair ROs, or 90 consecutive days, whichever gives fewer, no older than 180 days. The rate takes effect 30 days after the franchisor receives notice unless it objects once, with full substantiation, that the rate is 'materially inaccurate'. The franchisor bears the burden, and any resolution is retroacti…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Written notice of the grounds for disapproval. No denial or reduction where the dealer gave reasonably sufficient documentation of compliance with the manufacturer's known written policies. No denial based solely on a clerical error or administrative technica…	Mont. Code Ann. § 61-4-213(12)(a)-(d)
Payment	30 days after approval. Dealer filing deadline: Silent.	
Chargebacks	12 months; fraud: Silent. A paid claim may be charged back only if it was false or fraudulent, the labor was not properly performed, or the parts or labor were unnecessary. The 12-month audit bar ((12)(e)) states no fraud exception. Conducting or threatening a warranty or other servic…	Mont. Code Ann. § 61-4-213(12)(b), (e); (8)(e)(v)
Rate resubmission	once per 12-month period. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Routine maintenance, Tires, Alignments, Government, Insurance-paid, Service-contract paid, Discounted / promotional, Internal, Accessories, Collision / body / glass, State inspections, Prep / reconditioning, Other (see text), Goodwill.	Mont. Code Ann. § 61-4-213(1)(a)(iii), (1)(b); formula (2);…
Mfr response	30 days; no response = approved: Yes. Challenge: The only permitted ground is that the declared rate is 'materially inaccurate'. In a proceeding the issue is limited to material inaccuracy, and the franchisor bears the burden of proof. Forum: Court, or a contested-case proceeding before 'the department' (§§ 61-….	Mont. Code Ann. § 61-4-213(6)(a)-(c), (7), (8)(a)
Penalties	§ 61-4-210(3): three times the pecuniary loss plus costs, including reasonable attorney fees. § 61-4-217: actual damages, declaratory or injunctive relief, and costs and attorney fees to the prevailing party; damages up to 3x for willful violations. Dealer associations have standing. § 61-4-216: administrative hearing on § 61-4-213 cla…	Mont. Code Ann. §§ 61-4-210, 61-4-216, 61-4-217
Audit procedures	Audit climate score 33/100 (Elevated restrictiveness; chargeback limits 27/75 + process and oversight 6/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 60 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: limited to the submission.	

Statute quotes

Claims *(Mont. Code Ann. § 61-4-213(12)(a)-(d)): "All claims for reimbursement must be approved or disapproved within 30 days after receipt of the claim by the motor vehicle franchisor."*

Chargebacks *(Mont. Code Ann. § 61-4-213(12)(b), (e); (8)(e)(v)): "A franchisor may not audit a claim after the expiration of 12 months following the payment of the claim."*

Rate *(Mont. Code Ann. § 61-4-213(1)(a)(iii), (1)(b); formula (2);…): "whichever of the following produces the fewer number of repair orders, all of which must be for repairs made no more than 180 days before the submission"*

Factory time *(§ 61-4-213(1)(a)(i)): "using the franchisor's labor time guide or the labor time guide used by the dealer for labor furnished other than pursuant to warranty, at the dealer's election"*

Notes

The dealer may be paid on the franchisor's labor time guide or 'the labor time guide used by the dealer' for customer-pay work, at the dealer's election ((1)(a)(i)). Subsection (6)(a) cross-references the notice 'referred to in subsection (2)', but the notice duty is in (4), an apparent drafting slip. 'Warranty' means new-vehicle warranty, predelivery preparation, recall or CPO warranty issued or administered by the franchisor ((13)(f)). RV parts are paid at wholesale plus at least 30% handling ((10)). Franchisor cost recovery is barred ((8)(b)). The claims clock carries no deemed-approval language.

Source: official · https://mca.legmt.gov/bills/mca/title_0610/chapter_0040/part_0020/section_0130/0610-0040-0020-0130.html · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · North Carolina (NC)

Law last amended: 2025 (eff. 2025-07-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: N.C. Gen. Stat. § 20-305.1; N.C. Gen. Stat. § 20-301 (Commissioner petitions); N.C. Gen. Stat. §§ 20-294, 20-308, 20-308.1

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 20-305.1(a); see (a5)
Mfr-backed service contract	**Conditional**	Statute silent on time / not established	§ 20-305.1(a)
CPO warranty	**Not addressed**	-	§ 20-305.1(a)
Independent service contract	**Not addressed**	-	§ 20-305.1(a)

Hourly rate: Not less than the dealer's 'current retail labor rate'. Dealer may declare it from 100 sequential non-warranty customer-paid ROs containing warranty-like parts or 60 consecutive days of such ROs, whichever is less (within 180 days). Presumed accurate. Manufacturer may rebut within 30 days by substantiating inaccuracy. Protest goes to the DMV Commissioner.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. dealer notified in writing of the grounds for disapproval; no denial/reduction if dealer documents a good-faith attempt to follow written procedures and that the work was actually performed	§ 20-305.1(b1)
Payment	30 days after submission. Dealer filing deadline: Silent.	
Chargebacks	12 months; fraud: Limits 'shall not be effective in the case of fraudulent claims'. For…. Non-cause audits once per 12 months. Chargeback only if the claim was false/fraudulent, the repair was improper or unnecessary, or the claim was not reasonably substantiated. Documentation-procedure chargebacks need a repeat violation within 12 months plus a…	§ 20-305.1(b), (b1), (b4), (c)
Rate resubmission	Silent. Sample: 100 ROs or 60 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Insurance-paid, Engine / transmission assembly, Routine maintenance, Alignments, Tires, Prep / reconditioning, Other (see text).	§ 20-305.1(a1), (a2)
Mfr response	30 days; no response = approved: Yes. Challenge: Accuracy only: must reasonably substantiate that the submission is 'inaccurate'. Since 7/1/2025 there is no 'competitive' or market-comparison test. Forum: DMV Commissioner protest (within 30 days of proposal); manufacturer b….	§ 20-305.1(a1) (rate 'presumed to be accurate'; 'deemed app…
Penalties	Damages and equitable/injunctive relief. Punitive damages, attorneys' fees and costs if willful, malicious or wanton, or for continued multiple violations (§ 20-308.1). Commissioner petition/hearing with binding decision (§§ 20-301, 20-305.1(c)). License denial, suspension, probation or revocation for willful noncompliance with the Art…	N.C. Gen. Stat. §§ 20-294, 20-301, 20-305.1(c), 20-308, 20-308.1
Audit procedures	Audit climate score 54/100 (Very high restrictiveness; chargeback limits 42/75 + process and oversight 12/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: yes; selection basis disclosed: yes; frequency cap: Once in any 12-month period, separately for non-c…; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: limited to the submission.	

Statute quotes

Claims *(§ 20-305.1(b1)): "shall be paid by the manufacturer within 30 days after receipt of claim from the dealer ... Any claim not specifically disapproved in writing within 30 days after receipt shall be considered approved and payment is due immediately."*
Chargebacks *(§ 20-305.1(b), (b1), (b4), (c)): "Any audit, other than an audit conducted for cause, for warranty or recall parts or service compensation ... shall only be for the 12-month period immediately following the date of the payment of the claim"*
Rate *(§ 20-305.1(a1), (a2)): "may be established at the election of the dealer by the dealer submitting to the manufacturer or distributor 100 sequential nonwarranty customer-paid service repair orders which contain warranty-like parts, or 60 consecutive days of nonwarranty customer-paid service repair orders"*
Factory time *(§ 20-305.1(a); see (a5)): "The disclosure required under this subsection shall include the schedule of compensation to be paid the dealers for parts, work, and service ... and the time allowances for the performance of the work and service."*

Notes

S.L. 2025-41 made several changes. It deleted 'time allowances ... shall be reasonable and adequate' and the 'competitive' proviso, added (a5) (dealer requests to modify time allowances), and changed the rebuttal standard to 'inaccurate'. It also NARROWED 'audit conducted for cause' by deleting the statistical-outlier and documentation-violation grounds. No limit on how often a rate can be declared. Motorcycles are excluded from (a), (b), (b1), (d), (e) by (f). Component-parts manufacturers are covered by (f1). RV living-facility parts are excluded from the parts-rate rule in (b).

Source: official · https://www.ncleg.gov/EnactedLegislation/Statutes/HTML/BySection/Chapter_20/GS_20-305.1.html · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · North Dakota (ND)

Law last amended: 2025 (eff. 2025-08-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: N.D. Cent. Code § 51-07-29; N.D. Cent. Code § 51-07-02.4 (audits/chargebacks)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Independent/retail time guide	§ 51-07-29(1)(b)
Mfr-backed service contract	**Required**	Independent/retail time guide	§ 51-07-29(1)(a)(5), (7)
CPO warranty	**Required**	Independent/retail time guide	§ 51-07-29(1)(a)(6)
Independent service contract	**Conditional**	Independent/retail time guide	§ 51-07-29(1)(a)

Hourly rate: Not less than the dealer's average retail labor rate: total labor sales ÷ total hours from 100 sequential non-warranty customer-paid ROs with warranty-like parts or 90 consecutive days, whichever is less (within 180 days). Presumed fair and effective 30 days after receipt. Manufacturer may contest once, within 30 days, with calculations and evidence; the dispute goes to court and the manufacturer bears the burden. A rate may be demanded no more than once every 12 months.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. written disapproval within 30 days with a contemporaneous detailed written explanation of the reason	§ 51-07-29(2)
Payment	30 days after approval. Dealer filing deadline: within 90 days from completion of the services. 30 days from receipt of disapproval to resubmit a corrected claim	
Chargebacks	12 months; fraud: Section 'does not apply to fraudulent claims'. Chargeback only if the manufacturer proves the claim false or fraudulent, or that the dealer did not substantially comply with reasonable written procedures. Applies to all incentive/reimbursement programs subject to audit. § 51-07-29(11)(c)(3) preserves audi…	§ 51-07-02.4(1)-(3)
Rate resubmission	no demand within 12 months of the last labor-rate declaration (applies to dealer, manufacturer or distributor). Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Other (see text), Routine maintenance, Tires, Prep / reconditioning, Alignments, Internal, Accessories.	§ 51-07-29(4)-(6), (9)
Mfr response	30 days; no response = approved: Yes. Challenge: Material accuracy of the calculated rate only (the pre-2025 comparison to dealers in an economically similar area was deleted) Forum: court of competent jurisdiction (dealer action); manufacturer bears b….	§ 51-07-29(7)(a)-(d)
Penalties	Rate-dispute action: a winning dealer gets the rate retroactive to 30 days after receipt, plus all expenses including reasonable attorney fees. Willful violation: three times the retroactive rate amount (§ 51-07-29(7)(d)(2)). None identified in ch. 51-07	N.D. Cent. Code § 51-07-29(7)(d)
Audit procedures	Audit climate score 15/100 (Low restrictiveness; chargeback limits 15/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 51-07-29(2)): "A dealer shall submit a claim for reimbursement for services within ninety days from the completion of the services ... The dealer has thirty days from the receipt of the disapproval to resubmit a corrected claim."*
Chargebacks *(§ 51-07-02.4(1)-(3)): "A manufacturer may not conduct a warranty or incentive audit or seek a chargeback on a warranty or incentive payment more than one year after the date of that warranty or incentive payment."*
Rate *(§ 51-07-29(4)-(6), (9)): "one hundred sequential nonwarranty customer-paid service repair orders that contain warranty-like parts or ninety consecutive days ... dividing the amount of the dealer's total labor sales by the number of total hours that generated those sales"*
Factory time *(§ 51-07-29(1)(b)): "may not be less than the average retail rate charged by the dealer as provided under subsection 5 multiplied by the time guide used by the dealer for nonwarranty customer-paid service repair orders."*

Notes

Since 8/1/2025, labor is paid at the retail rate x the dealer's named retail time guide (actual time if no guide). The covered list includes extended warranty, CPO warranty, manufacturer-sponsored service contracts, maintenance programs, goodwill and PDI. Cost recovery and surcharges are barred (3). § 51-07-29 applies to component warrantors (12). Commercial truck parts/equipment dealers are handled separately in § 51-07-31.

Source: official · https://www.ndlegis.gov/cencode/t51c07.pdf ; session law: https://ndlegis.gov/assembly/69-2025/session-laws/documents/S… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Nebraska (NE)

Law last amended: 2026 (eff. 2026-10-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Neb. Rev. Stat. § 60-1438(1)-(2) (compensation; labor-rate factors; RO test); Neb. Rev. Stat. § 60-1438(4)-(5) (claims, audits, chargebacks); Neb. Rev. Stat. §§ 60-1440 (damages/equitable relief), 60-1411.02 and 60-1415 (license discipline, fines)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 60-1438(2)(a)
Mfr-backed service contract	**Not addressed**	-	§ 60-1438(1)
CPO warranty	**Not addressed**	-	§ 60-1438(1)
Independent service contract	**Not addressed**	-	§ 60-1438(1)

Hourly rate: Principal factor: 'the prevailing wage rates being paid by dealers in the community'. The floor is the dealer's own rates for like service to retail or fleet customers, excluding listed maintenance work. There is no statutory labor-rate declaration formula; the 100 ROs/90 days/180-day method is written for parts markup. The manufacturer may request up to 100 additional ROs from a 90-day window to test the declared 'retail labor rate' and may adjust if the dealer's retail rat…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Must be specifically disapproved in writing within 30 days. Denial is allowed only for a nonwarranty repair, lack of documentation, failure to comply with specific substantive terms of the warranty compensation program, or a bona fide belief based on competen…	Neb. Rev. Stat. § 60-1438(4)-(5)
Payment	30 days after approval. Dealer filing deadline: within 6 months after completing the work. After a clerical-error rejection the dealer 'may resubmit a corrected claim in a timely manner'. No denial based solely on an inc…	
Chargebacks	12 months; fraud: 4 years after payment if the manufacturer has reasonable cause (a bon…. Chargeback of an audited claim only after the dealer has had notice and an opportunity to participate in all franchisor internal appeal processes and all available legal processes. The 30-day approve-and-pay rule does not bar chargebacks for fraudulent paid c…	Neb. Rev. Stat. § 60-1438(5)
Rate resubmission	Silent. Sample: No statutory labor-rate sample. Excluded: Routine maintenance, Tires, Other (see text).	Neb. Rev. Stat. § 60-1438(2)(a); RO test (2)(c); negotiated…
Mfr response	30 days; no response = approved: no rule in statute. Challenge: The manufacturer may adjust subsequent rates if the dealer's nonwarranty customer rates are 'less than the rates currently being paid' for warranty work (test: whether declared rates are 'materially different') Forum: Complaint to the Nebraska Motor Vehicle Industry Licensing Board (§ 6….	Neb. Rev. Stat. § 60-1438(2)(c)(i)-(iv), (2)(d)
Penalties	§ 60-1440: damages and equitable relief, including injunctive relief. A dealer that prevails against a manufacturer is awarded reasonable attorney's fees and costs. The court shall award damages for willful or wanton violations and may add costs and fees for continued multiple violations. § 60-1411.02: the Board may deny, revoke or sus…	Neb. Rev. Stat. §§ 60-1411.02, 60-1415, 60-1440
Audit procedures	Audit climate score 42/100 (High restrictiveness; chargeback limits 42/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(Neb. Rev. Stat. § 60-1438(4)-(5)): "All claims made by a new motor vehicle dealer pursuant to this section for labor and parts shall be made within six months after completing the work and shall be paid within thirty days after their approval."*

Chargebacks *(Neb. Rev. Stat. § 60-1438(5)): "The manufacturer has the right to audit the claims for one year after payment, except that if the manufacturer has reasonable cause to believe that a claim submitted by a dealer is intentionally false or fraudulent"*

Rate *(Neb. Rev. Stat. § 60-1438(2)(a); RO test (2)(c); negotiated…): "In determining prevailing wage rates, the rate of compensation for labor for that portion of repair orders for all recommended maintenance services shall not be used"*

Factory time *(§ 60-1438(2)(a)): "Time allowances for the diagnosis and performance of warranty work and service shall be adequate for a qualified technician to perform the work or service."*

Notes

Time allowances must be 'adequate for a qualified technician' (LB 667). The franchisor may not unreasonably deny a documented request to change a uniform time allowance or add time for a specific vehicle. The duties also bind separate warrantors of engines, transmissions and rear axles ((6)). The parts markup may be changed at most twice per calendar year. The statute sets no labor-rate change limit. DATE-SENSITIVE: from 10/1/2026 (LB 972) § 60-1438 no longer applies to recreational vehicles. RV warranty compensation, audits and claims then fall under §§ 60-1460 to 60-1466 of the new RV Act, which this record does not cover.

Source: official · https://nebraskalegislature.gov/laws/statutes.php?statute=60-1438 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · New Hampshire (NH)

Law last amended: 2013 (eff. 2013-09-23) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: N.H. Rev. Stat. Ann. § 357-C:5, II(a)-(b) (compensation; parity; rate declarations); N.H. Rev. Stat. Ann. § 357-C:5, II(b)(1), II(d) (claims; audits; chargebacks); N.H. Rev. Stat. Ann. §§ 357-C:12 (Board; civil action), 357-C:15 (misdemeanor)
Flagged state.

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 357-C:5, II(b)(1)
Mfr-backed service contract	**Required**	Factory time (reasonable/adequate standard where stated)	§ 357-C:5, II(b)(1); II(b)(1)(A)
CPO warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 357-C:5, II(b)(1)
Independent service contract	**Not reached**	-	§ 357-C:5, II(b)(1)

Hourly rate: Floor: the manufacturer may not pay 'an amount of money for warranty work that is less than that charged by the dealer to the retail customers of the dealer for non-warranty work of like kind'. The 100 sequential ROs / 90 days / 180-day declaration procedure in II(b)(1)(B)(ii) is written for parts markup. The statute refers to an 'average labor rate' (once per calendar year) and to 'labor reimbursement' on protest, but gives no labor-rate formula. Declared rates must be reas…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. The rejection notice must carry 'a specific statement of the grounds'. No denial based solely on an incidental processing failure, clerical error or administrative technicality.	N.H. Rev. Stat. Ann. § 357-C:5, II(d)(1); II(b)(1)
Payment	30 days after approval. Dealer filing deadline: Silent.	
Chargebacks	9 months; fraud: Fraudulent warranty claims may be charged back within the franchise a…. Charged back only if false or fraudulent, the repairs were improper or unnecessary, or the dealer failed to reasonably substantiate under written requirements in effect when the claim arose (II(b)(1)). The dealer may be present or represented at the audit. A…	N.H. Rev. Stat. Ann. § 357-C:5, II(d)(2)-(7); II(b)(1)
Rate resubmission	once per calendar year (average labor rate declaration). Sample: No statutory labor-rate sample. Excluded: none listed.	N.H. Rev. Stat. Ann. § 357-C:5, II(b)(1)(B)(iv); parity II(…
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Forum: New Hampshire Motor Vehicle Industry Board written protest (general j….	N.H. Rev. Stat. Ann. § 357-C:12, II(a)
Penalties	§ 357-C:12, IX: civil action in superior court for actual damages plus costs, including a reasonable attorney's fee. X: attorney's fees and costs to the prevailing party after a Board finding of violation. Board protests under II. § 357-C:5, I: added attorney's fees where a manufacturer violates its warranty to the purchaser. § 357-C:1…	N.H. Rev. Stat. Ann. §§ 357-C:12, 357-C:15
Audit procedures	Audit climate score 49/100 (High restrictiveness; chargeback limits 49/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(N.H. Rev. Stat. Ann. § 357-C:5, II(d)(1); II(b)(1)): "All such claims shall be either approved and paid or disapproved within 30 days after their receipt, and any claim not specifically disapproved in writing within such period shall be deemed approved."*
Chargebacks *(N.H. Rev. Stat. Ann. § 357-C:5, II(d)(2)-(7); II(b)(1)): "shall retain the right to audit warranty claims for a period of 9 months after the date on which the claim is paid and charge back any amounts paid on claims that are false or unsubstantiated"*
Rate *(N.H. Rev. Stat. Ann. § 357-C:5, II(b)(1)(B)(iv); parity II(…): "A dealer shall not declare an average percentage markup or average labor rate more than once in a calendar year."*
Factory time *(§ 357-C:5, II(b)(1)): "Time allowances for the diagnosis and performance of warranty work and service shall be reasonable and adequate for the work to be performed."*

Notes

The labor rate has a parity floor and a once-per-year declaration limit, but no statutory sample, formula or manufacturer response procedure. The detailed timetable (30-day notice of rebuttal, 60-day proposal, 90-day Board protest) and the 'reasonable vs. same line-make dealers of similar size in the immediate geographic vicinity' standard are written for parts markup. The manufacturer may audit a dealer's 'effective rates' once per calendar year and cut them prospectively. That audit uses the parts method; a Board protest within 90 days stays the reduction until a final order, and an adjusted rate is frozen 6 months (II(b)(1)(B)(iv)). Scope covers warranty, maintenance plan, extended warranty, CPO or service contract issued by the manufacturer, distributor or its common entity, and any parent, subsidiary, affiliate or agent that issues a plan. Truck/equipment warranty includes transpor…

Source: official · https://gc.nh.gov/rsa/html/XXXI/357-C/357-C-5.htm · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · New Jersey (NJ)

Law last amended: 2025 (eff. 2026-04-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: N.J. Stat. Ann. § 56:10-15(a), (d), (j)(3), (l)-(n) (as amended by P.L.2025, c.140, § 7); N.J. Stat. Ann. § 56:10-15(f), (p) (claims; audits; chargebacks); N.J. Stat. Ann. §§ 56:10-10 (franchisee action), 56:10-34 (association standing)
Flagged state (northern counties only).

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	OEM time x multiplier	§ 56:10-15(m)
Mfr-backed service contract	**Conditional**	OEM time x multiplier	§ 56:10-15 (intro); (g); (h)
CPO warranty	**Conditional**	OEM time x multiplier	§ 56:10-15 (intro)
Independent service contract	**Conditional**	OEM time x multiplier	§ 56:10-15 (intro)

Hourly rate: Average retail labor rate: 100 sequential customer-paid ROs or 90 days of them, whichever is less, no older than 180 days; total labor charges x 1.0 divided by total labor hours. The rate takes effect 30 days after declaration, subject to audit of the submitted sample only. At most two changes to rate, time allowance or parts markup per calendar year.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Written notice of the grounds for disapproval. No denial or chargeback 'due to an administrative or scrivener's error'. Denial or chargeback requires the franchisor to prove a lack of good-faith compliance with reasonable written procedures, work not performe…	N.J. Stat. Ann. § 56:10-15(f), (p)
Payment	30 days after approval. Dealer filing deadline: Silent.	
Chargebacks	12 months; fraud: No time limit if the franchisor has reasonable grounds to believe the…. Paid claims may be charged back only if false or fraudulent, the labor was not properly performed, the work was unnecessary, or the claim was not reasonably substantiated under reasonable written requirements notified beforehand ((f)). Written notice is due w…	N.J. Stat. Ann. § 56:10-15(f), (p)
Rate resubmission	no more than twice per calendar year. The cap is written jointly for requests to change the parts markup, labor time allowance, or retail labor rate.. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Other (see text), Routine maintenance, Prep / reconditioning, Accessories, Collision / body / glass, Insurance-paid, State inspections, Goodwill, Government, Tires, Alignments, Internal.	N.J. Stat. Ann. § 56:10-15(l); exclusions (j)(3); frequency…
Mfr response	Silent; no response = approved: Yes. Challenge: Audit-only. Any proposed adjustment 'shall be based solely on an audit of that sample'. No market-comparison or reasonableness test. Forum: Superior Court action under the Franchise Practices Act (§ 56:10-10).	N.J. Stat. Ann. § 56:10-15(a), (l)
Penalties	§ 56:10-10: Superior Court action for damages and, where appropriate, injunctive relief. A successful franchisee recovers costs, including reasonable attorney's fees. § 56:10-34 (P.L.2025, c.140): dealer associations have standing to sue on members' behalf.	N.J. Stat. Ann. §§ 56:10-10, 56:10-34
Audit procedures	Audit climate score 51/100 (Very high restrictiveness; chargeback limits 42/75 + process and oversight 9/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: yes; frequency cap: none; written reasons: yes; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: limited to the submission.	

Statute quotes

Claims *(N.J. Stat. Ann. § 56:10-15(f), (p)): "All claims for reimbursement shall be approved or disapproved within 30 days after receipt of the claim by the motor vehicle franchisor."*
Chargebacks *(N.J. Stat. Ann. § 56:10-15(f), (p)): "A motor vehicle franchisor shall not audit a claim after the expiration of 12 months following the payment of the claim unless the motor vehicle franchisor has reasonable grounds to believe that the claim was fraudulent"*
Rate *(N.J. Stat. Ann. § 56:10-15(l); exclusions (j)(3); frequency…): "The average retail labor rate shall be calculated by multiplying the total labor charges in the sample by 1.0 and dividing that amount by the total number of labor hours in the sample."*
Factory time *(§ 56:10-15(m)): "at the motor vehicle franchisee's discretion, an established average retail labor time allowance, in lieu of the motor vehicle franchisor's labor time guide for franchisor-paid repairs or service"*

Notes

DATE-SENSITIVE: the text above took effect 4/1/2026 and applies to franchise agreements in effect on or after that date. Earlier causes of action are governed by prior law. The rate takes effect automatically at 30 days, and the statute sets no deadline for the franchisor's audit or adjustment. Optional labor-time multiplier ((m)): hours billed on 100 sequential (or 90 days of) customer-pay ROs divided by franchisor-guide hours for the same repairs, applied to the franchisor time guide. Dealers must pass labor pay through to factory-certified flat-rate technicians. Scope covers repair service 'offered and reimbursed by the motor vehicle franchisor', including warranty, extended warranty, maintenance plan, service-related plan and recall. It reaches affiliates and 1%+ owners ((g)) and franchisor-administered plans in the four (h) situations. When the franchisor supplies EV propulsion bat…

Source: enrolled_act · https://pub.njleg.gov/Bills/2024/PL25/140_.PDF · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · New Mexico (NM)

Law last amended: 2018 (eff. 2018-03-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: N.M. Stat. Ann. § 57-16-7 (NMSA 1978); N.M. Stat. Ann. § 57-16-5.1 (clerical-error chargebacks); N.M. Stat. Ann. §§ 57-16-11, 57-16-13 (injunction; damages)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	§ 57-16-7(D)
Mfr-backed service contract	**Not addressed**	-	§ 57-16-7(B)
CPO warranty	**Not addressed**	-	§ 57-16-7(B)
Independent service contract	**Not addressed**	-	§ 57-16-7(A)

Hourly rate: Retail customer rate for labor and diagnostic work: dealer declares its average customer-pay labor rate from the lesser of 100 sequential customer-paid ROs or 90 days of customer-paid ROs (repairs within 180 days). Manufacturer may refuse if miscalculated or it 'unreasonably exceed[s]' all other same-line dealers in the relevant market area. No more than 2 increases per calendar year.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. written notice of the disapproved claim setting forth the reasons	§ 57-16-7(H); filing deadline and 'paid ... within thirty d…
Payment	30 days after submission. Dealer filing deadline: within one year of the date the work was performed. No chargeback of a paid claim for an incidental failure, clerical error or technicality if the dealer corrects it within 90 days…	
Chargebacks	6 months; fraud: Fraudulent claims may be audited/charged back during any period for w…. Only unsubstantiated, incorrect or false claims; 6 months after payment. No chargeback for incidental/clerical failures corrected within 90 days (§ 57-16-5.1). Sales/service incentive audits also limited to 6 months (§ 57-16-7.1).	§ 57-16-7(G)
Rate resubmission	increase granted no more than twice in one calendar year. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: none listed.	§ 57-16-7(D); see (C) (180-day window, 30-day effect for ma…
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Rate was incorrectly calculated, or unreasonably exceeds the rates of all other franchised dealers in the same relevant market area offering the same or a competitive line	§ 57-16-7(E)
Penalties	Injunctive relief (§§ 57-16-11, -12); actual damages, costs and reasonable attorney's fee, punitive damages up to 3x actual if malicious (§ 57-16-13); 4-year limitation (§ 57-16-14) None in Art. 16 against manufacturers (§ 57-16-16 misdemeanor applies only to dealers violating § 57-16-4)	N.M. Stat. Ann. §§ 57-16-11 to 57-16-14, 57-16-16
Audit procedures	Audit climate score 44/100 (High restrictiveness; chargeback limits 41/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 90 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 57-16-7(H); filing deadline and 'paid ... within thirty d…): "Any claim not specifically disapproved in writing within thirty days following receipt is approved, and the manufacturer is required to pay that claim within thirty days of receipt of the claim."*
Chargebacks *(§ 57-16-7(G)): "The manufacturer has the right to audit claims and to charge the dealer for any unsubstantiated, incorrect or false claims for a period of six months following payment."*
Rate *(§ 57-16-7(D); see (C) (180-day window, 30-day effect for ma…): "A dealer shall establish and declare the dealer's average customer pay labor rate by submitting to the manufacturer the lesser of one hundred sequential customer-paid service repair orders or ninety days of customer-paid service repair orders"*
Factory time *(§ 57-16-7(D)): "A manufacturer shall compensate a dealer for labor and diagnostic work for recall or warranty repairs at the rates charged by the dealer to its retail customers for such work."*

Notes

Official NMOneSource text now reachable (earlier 403) and matches the Justia mirror used before. No statutory list of exclusions from the rate sample. No manufacturer response deadline or deemed approval for the labor rate. (I) bars cost recovery by reduction or surcharge. (J) bars denying warranty/recall claims found during a separate customer repair. (K) excludes recreational travel trailers and motor-home living systems. 2026 SB 22 (manufacturer licensing) died, so there is no pending change.

Source: official · https://nmonesource.com/nmos/nmsa/en/4423/1/document.do (official NMOneSource NMSA 1978 Chapter 57 PDF; site 'last modi… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Nevada (NV)

Law last amended: 2017 (eff. 2017-06-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Nev. Rev. Stat. § 482.36385(3) (fair compensation; retail parity); Nev. Rev. Stat. § 482.36385(4), (7)-(8) (claims; audits; appeals); Nev. Rev. Stat. §§ 482.36423 (injunction; treble damages), 482.36425 (civil penalty), 482.352 (license discipline)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	§ 482.36385(3)
Mfr-backed service contract	**Not addressed**	-	§ 482.36385(3)
CPO warranty	**Not addressed**	-	§ 482.36385(3)
Independent service contract	**Not addressed**	-	§ 482.36385(3)

Hourly rate: Parity floor only: compensation for parts and labor 'must not be less than the amount of money charged to its various retail customers for parts and labor that are not covered by a warranty'. 'Fair compensation includes diagnosis and reasonable administrative and clerical costs.' The statute sets no RO submission or calculation procedure.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Written notice of the grounds for disapproval. Denial only for good cause, such as nonwarranty repairs, lack of material documentation, fraud or misrepresentation. Processing noncompliance is not grounds if reasonable documentation substantiates the claim. No…	Nev. Rev. Stat. § 482.36385(4)(a)-(c); (7)
Payment	30 days after approval. Dealer filing deadline: Silent. The manufacturer must accept an amended claim submitted within 60 days after notice of a disapproval based on a processing requir…	
Chargebacks	9 months; fraud: Silent. The 9 months run from the date the claim was MADE, not the date paid. Audits must be on a reasonable basis. Denial only for good cause (nonwarranty repairs, lack of material documentation, fraud or misrepresentation). The manufacturer may not stop a dealer fr…	Nev. Rev. Stat. § 482.36385(7)-(8)
Rate resubmission	Silent. Sample: No statutory labor-rate sample. Excluded: none listed.	Nev. Rev. Stat. § 482.36385(3)
Mfr response	Silent; no response = approved: no rule in statute. Challenge:	
Penalties	§ 482.36423: injunctive relief for any aggrieved person. An injured dealer may recover three times the pecuniary loss plus costs, including a reasonable attorney's fee. § 482.36425: civil penalty of $50-$1,000 per day and per act for willful violations, sued for by the Attorney General. § 482.352(1)(e): DMV may deny, suspend or revoke…	Nev. Rev. Stat. §§ 482.36423, 482.36425, 482.352
Audit procedures	Audit climate score 40/100 (High restrictiveness; chargeback limits 34/75 + process and oversight 6/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 60 days; internal appeal: yes; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(Nev. Rev. Stat. § 482.36385(4)(a)-(c); (7)): "work to satisfy warranties and recall service or repairs within 30 days after approval, or fail to approve or disapprove such claims within 30 days after receipt"*
Chargebacks *(Nev. Rev. Stat. § 482.36385(7)-(8)): "Perform an audit to confirm a claim for compensation pursuant to NRS 482.363574, warranty repair, sales incentive or rebate more than 9 months after the date on which the claim was made."*
Rate *(Nev. Rev. Stat. § 482.36385(3)): "The dealers compensation for parts and labor to satisfy a warranty or a recall service or repair must not be less than the amount of money charged to its various retail customers"*
Factory time *(§ 482.36385(3)): "fail to compensate a dealer fairly for labor, parts and other expenses incurred by the dealer under the manufacturer's warranty agreements or any recall service or repairs"*

Notes

Nevada has no labor-rate declaration, sample, formula or response procedure, only the retail-parity floor. 'Fair compensation includes diagnosis and reasonable administrative and clerical costs.' The statute never addresses time allowances. The official NRS text omits apostrophes ('dealers compensation'). Coverage includes delivery/prep, transportation claims, special campaigns, warranty and recall work. The 2017 amendment (AB 410) added used-vehicle recall/stop-sale compensation under § 482.363574 to the audit and appeal rules.

Source: official · https://www.leg.state.nv.us/NRS/NRS-482.html#NRS482Sec36385 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · New York (NY)

Law last amended: 2024 (eff. 2024-09-04) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: N.Y. Veh. & Traf. Law § 465; N.Y. Veh. & Traf. Law § 469 (private actions); N.Y. Veh. & Traf. Law § 471-a (adjudicatory proceedings; penalties)
Flagged state.

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Independent/retail time guide	§ 465(1)
Mfr-backed service contract	**Required**	Independent/retail time guide	§ 465(1)
CPO warranty	**Conditional**	Independent/retail time guide	§ 465(1)
Independent service contract	**Not reached**	-	§ 465(1)

Hourly rate: Not less than the price and rate the dealer charges non-warranty and/or non-service-contract customers. Dealer declares from the lesser of 100 sequential non-warranty customer-paid ROs or 90 days of ROs (within 180 days). Effective 30 days after declaration and presumed reasonable. Franchisor may rebut by comparison with same line-make dealers in the vicinity. At most one change per calendar year.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. written notice within the 30 days stating the specific grounds for disapproval	§ 465(2); payment 'within thirty days following their appro…
Payment	30 days after approval. Dealer filing deadline: Silent. No denial for an incidental failure, clerical error or administrative technicality that does not question legitimacy, if the deal…	
Chargebacks	12 months; fraud: five years in the case of fraud. Franchisor must prove the dealer did not make a good-faith effort to comply with reasonable written procedures or did not perform the work (§ 465(5)). One undocumented part cannot void a whole multi-part repair. An in-person or phone meeting is required befor…	§ 465(3)-(5), (7)
Rate resubmission	dealer may not request a change more than once each calendar year. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Other (see text), Tires, Routine maintenance, Prep / reconditioning.	§ 465(1)
Mfr response	Silent; no response = approved: Yes. Challenge: Rate is unreasonable in light of the practices of all other franchised dealers in the vicinity offering the same line make; franchisor bears burden Forum: DMV Commissioner adjudicatory proceeding (§ 471-a; hearing procedure….	§ 465(1)
Penalties	Adjudicatory proceeding before the DMV Commissioner, or court action for injunctive relief and damages; court may award costs and a reasonable attorney's fee to any party (§ 469) Commissioner enforces via § 471-a proceedings; civil penalty up to $1,000 per day for not complying with the Commissioner's decision (§ 471-a)	N.Y. Veh. & Traf. Law §§ 469, 469-a, 471-a
Audit procedures	Audit climate score 45/100 (High restrictiveness; chargeback limits 42/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: yes; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 465(2); payment 'within thirty days following their appro…): "All warranty or sales incentive claims shall be either approved or disapproved within thirty days after their receipt ... Failure to disapprove a claim within thirty days shall be deemed approval."*
Chargebacks *(§ 465(3)-(5), (7)): "No franchisor shall conduct an audit or charge back any warranty payment ... more than one year, or five years in the case of fraud, after the date the franchisor made such payment to the dealer"*
Rate *(§ 465(1)): "may be established by submitting to the franchisor one hundred sequential nonwarranty customer-paid service repair orders or the number of sequential nonwarranty customer-paid service repair orders written within a ninety day period, whichever is less"*
Factory time *(§ 465(1)): "reasonable compensation shall be the reasonable labor time allowances defined by the retail labor time guide reasonably utilized by a franchised motor vehicle dealer for non-warranty customer paid labor operations."*

Notes

The § 465(3) lookback sentence is oddly drafted. It bars audits/chargebacks beyond 1 year (5 for fraud) 'without providing a notice ... or a mechanism' giving the dealer information on the errors. Read conservatively as a 1-year/5-year window plus a notice duty. The 2024 amendment (ch. 301) added extended-warranty and factory-compensated repairs to scope and pays time per the dealer's retail labor time guide. House-coach residential components are excluded from parts reimbursement. Pending A8773/S8360 (2025-26) is not law.

Source: official · https://www.nysenate.gov/legislation/laws/VAT/465 (official; Cloudflare blocks scripted fetch). Text read at https://ne… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Ohio (OH)

Law last amended: 2025 (eff. 2025-09-30) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Ohio Rev. Code § 4517.52; Ohio Rev. Code § 4517.59(A)(10)-(12), (18), (20) (claims, audits, chargebacks); Ohio Rev. Code §§ 4517.64, 4517.65

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 4517.52(D)(1)
Mfr-backed service contract	**Not addressed**	-	§ 4517.52(B)
CPO warranty	**Not addressed**	-	§ 4517.52(B)
Independent service contract	**Not addressed**	-	§ 4517.52(A)

Hourly rate: Not less than the franchisee's retail rates for warranty-like diagnosis and labor. The franchisee picks 100 sequential customer-paid warranty-like ROs or all such ROs over 90 consecutive days (within 180 days). Rate = total labor sales ÷ labor hours. Franchisor may contest within 30 days, then internal dispute resolution with appeal to court. Once per calendar year. The franchisor may not unilaterally set the rate.

Audit fields

Field	Rule	Pinpoint
Claim decision	45 days; late claim deemed approved: no rule in statute. immediate written notice stating the specific grounds for disapproval	§ 4517.59(A)(10)-(12)
Payment	30 days after approval. Dealer filing deadline: Franchisor may not disclaim a claim for failure to submit or resubmit within a period of less than 6 months from the date of service. At least 6 months from service date to submit or resubmit ((A)(12)). No denial for an incidental failure to follow a claim proces…	
Chargebacks	12 months; fraud: Limits 'shall not be effective in the case of a fraudulent claim'. Ch…. The window runs 12 months from the dealer's SUBMISSION, not payment. Chargeback only if the claim lacks material documentation or is false, fraudulent or a misrepresentation. No chargeback until the dealer has had notice and a chance to use all internal appea…	§ 4517.59(A)(18), (A)(20)
Rate resubmission	not more than once per calendar year. Sample: 100 ROs or 90 days (dealer chooses); ROs <= 180 days old. Excluded: Discounted / promotional, Other (see text), Routine maintenance, Prep / reconditioning, Accessories, Collision / body / glass, Insurance-paid, State inspections, Goodwill, Government, Tires.	§ 4517.52(B)(1)-(4), (C)(4)
Mfr response	30 days; no response = approved: Yes. Challenge: Rate or markup is 'materially inaccurate' Forum: franchisor's internal dispute resolution process, appealable to court.	§ 4517.52(C)(1)-(3), (E)
Penalties	Double actual damages plus court costs and reasonable attorney fees (§ 4517.65(A)); statutory interest on unreasonably denied/delayed claims (§ 4517.59(A)(20)) Violating §§ 4517.50-4517.65 is a fourth-degree misdemeanor (§ 4517.64(C)); failing to obey Motor Vehicle Dealers Board orders is prohibited (§ 4517.64(A)(1))	Ohio Rev. Code §§ 4517.59(A)(20), 4517.64, 4517.65
Audit procedures	Audit climate score 46/100 (High restrictiveness; chargeback limits 42/75 + process and oversight 4/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 4517.59(A)(10)-(12)): "Fail to approve or disapprove any warranty or recall claim submitted by a franchisee within forty-five days after receipt from the franchisee ... Fail to pay a franchisee within thirty days after approval"*
Chargebacks *(§ 4517.59(A)(18), (A)(20)): "Initiate a charge back without an audit or perform an audit to confirm a warranty or recall repair ... more than twelve months after the date of submission by the franchisee"*
Rate *(§ 4517.52(B)(1)-(4), (C)(4)): "submits to the franchisor either of the following ... One hundred sequential nonwarranty service repair orders for warranty-like repairs that have been paid by a customer and closed by the time of submission ... for a period of ninety consecutive days"*
Factory time *(§ 4517.52(D)(1)): "The franchisor shall use time allowances for the diagnosis and performance of the warranty and recall work and service that are reasonable and adequate for the work or services to be performed by a qualified technician."*

Notes

The claim decision deadline is 45 days, not 30. Warranty claims have NO deemed-approval rule (only incentive claims do, under (A)(19)). The chargeback window runs from submission. RV franchisors/franchisees are exempt from 4517.52(A), (C), (D), (E) and from the diagnostic part of (B), and cannot use the (B) RO method. Time allowances must be 'reasonable and adequate' for a qualified technician ((D)(1)). Rental vehicles required or offered by the franchisor are fully reimbursed ((D)(5), added 2025).

Source: official · https://codes.ohio.gov/ohio-revised-code/section-4517.52 ; https://codes.ohio.gov/ohio-revised-code/section-4517.59 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Oklahoma (OK)

Law last amended: 2025 (eff. 2025-11-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Okla. Stat. tit. 47, § 565(A)(9)(b); Okla. Stat. tit. 47, § 565(A) (license denial/revocation/suspension; fines)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	47 O.S. § 565(A)(9)(b)
Mfr-backed service contract	**Not addressed**	-	47 O.S. § 565(A)(9)(b)
CPO warranty	**Not addressed**	-	47 O.S. § 565(A)(9)(b)
Independent service contract	**Not addressed**	-	47 O.S. § 565(A)(9)(b)

Hourly rate: No less than the rates customarily charged for retail consumer repairs. At the dealer's option, declared from 100 sequential non-warranty consumer-paid ROs with warranty-like repairs or 90 consecutive days, whichever is less (within 180 days). Rate = total labor sales ÷ total labor hours charged. Manufacturer may rebut within 45 days and may request 30 days of supplemental ROs if the rate is substantially higher. Protest goes to the Commission, with the burden on the manufac…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. dealer notified in writing of the grounds for disapproval	§ 565(A)(9)(b)
Payment	30 days after approval. Dealer filing deadline: Silent.	
Chargebacks	12 months; fraud: except in cases of suspected fraud. Deny or charge back only if the claim was false or fraudulent, or the dealer failed to reasonably substantiate it under the factory's written reasonable procedures. Written notice with the specific audit results and amount is required. The dealer may protest…	§ 565(A)(9)(b)
Rate resubmission	dealer: once in a 12-month period; manufacturer may require validation ROs not more often than once every 12 months. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Routine maintenance, Discounted / promotional, Other (see text), Goodwill, Tires, Alignments, Internal, Prep / reconditioning.	§ 565(A)(9)(b)
Mfr response	45 days; no response = approved: no rule in statute. Challenge: Rate 'is not accurate or is incomplete'; in a protest the manufacturer must prove the rate was inaccurate or not complete Forum: Oklahoma New Motor Vehicle Commission protest (within 30 days of the….	§ 565(A)(9)(b)
Penalties	Dealer damages action (may be brought in the dealer's county) plus injunctive relief, including TROs, for any violation of §§ 565 through 566 (47 O.S. § 572). The Commission may also sue to enjoin violations (§ 567). Commission may deny, revoke or suspend a license, or fine up to $10,000 per occurrence, for violations of §§ 561-567 et…	Okla. Stat. tit. 47, §§ 565(A), 567, 572
Audit procedures	Audit climate score 33/100 (Elevated restrictiveness; chargeback limits 30/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: yes; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 565(A)(9)(b)): "All claims made by dealers for compensation for delivery, preparation, warranty, or recall repair work shall be paid within thirty (30) days after approval and shall be approved or disapproved within thirty (30) days after receipt."*
Chargebacks *(§ 565(A)(9)(b)): "Except in cases of suspected fraud, audits of warranty payments shall only be for the one-year period immediately following the date of the payment."*
Rate *(§ 565(A)(9)(b)): "one hundred sequential nonwarranty consumer-paid service repair orders which contain warranty-like repairs, or ninety (90) consecutive days ... may not submit a request to establish its retail rates more than once in a twelve-month period"*
Factory time *(47 O.S. § 565(A)(9)(b)): "Time allowances for the diagnosis and performance of repair work shall be reasonable and adequate for the work to be performed."*

Notes

The 11/1/2025 acts gave manufacturers 45 days (was 30) to rebut and propose an adjustment. HB 2160 extended ¶ 9(b) to new powersports dealers. Both acts rewrote § 565 from the same 2024 base with the same substantive ¶ 9(b) text, so OSCN may carry two merged versions. Warranty claims have no deemed-approval rule. Time allowances must be 'reasonable and adequate'. Diagnostic work and OTA-related customer assistance are included. Cost-recovery surcharges are barred.

Source: enrolled_act · Codified: https://law.justia.com/codes/oklahoma/title-47/section-47-565v1/ and .../section-47-565v2/ (2025 Okla. Stat.)… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Oregon (OR)

Law last amended: 2025 (eff. 2026-01-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Or. Rev. Stat. § 650.158; Or. Rev. Stat. § 650.170 (dealer's remedy)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	ORS 650.158(2)(b)(C); see (1)(c), (2)(a)
Mfr-backed service contract	**Not addressed**	-	ORS 650.158(2)(a)
CPO warranty	**Not addressed**	-	ORS 650.158(2)(a)
Independent service contract	**Not addressed**	-	ORS 650.158(1)(a)

Hourly rate: Not less than the rate the dealer charges nonwarranty customers. Dealer proposes it from 100 sequential nonwarranty customer-paid invoices or 90 consecutive days, whichever is less (within 180 days). Presumed fair if uncontested. Manufacturer may contest on accuracy or with evidence from at least 3 dealers in contiguous or similar markets. Effective 30 days after approval, and uncontested for 30 days counts as approval. Verification or increase once per year.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. written notice of the grounds for disapproving a claim	§ 650.158(4)(a)-(e) [(4)(a)-(d) in the pre-2026 text]; deem…
Payment	30 days after approval. Dealer filing deadline: Silent. Franchises entered or renewed on or after 1/1/2026: correct and resubmit within 30 days of disapproval ((4)(c), new). All franchi…	
Chargebacks	12 months; fraud: The 1-year limit does not apply if the manufacturer has reasonable gr…. Audits of paid warranty or incentive claims, and chargebacks for them, may not be started more than 1 year after payment unless the manufacturer has reasonable grounds to believe fraud; after 1 year only proven fraudulent amounts may be charged back, and perm…	Or. Rev. Stat. § 650.130(8)
Rate resubmission	Franchises entered or renewed on or after 1/1/2026: 'Not more than once per year' the manufacturer may verify and the dealer may propose an increase. Pre-2026 text: only the manufacturer's verification is limited to once per year.. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Other (see text), Routine maintenance, Prep / reconditioning.	§ 650.158(2)(b)(A), (D), (c), (e)
Mfr response	30 days; no response = approved: Yes. Challenge: The proposal is not accurate, or does not reasonably conform with what other same line-make dealers in contiguous market areas charge nonwarranty customers, or other relevant evidence. A market comparison needs evidence from at least 3 dealers in the contiguo…	§ 650.158(2)(b)(B), (c)-(d)
Penalties	Injunction; damages for actual loss of money; court may award reasonable attorney fees and costs to the prevailing party; 2-year limitation for damages (ORS 650.170) None in ORS 650.120-650.173	Or. Rev. Stat. § 650.170
Audit procedures	Audit climate score 29/100 (Moderate restrictiveness; chargeback limits 27/75 + process and oversight 2/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 45 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 650.158(4)(a)-(e) [(4)(a)-(d) in the pre-2026 text]; deem…): "all claims that a dealer makes for labor or parts within 30 days after receiving the claim ... Treat as approved any claim ... did not approve or disapprove within 30 days after the manufacturer, distributor or importer received the claim"*
Chargebacks *(Or. Rev. Stat. § 650.130(8)): "If a manufacturer ... initiates an audit more than one year following the date of payment, the manufacturer ... may charge back to the dealer only the amount of a claim that the manufacturer ... proves was fraudulent."*
Rate *(§ 650.158(2)(b)(A), (D), (c), (e)): "copies of 100 sequential nonwarranty service repair invoices that customers paid or 90 consecutive days' worth of nonwarranty service invoices that customers paid, whichever is less, for repairs the dealer made not more than 180 days before the dealer's submission"*
Factory time *(ORS 650.158(2)(b)(C); see (1)(c), (2)(a)): "A manufacturer, distributor or importer shall use time allowances that are reasonable and adequate for a qualified technician to make a diagnosis and perform work or service."*

Notes

There are TWO REGIMES by franchise date. The 2025 c.50 amendments apply only to franchises entered or renewed on or after 1/1/2026. New for those franchises: (2)(b)(C), time allowances reasonable for a qualified technician, and no unreasonable denial of requests to modify or add time. Also new: (4)(c) 30-day resubmission, (5) the 1-year audit and chargeback grounds, (6)(c)-(e) limits on mileage-based denials, national-norm reductions and failure-rate repair caps, (7) markup on no-charge parts, and the dealer's once-per-year increase. Older franchises keep the 2023-edition text. Motor-home living-facility parts are excluded from parts reimbursement. Correction 2026-09-27: an earlier note said pre-2026 franchises had no statutory audit lookback; ORS 650.130(8) sets a 1-year limit for all franchises.

Source: official · https://www.oregonlegislature.gov/bills_laws/ors/ors650.html (2025 edition); pre-2026 text: https://www.oregonlegislatu… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Pennsylvania (PA)

Law last amended: 2018 (eff. 2019-10-24) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Board of Vehicles Act § 307, 63 P.S. § 818.307; BOVA § 318, 63 P.S. § 818.318 (discipline); BOVA §§ 328-329, 63 P.S. §§ 818.328-818.329 (penalties; civil actions)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 307(a)(1); rate: § 307(a)(3)
Mfr-backed service contract	**Conditional**	Statute silent on time / not established	§ 307(e)(1); see § 310(b)(2)
CPO warranty	**Not addressed**	-	§ 307(a)(3)
Independent service contract	**Conditional**	Statute silent on time / not established	§ 307(a)(3)

Hourly rate: Dealer's retail rate: declared average labor rate = total labor sales ÷ total labor hours from the lesser of 100 sequential non-warranty customer-paid ROs or 90 consecutive days (within 180 days). Presumed reasonable and effective 60 days after declaration. Manufacturer may rebut within 60 days and propose an adjustment. Protest to the State Board of Vehicle Manufacturers, Dealers and Salespersons. One declaration per calendar year. Dealer may opt out (revert to nonretail) o…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Written or electronic description of the corrective action required. No denial or reduction if the dealer reasonably substantiated the claim under reasonable written requirements notified in advance and in effect when the claim arose.	§ 307(e)(1), (1.1) (covers warranty, recall, service contra…
Payment	30 days after approval. Dealer filing deadline: Silent. On disapproval, the manufacturer must describe in writing the reasonable corrective action needed for payment, or the claim is de…	
Chargebacks	9 months; fraud: With evidence of fraud, the manufacturer may audit longer and charge…. False or unsubstantiated claims only. After any internal appeal, at least 30 days' written notice before chargeback, giving the amount and basis of each claim and the total. A dealer protest to the Board within those 30 days bars the chargeback until a hearin…	§ 307(e)(2)-(3)
Rate resubmission	no more than once in one calendar year. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Other (see text), Routine maintenance, Tires, Prep / reconditioning.	§ 307(a)(3)(i)-(iii), (b.1), (b.3)(2)
Mfr response	60 days; no response = approved: Yes. Challenge: Declared rate is 'unreasonable or materially inaccurate'; at the Board, the manufacturer must also show its proposed adjustment is reasonable Forum: State Board of Vehicle Manufacturers, Dealers and Salespersons protes….	§ 307(a)(3)(ii)-(v)
Penalties	Action for damages and equitable relief, including injunctive relief (§ 329) Board may reprimand, suspend, revoke or refuse a license (§ 318). Board civil penalty up to $1,000 (§ 328(c)). Summary offense with a $1,000 fine (§ 328(a)).	63 P.S. §§ 818.318, 818.328, 818.329
Audit procedures	Audit climate score 40/100 (High restrictiveness; chargeback limits 37/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: yes; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 307(e)(1), (1.1) (covers warranty, recall, service contra…): "is not specifically disapproved in writing or by electronic transmission 30 days after receipt by the manufacturer or distributor is considered approved and payment to the dealer must follow within 30 days."*
Chargebacks *(§ 307(e)(2)-(3)): "The manufacturer or distributor shall be permitted to audit claims within a nine-month period from the date the claim was paid or credit issued by the manufacturer or distributor and to charge back any false or unsubstantiated claims."*
Rate *(§ 307(a)(3)(i)-(iii), (b.1), (b.3)(2)): "A declaration of the average labor rate calculated by dividing the amount of the dealer's total labor sales by the number of total labor hours that generated the sales. ... more than once in one calendar year"*
Factory time *(§ 307(a)(1); rate: § 307(a)(3)): "provide the dealer with a schedule of compensation to be paid the dealer for parts, work and service, and the time allowance for the performance of such work and service."*

Notes

The 9-month audit window is shorter than most states. If a dealer does not seek retail rates, the manufacturer may not recover costs through a surcharge, and the dealer may revert to the nonretail rate once a year to avoid one ((b.4)). Paid hours: only 'the time allowance' in the compensation schedule, with no reasonableness standard. § 307 does not apply to manufactured housing ((a)(4)) or RVs ((g); see § 508). It does apply to medium/heavy truck component and engine makers ((f)). Pending SB 1182 is not law.

Source: official · https://www.legis.state.pa.us/WU01/LI/LI/US/HTM/1983/0/0084..HTM (official unconsolidated statute; § 307 last amended b… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Rhode Island (RI)

Law last amended: 2026 (eff. 2026-10-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: R.I. Gen. Laws § 31-5.1-6; R.I. Gen. Laws § 31-5.1-12 (enforcement; license); R.I. Gen. Laws § 31-5.1-13 (civil remedies)
Flagged state.

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Actual technician time	§ 31-5.1-6(c) (as amended eff. 10/1/2026)
Mfr-backed service contract	**Not addressed**	-	§ 31-5.1-6(a)
CPO warranty	**Required**	Actual technician time	§ 31-5.1-6(a) (as amended eff. 10/1/2026)
Independent service contract	**Not addressed**	-	§ 31-5.1-6(a)

Hourly rate: Dealer retail rate: total labor sales ÷ total labor hours from all non-warranty customer-paid ROs for the month before submission. Presumed fair. Manufacturer may rebut within 30 days as unfair and unreasonable versus same line-make dealers in the vicinity. Protest goes to the Department. At most twice per calendar year. Unchanged by S 2347A except for adding 'non-warranty' and distributors and factory branches.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Written notice within 45 days with a detailed explanation of the reasons for disapproval. For time-based denials the OEM must provide evidence that the technician did not spend the time or that the submission did not comply.	§ 31-5.1-6(a), (i)(2)(i)-(iii), (i)(3)(iii), (i)(4) as amen…
Payment	30 days after approval. Dealer filing deadline: Manufacturer must allow at least 90 days for dealers to submit claims. 45 days from receipt of a disapproval to resubmit a corrected claim. The OEM may protest a corrected claim to the Department with…	
Chargebacks	12 months; fraud: does not limit charge back of any claim proven fraudulent. Only claims the manufacturer shows are false or unsubstantiated, within 12 months of payment or credit. No chargeback for an incidental failure (clerical error or technicality) once the claim is properly resubmitted. From 10/1/2026, audits or chargebacks may…	§ 31-5.1-6(i)(3)(i)-(iv)
Rate resubmission	no more than twice in one calendar year. Sample: All qualifying ROs, prior calendar month. Excluded: Discounted / promotional, Other (see text), Engine / transmission assembly, Routine maintenance, Tires, Prep / reconditioning.	§ 31-5.1-6(c), (d), (f); parts at (b)
Mfr response	30 days; no response = approved: Yes. Challenge: Rate is unfair and unreasonable in light of the practices of all other franchised dealers in the vicinity offering the same line-make. From 10/1/2026 the PARTS standard compares 'advertised retail rates' for warranty-like repairs in the 'relevant market area'… Forum: Department (of Revenue, per § 31-5.1-3(c)): dealer protest within 30….	§ 31-5.1-6(c)
Penalties	Superior court civil action: injunction, actual damages, costs and reasonable attorney's fee (§ 31-5.1-13) Department show-cause hearing; license revocation or suspension on a finding of noncompliance (§ 31-5.1-12)	R.I. Gen. Laws §§ 31-5.1-12, 31-5.1-13
Audit procedures	Audit climate score 25/100 (Moderate restrictiveness; chargeback limits 19/75 + process and oversight 6/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: No 'unreasonable' warranty audit or chargeback (q…; written reasons: yes; response period: 60 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 31-5.1-6(a), (i)(2)(i)-(iii), (i)(3)(iii), (i)(4) as amen…): "A claim not approved or disapproved within thirty (30) days of receipt shall be deemed approved. ... Payment of, or credit issued on, a claim filed under this section shall be made within thirty (30) days of approval."*
Chargebacks *(§ 31-5.1-6(i)(3)(i)-(iv)): "shown by the manufacturer or distributor to be false or unsubstantiated, the manufacturer or distributor may charge back the claim within twelve (12) months from the date the claim was paid or credit issued"*
Rate *(§ 31-5.1-6(c), (d), (f); parts at (b)): "submitting to the manufacturer or distributor all non-warranty customer-paid service repair orders covering repairs made during the month prior to the submission and dividing the amount of the dealer's total labor sales by the number of total labor hours"*
Factory time *(§ 31-5.1-6(c) (as amended eff. 10/1/2026)): "Compensation for warranty labor shall equal the dealer's non-warranty labor rate multiplied by the actual time worked by the dealer's technician performing necessary repairs"*

Notes

Fields show the rules in force since 10/1/2026 (P.L. 2026 ch. 179/180, identical text; enacted text checked against law26180). The codified site still showed pre-amendment text on 2026-10-06. What changed on 10/1/2026: (a) dealers get at least 90 days to submit claims, and retail-rate reimbursement extends to CPO warranty or recall issued by the manufacturer, distributor, factory branch, common entity or agent. (c) warranty labor = non-warranty labor rate x the technician's actual time, shown by time punch including diagnostic and OEM tech-assist time, with a dealer attestation. (h) no unreasonable audits or chargebacks, and technicians must meet reasonable qualifications; either party may appeal to the Department. (i)(4) written denial with a detailed explanation 'within forty-five (45) days', 45 days to resubmit, OEM bears the burden on time-based denials, and the OEM may protest a co…

Source: official · https://webserver.rilegislature.gov/Statutes/TITLE31/31-5.1/31-5.1-6.htm (current codified text). 10/1/2026 changes: ht… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · South Carolina (SC)

Law last amended: 2021 (eff. 2021-08-04) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: S.C. Code Ann. § 56-15-60; S.C. Code Ann. §§ 56-15-110, 56-15-120 (damages; limitations)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	§ 56-15-60(C)(1)
Mfr-backed service contract	**Not addressed**	-	§ 56-15-60(B)
CPO warranty	**Not addressed**	-	§ 56-15-60(B)
Independent service contract	**Not addressed**	-	§ 56-15-60(B)

Hourly rate: Retail rate only if the dealer requests retail reimbursement under (C)(4). Rate = retail labor sales for warranty-like services ÷ hours of labor spent, from 100 sequential customer-paid ROs or all customer-paid ROs in a 90-day period, whichever is less (within 180 days). Manufacturer may request more documentation (extends time 30 days), then approves or denies. Effective 30 days after approval. Once per 12 months. Dealer may protest a denial in the court of common pleas, wi…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Must be specifically disapproved in writing. May not be disapproved if the dealer can substantiate it under reasonable policies. No denial or chargeback for an unintentional administrative error.	§ 56-15-60(F)(1)-(2)
Payment	30 days after approval. Dealer filing deadline: Silent.	
Chargebacks	12 months; fraud: The one-year audit limit and the once-per-12-months audit limit do no…. Chargeback only for fraudulent claims, unnecessary work, or work not properly performed. Warranty audits once per 12 months, covering only the 12 months after payment. No denial or chargeback for an unintentional administrative error.	§ 56-15-60(F)(1)-(2), (G)(1), (G)(3)
Rate resubmission	not more than once in any 12-month period. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Internal, Discounted / promotional, Other (see text), Government, Insurance-paid, Tires, Routine maintenance, Alignments.	§ 56-15-60(C)(3)-(4)
Mfr response	Silent; no response = approved: no rule in statute. Challenge: In a protest, the manufacturer must prove the submission did not meet the statutory requirements or is inaccurate or unreasonable Forum: Court of common pleas protest within 30 days of the denial; manufactu….	§ 56-15-60(C)(4)(b)-(c), (D)(3)
Penalties	Double actual damages, cost of suit and reasonable attorney's fee. Punitive damages up to 3x actual if malicious. Injunctive relief. 4-year limitations period. None specific to manufacturers identified in Chapter 15, Article 1	S.C. Code Ann. §§ 56-15-110, 56-15-120
Audit procedures	Audit climate score 30/100 (Elevated restrictiveness; chargeback limits 27/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: Once within any 12-month period, covering only th…; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 56-15-60(F)(1)-(2)): "shall be paid within thirty days following approval ... Any claim not specifically disapproved in writing within thirty days after receipt shall be construed to be approved"*
Chargebacks *(§ 56-15-60(F)(1)-(2), (G)(1), (G)(3)): "the manufacturer may audit claims for up to one year after payment and charge the dealer for fraudulent claims, work done unnecessarily, or work not properly performed."*
Rate *(§ 56-15-60(C)(3)-(4)): "copies of one hundred sequential retail service orders paid by the dealer's customers, or all of the dealer's retail service orders paid by the dealer's customers in a ninety-day period, whichever is less ... more than once in any twelve-month period"*
Factory time *(§ 56-15-60(C)(1)): "reasonable compensation shall not be less than the rate charged by the dealer for like services to nonwarranty customers for nonwarranty parts, service, and repairs if the dealer has submitted a request for retail reimbursement"*

Notes

The retail rate is opt-in: it applies only after the dealer requests retail reimbursement under (C)(4). The statute sets no deadline for the manufacturer to approve or deny a rate submission and has no deemed approval. It says nothing on time allowances ((C)(3) 'hours of labor spent' is only the rate divisor). Cost recovery or surcharges are barred ((A)). Used-vehicle stop-sale compensation claims follow the same claim rules ((I)(5)).

Source: official · https://www.scstatehouse.gov/code/t56c015.php · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · South Dakota (SD)

Law last amended: 2023 (eff. 2023-07-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: S.D. Codified Laws § 32-6B-61 (rate/compensation); S.D. Codified Laws § 32-6B-58 (claims, audit); S.D. Codified Laws §§ 32-6B-58.2, -58.3 (chargeback limits); S.D. Codified Laws § 32-6B-85 (civil action); S.D. Codified Laws § 32-6B-59 (department injunction)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 32-6B-61
Mfr-backed service contract	**Not addressed**	-	§ 32-6B-58
CPO warranty	**Not addressed**	-	§ 32-6B-58
Independent service contract	**Not addressed**	-	§ 32-6B-61

Hourly rate: Floor: the hourly rate 'may not be less than the rate charged by the dealer for like service to nonwarranty customers'. The manufacturer 'shall rely on the vehicle dealer's written schedule of hourly labor rates'. No transaction-by-transaction proof may be required. There is no repair-order count or submission formula.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Written notice of disapproval within the 30-day period (no statement of reasons required by text).	§ 32-6B-58
Payment	30 days after approval. Dealer filing deadline: Silent. Claims rejected for technical reasons may be put into proper form; a claim resubmitted 'within thirty days after the receipt of t…	
Chargebacks	12 months; fraud: 2 years from actual or constructive notice of the facts constituting…. Chargeback only of 'unsubstantiated' claims (§ 58); no chargeback of a paid/approved claim if repair was covered, corrected the defect, was documented, and followed reasonable written requirements known before the claim (§ 58.2); chargeback allowed only if fa…	§ 32-6B-58; see §§ 32-6B-58.2, -58.3
Rate resubmission	Silent. Sample: No statutory labor-rate sample. Excluded: none listed.	§ 32-6B-61
Mfr response	Silent; no response = approved: no rule in statute. Challenge:	
Penalties	Dealer injured by a violation of §§ 32-6B-45 to -83 may sue to enjoin (no need to prove irreparable injury) and recover actual damages, costs, disbursements and reasonable attorney fees, notwithstanding any agreement or waiver. Department of Revenue may seek a temporary/permanent injunction in circuit court, without bond (§ 32-6B-59)….	S.D. Codified Laws §§ 32-6B-85, 32-6B-59
Audit procedures	Audit climate score 27/100 (Moderate restrictiveness; chargeback limits 27/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 32-6B-58): "shall pay all claims made by a vehicle dealer for the labor and parts within thirty days following their approval. The franchisor, component manufacturer, or manufacturer shall either approve or disapprove the claim within thirty days after its receipt."*
Chargebacks *(§ 32-6B-58; see §§ 32-6B-58.2, -58.3): "has the right to audit any vehicle dealer claim for a period of one year after the claim is paid to the dealer and to charge back to the new vehicle dealer the amount of any unsubstantiated claim."*
Rate *(§ 32-6B-61): "shall rely on the vehicle dealer's written schedule of hourly labor rates and parts and may not obligate any vehicle dealer to engage in unduly burdensome documentation thereof"*
Factory time *(§ 32-6B-61): "Time allowances for diagnosis and performance of warranty work and service shall be adequate for the work to be performed. The hourly labor rate paid to the dealer for warranty services may not be less than the rate charged…"*

Notes

No 'deemed approved' rule for a late original decision: § 58 requires a decision in 30 days, but the only deemed-approval language covers a claim 'resubmitted ... within thirty days after the receipt of the claim' (ambiguous drafting). Same claim/audit terms apply to component manufacturers and to separately warranted engines/transmissions/rear axles on commercial medium/heavy-duty vehicles at any authorized repair facility (§ 32-6B-58.1). Incentive audits limited to 1 year (§ 32-6B-69.1). Time allowances must be 'adequate' (not 'reasonable and adequate'). Parts floor = current retail rate.

Source: official · https://sdlegislature.gov/Statutes/32-6B-61 (full chapter via https://sdlegislature.gov/api/Statutes/32-6B.html?all=tru… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Tennessee (TN)

Law last amended: 2021 (eff. 2021-07-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Tenn. Code Ann. § 55-17-121; Tenn. Code Ann. § 55-17-114(c)(18) (license ground); Tenn. Code Ann. § 55-17-117 (civil penalty, injunction); Tenn. Comp. R. & Regs. 0960-01-.03 (claims, audits, parts retention); Tenn. Comp. R. & Regs. 0960-01-.04 (computation of warranty charges); Tenn. Comp. R. & Regs. 0960-01-.05 (labor-rate request response)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 55-17-121(b); paid hours: Tenn. Comp. R. & Regs. 0960-01-.04
Mfr-backed service contract	**Not addressed**	-	§ 55-17-121(d)(1)
CPO warranty	**Not addressed**	-	§ 55-17-121(d)(2)(A)
Independent service contract	**Not addressed**	-	§ 55-17-121(c)

Hourly rate: The warranty hourly rate may not be less than 'the dealer's retail labor rate for similar repairs' unless the manufacturer shows the Motor Vehicle Commission that the rate is 'improper in light of all economic circumstances'. The dealer may not charge more than its posted retail labor rate. Dealers file sworn labor-rate statements with the commission. The 100-RO/90-day submission in (d)(2)(C) covers parts markup only.

Audit fields

Field	Rule	Pinpoint
Claim decision	60 days; late claim deemed approved: Yes. Written notice to the dealer, within 60 days of receipt, that the claim is rejected and the reason. Approved or deemed-approved claims must be paid 'promptly' (no day count).	Tenn. Comp. R. & Regs. 0960-01-.03(1)(a)
Payment	Silent. Dealer filing deadline: Within 30 days after the warranty repair or service is completed.	
Chargebacks	12 months; fraud: None stated (rule has no fraud exception). MVC rule (not statute): warranty and sales-incentive claims may be reviewed, audited and disallowed only within 12 months after payment and only for good cause. After a 'full and fair' incentive audit, the chargeback is reduced by any different payment or ben…	Tenn. Comp. R. & Regs. 0960-01-.03(1)(a)-(b)
Rate resubmission	Silent. Sample: No statutory labor-rate sample. Excluded: none listed.	§ 55-17-121(b); see (a), (c), (d)(2)(C)
Mfr response	30 days; no response = approved: no rule in statute. Challenge: Manufacturer must show the Commission the dealer's retail labor rate is 'improper in light of all economic circumstances'. Forum: Tennessee Motor Vehicle Commission.	§ 55-17-121(b)
Penalties	None express for warranty pay in Part 1; parts-markup denial may be appealed to the Commission (§ 55-17-121(d)(2)(C)(ii)). Civil penalty $100-$5,000 per day or per act of violation (§ 55-17-117(a)); Commission may deny/suspend/revoke a manufacturer's license for unfair discrimination among franchisees in warranty reimbursement (§ 55-17…	Tenn. Code Ann. §§ 55-17-114(c)(18), 55-17-117
Audit procedures	Audit climate score 7/100 (Low restrictiveness; chargeback limits 7/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(Tenn. Comp. R. & Regs. 0960-01-.03(1)(a)): "All such claims for warranty repairs or servicing properly submitted shall be deemed approved and shall be promptly paid, unless within sixty (60) days after such claims are received"*

Chargebacks *(Tenn. Comp. R. & Regs. 0960-01-.03(1)(a)-(b)): "may, within twelve (12) months after the payment of a warranty claim, review its action, audit the submitting dealer's records and disallow the claim for good cause."*

Rate *(§ 55-17-121(b); see (a), (c), (d)(2)(C)): "In no event shall a manufacturer or distributor pay to its dealers a labor rate per hour for warranty repairs or servicing less than the dealer's retail labor rate for similar repairs"*

Factory time *(§ 55-17-121(b); paid hours: Tenn. Comp. R. & Regs. 0960-01-…): "In no event shall a manufacturer or distributor pay to its dealers a labor rate per hour for warranty repairs or servicing less than the dealer's retail labor rate for similar repairs"*

Notes

Official code is Lexis-only; statute text read from Justia 2025 (history line confirms no amendment after 2021). The statute has no claim deadlines, deemed approval, audit window or chargeback limits; those come from Motor Vehicle Commission Rule 0960-01-.03 (claims, 12-month audit window, parts retention). Rule .04 sets paid hours (manual hours plus actual diagnostic hours) and Rule .05 a 30-day written response to labor-rate requests. Rules read on Cornell LII and Justia (current through 6/26/2025); the official SOS rules PDF (rev. 9/15/2025) returned 403, and the notice for that revision cites only rule .14 (license fees). § 55-17-114(c)(12)'s 'reasonable time' rule covers prior-model-year inventory payments only.

Source: mirror · https://law.justia.com/codes/tennessee/2025/title-55/chapter-17/part-1/section-55-17-121/ (mirror; official T.C.A. is L… · Confidence: medium. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Texas (TX)

Law last amended: 2001 (eff. 2003-06-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Tex. Occ. Code § 2301.402 (rate); § 2301.403 (adjustment/protest); § 2301.404 (time for payment); § 2301.405 (chargeback/audit); §§ 2301.651, 2301.801-.805 (sanctions)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	§ 2301.402(b)
Mfr-backed service contract	**Not addressed**	-	§ 2301.402(a)
CPO warranty	**Not addressed**	-	§ 2301.402(a)
Independent service contract	**Not addressed**	-	§ 2301.401(a)(1)–(2)

Hourly rate: The dealer must be paid at least 'the amount the dealer charges a retail customer for similar nonwarranty work', using the greater of (1) the average labor rate on 100 sequential nonwarranty ROs or (2) the average over 90 consecutive days, both within the preceding 6 months and excluding routine maintenance. Dealers request adjustments by certified mail. The manufacturer has 60 days to respond, then the dealer can protest to the Board. Adjustments are limited to one a year.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Written notice of the reasons for disapproval.	§ 2301.404(b); payment within 30 days of approval § 2301.40…
Payment	30 days after approval. Dealer filing deadline: Silent.	
Chargebacks	12 months; fraud: No time limit if manufacturer has reasonable grounds to suspect fraud. Audit window runs from claim SUBMISSION (not payment). Chargeback only if manufacturer shows claim false/fraudulent, repair not properly performed or unnecessary, or dealer failed to substantiate per requirements enforceable under § 2301.401 when filed. Manuf…	§ 2301.405(b); grounds § 2301.405(a)
Rate resubmission	Once a year, except by agreement of the parties. Sample: 100 ROs or 90 days (sample with the higher rate); ROs <= 180 days old. Excluded: Routine maintenance.	§ 2301.402(c); frequency § 2301.403(f); request § 2301.403(…
Mfr response	60 days; no response = approved: no rule in statute. Challenge: On protest, Board may uphold disapproval or non-response only if manufacturer proves by a preponderance that it was reasonable; otherwise Board orders the requested rate. Forum: Protest to the Board of the Texas Department of Motor Vehicles (§ 230….	§ 2301.403(b); protest and burden § 2301.403(c)-(e)
Penalties	Rate protest to the Board (§ 2301.403). DTPA-based damages action under § 2301.805 covers violations of Subchapter J and §§ 2301.351-.354/.357, not expressly Subchapter I (warranty). Board civil penalty up to $10,000 per violation, each day a separate violation (§ 2301.801); license denial, revocation, suspension, probation or repriman…	Tex. Occ. Code §§ 2301.403, 2301.651, 2301.801, 2301.802, 2301.804, 2…
Audit procedures	Audit climate score 15/100 (Low restrictiveness; chargeback limits 15/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 2301.404(b); payment within 30 days of approval § 2301.40…): "A claim that is not disapproved before the 31st day after the date of receipt is considered approved."*
Chargebacks *(§ 2301.405(b); grounds § 2301.405(a)): "A manufacturer or distributor may not audit a claim filed under this subchapter after the first anniversary of the date the claim is submitted unless the manufacturer or distributor has reasonable grounds to suspect that the claim was fraudulent."*
Rate *(§ 2301.402(c); frequency § 2301.403(f); request § 2301.403(…): "the manufacturer or distributor shall use the greater of: (1) the average labor rate charged during the preceding six months by the dealer on 100 sequential nonwarranty repair orders, exclusive of routine maintenance"*
Factory time *(§ 2301.402(b)): "A manufacturer or distributor may not pay or reimburse a dealer an amount of money for warranty work that is less than the amount the dealer charges a retail customer for similar nonwarranty work."*

Notes

The 'greater of' test favors the dealer. No time-allowance standard; § 2301.401(b) makes manufacturer warranty requirements unenforceable unless reasonable. Claim/payment rules also cover preparation-and-delivery claims.

Source: official · https://statutes.capitol.texas.gov/Docs/OC/htm/OC.2301.htm (read via Legislature file server https://tcss.legis.texas.g… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Utah (UT)

Law last amended: 2023 (eff. 2023-05-03) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Utah Code § 13-14-204; Utah Code § 13-14-201(1)(gg), (jj) (audit protest/mediation; cost recovery); Utah Code §§ 13-14-106, -107, -308 (enforcement/remedies)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 13-14-204(2)(b); see (1)(c)
Mfr-backed service contract	**Not addressed**	-	§ 13-14-204(3)(b)(i)
CPO warranty	**Not addressed**	-	§ 13-14-204(3)(b)(i)
Independent service contract	**Not addressed**	-	§ 13-14-204(3)(a)(ii)(C)

Hourly rate: Retail labor rate = total labor charges on the submitted qualified repairs ÷ total hours in those repairs. The dealer submits 100 sequential qualified-repair ROs or 90 consecutive days, whichever gives fewer ROs, all within 180 days. The rate takes effect 30 days after submission unless the franchisor objects or asks for extra ROs (the 30 days before or after). Changes are limited to one per 12 months, and payment must start within 15 days of the effective date.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Must be 'specifically disapproved' in writing; denial allowed only if nonwarranty/nonrecall repair, lack of material documentation, material noncompliance with specific substantive program terms, or bona fide belief on competent evidence of intentional falsit…	§ 13-14-204(6)(a)-(b); denial grounds (8)
Payment	30 days after approval. Dealer filing deadline: Silent.	
Chargebacks	6 months; fraud: Time limits do not preclude chargebacks for any fraudulent claim prev…. Written/automated notice of amount and reason; dealer has 30 days to explain/cure; no chargeback for nonmaterial clerical errors; must rest on specific instances of material noncompliance; no extrapolation from samples ((9)(c)-(d)). Audits 'on a reasonable ba…	§ 13-14-204(9)(a), (c)-(e); § 13-14-201(1)(gg)
Rate resubmission	Once in a 12-month period (labor rate and parts markup each). Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Routine maintenance, Tires, Alignments, Government, Insurance-paid, Service-contract paid, Discounted / promotional, Internal, Accessories, State inspections, Prep / reconditioning, Goodwill, Warranty / recall, Other (see text).	§ 13-14-204(3)(c)-(h); exclusions (3)(a)(ii)
Mfr response	30 days; no response = approved: Yes. Challenge: Written objection to the 'material accuracy' of the rate; or, if submission is 'substantially higher' than current warranty rate, request supplemental ROs (30 days before/after) and propose an adjusted rate using the same rules, formula and exclusions. Forum: Not specified in § 204. Request for agency action before the Departme….	§ 13-14-204(3)(e)
Penalties	Franchisee private right of action for actual damages and reasonable attorney fees (§ 13-14-308(1)); adjudicative proceeding by request for agency action, with costs incl. reasonable attorney fees apportioned (§ 13-14-107). Executive director may issue cease-and-desist order and administrative fine after hearing (§ 13-14-106(1)); depar…	Utah Code §§ 13-14-106, 13-14-107, 13-14-308
Audit procedures	Audit climate score 76/100 (Very high restrictiveness; chargeback limits 71/75 + process and oversight 5/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: yes; response period: 30 days; internal appeal: no; held pending appeal: yes; extrapolation: prohibited; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 13-14-204(6)(a)-(b); denial grounds (8)): "Any claim not specifically disapproved of in writing within 30 days after the receipt of the form is considered to be approved and payment shall be made within 30 days."*

Chargebacks *(§ 13-14-204(9)(a), (c)-(e); § 13-14-201(1)(gg)): "Any charge back for a warranty part or service compensation, recall repair compensation, or service incentive is only enforceable for the six-month period immediately following the day on which the franchisor makes the payment"*

Rate *(§ 13-14-204(3)(c)-(h); exclusions (3)(a)(ii)): "whichever of the following produces the fewer number of repair orders, all of which must be for repairs made no more than 180 days before such submission"*

Factory time *(§ 13-14-204(2)(b); see (1)(c)): "Time allowances described in Subsection (1) for the diagnosis and performance of warranty work and service shall be reasonable and adequate for the work to be performed."*

Notes

Rate challenge is limited to material accuracy (no general reasonableness test). RV franchisee parts floor = cost + 20% ((3)(b)(ii)). Time allowances set by franchisor must be 'reasonable and adequate' ((2)(b)). § 13-14-201(1)(jj) bars surcharges to recover warranty costs. Chapter does not apply to licensed direct-sale manufacturers (§ 13-14-108).

Source: official · https://le.utah.gov/xcode/Title13/Chapter14/13-14-S204.html (version C13-14-S204_2023050320230503, effective 5/3/2023) · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Virginia (VA)

Law last amended: 2025 (eff. 2025-07-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Va. Code Ann. § 46.2-1571(A), (B)(5), (F); Va. Code Ann. § 46.2-1573 (hearings, civil penalties); Va. Code Ann. § 46.2-1573.01 (attorney fees); Va. Code Ann. § 46.2-1507 (civil penalty)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	§ 46.2-1571(A)(1)
Mfr-backed service contract	**Conditional**	Statute silent on time / not established	§ 46.2-1571(A)(1)
CPO warranty	**Conditional**	Statute silent on time / not established	§ 46.2-1571(A)(1)
Independent service contract	**Not addressed**	-	§ 46.2-1571(A)(1)

Hourly rate: Compensation must be at least 'the amounts charged by the dealer ... to retail customers for nonwarranty service'. Increases are requested in writing and based on 100 consecutive ROs or all ROs over a 90-day period, 'whichever occurs first'. Only retail ROs count; menu pricing, internal work, group or special-event discounts and insurance repairs are excluded.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Rejected in writing for stated reasons; denial only for good cause (e.g., nonwarranty repair, lack of material documentation, fraud, misrepresentation); failure to meet claim-processing requirements is not grounds if reasonable documentation substantiates the…	§ 46.2-1571(A) (unnumbered paragraph after A.6)
Payment	30 days after submission. Dealer filing deadline: Silent.	
Chargebacks	6 months; fraud: Limits do not apply if manufacturer has 'reasonable cause' (bona fide…. Window runs from the date of the claim (rental-reimbursement claims: 6 months from payment of the related repair claim). No collection until 40 days after final notice following internal processes; dealer may petition the Commissioner within 30 days, and a pe…	§ 46.2-1571(A) (paragraph after A.6); collection stay § 46….
Rate resubmission	Silent. Sample: 100 ROs or 90 days (fewer of the two samples). Excluded: Discounted / promotional, Internal, Insurance-paid.	§ 46.2-1571(A)(3); retail definition (A)(2)
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Forum: Commissioner of the Department of Motor Vehicles hearing (petition wi….	§ 46.2-1571(F); § 46.2-1573(A)
Penalties	Commissioner hearing with manufacturer burden (§§ 46.2-1571(F), 46.2-1573(A)); circuit court award of reasonable attorney's fees and costs after a Commissioner finding of violation (§ 46.2-1573.01). Civil penalty up to $1,000 per day of noncompliance with a Commissioner decision (§ 46.2-1573(E)); Board civil penalty up to $1,000 per vi…	Va. Code Ann. §§ 46.2-1571(F), 46.2-1573, 46.2-1573.01, 46.2-1507
Audit procedures	Audit climate score 56/100 (Very high restrictiveness; chargeback limits 56/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 46.2-1571(A) (unnumbered paragraph after A.6)): "Claims for dealer compensation shall be paid within 30 days of dealer submission or within 30 days of the end of an incentive program or rejected in writing for stated reasons."*
Chargebacks *(§ 46.2-1571(A) (paragraph after A.6); collection stay § 46.…): "Any chargebacks for recall or warranty parts or service compensation and service incentives shall only be for the six-month period immediately following the date of the claim"*
Rate *(§ 46.2-1571(A)(3); retail definition (A)(2)): "shall be requested by the dealer in writing, shall be based on 100 consecutive repair orders or all repair orders over a 90-day period, whichever occurs first."*
Factory time *(§ 46.2-1571(A)(1)): "Compensation of a dealer for recall or warranty parts, service, and diagnostic work shall not be less than the amounts charged by the dealer for the manufacturer's or distributor's original parts, service, and diagnostic work to retail customers"*

Notes

2025 ch. 558 (and ch. 546) struck the clause deeming dealer-rate compensation 'reasonable due to the substantial number of repair orders reviewed, unless the manufacturer can show that the amounts are not reasonable' (strike-through confirmed in enrolled PDF), so the statute now states no rate-challenge standard. 2025 also added: diagnostic time includes technician time communicating with manufacturer technical assistance; rental-reimbursement claims in 30-day increments with 6-month audit; recall-part pricing at highest price in prior 12 months; recall parts returnable within 12 months. No rate-submission response deadline or frequency limit. No compensation rule for residential-use RV components.

Source: official · https://law.lis.virginia.gov/vacode/title46.2/chapter15/section46.2-1571/ · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Vermont (VT)

Law last amended: 2021 (eff. 2021-06-07) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Vt. Stat. Ann. tit. 9, § 4086; 9 V.S.A. § 4097(9) (warranty-reimbursement discrimination); 9 V.S.A. §§ 4099, 4100b (remedies/Board)
Flagged state.

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 4086(b); see (a)
Mfr-backed service contract	**Not addressed**	-	§ 4086(a)
CPO warranty	**Not addressed**	-	§ 4086(a)
Independent service contract	**Not addressed**	-	§ 4086(c)

Hourly rate: The hourly rate may not be less than the dealer's rate to customers for nonwarranty service. Labor is paid 'at the retail rate customarily charged', provided the nonwarranty labor rate is 'routinely posted in a place conspicuous' to service customers. The dealer's retail amounts are presumed fair. The manufacturer can rebut by comparison with at least 4 other same-line or competing-line dealers nearby. The 100-RO/60-day method covers parts markup only.

Audit fields

Field	Rule	Pinpoint
Claim decision	45 days; late claim deemed approved: Yes. Must be 'specifically disapproved in writing' within 45 days of receipt.	§ 4086(e)
Payment	45 days after approval. Dealer filing deadline: Silent.	
Chargebacks	12 months; fraud: Fraudulent claims: 2 years following payment ((e)). Paid claims charged back only if false/fraudulent, repairs improper or unnecessary, or dealer failed to reasonably substantiate per reasonable written procedures or other reasonable means ((e)). If dealer protests to the Transportation Board within 30 days of…	§ 4086(f); see (e), (g), (h)
Rate resubmission	Silent. Sample: No statutory labor-rate sample. Excluded: none listed.	§ 4086(c) (last sentence); floor and presumption § 4086(b)
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Rebut presumption by showing the dealer's amount is unfair and unreasonable in light of the practices of at least four other franchised dealers in the vicinity offering the same or a similar competitive line-make. Forum: Vermont Transportation Board protest (§ 4100b) or Superior Court (§ 4.…	§ 4086(b)
Penalties	Civil action to enjoin and recover actual damages plus costs incl. reasonable attorney's fee (§ 4099), stayed if a party files with the Board within 60 days; Board protest with attorney's fees and costs to prevailing party (§ 4100b(i)); 4-year limitations period (§ 4100d). Transportation Board decisions and orders (§ 4100b(c)); civil p…	9 V.S.A. §§ 4099, 4100b, 4100d; § 4097(9)
Audit procedures	Audit climate score 30/100 (Elevated restrictiveness; chargeback limits 30/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 4086(e)): "any claim not specifically disapproved in writing within 45 days after the receipt shall be construed to be approved and payment must follow within 45 days."*
Chargebacks *(§ 4086(f); see (e), (g), (h)): "A manufacturer shall retain the right to audit warranty claims for a period of one year after the date on which the claim is paid."*
Rate *(§ 4086(c) (last sentence); floor and presumption § 4086(b)): "the manufacturer shall reimburse the new motor vehicle dealer for any labor performed at the retail rate customarily charged by that franchisee for the same labor when not performed in satisfaction of a warranty"*
Factory time *(§ 4086(b); see (a)): "Time allowances for the diagnosis and performance of predelivery and warranty service shall be reasonable and adequate for the work to be performed. The hourly rate paid to a new motor vehicle dealer shall not be less than the rate…"*

Notes

45-day claim clocks (longer than the usual 30). (e) says fraudulent claims can be charged back for 2 years after payment, while (f) sets a 1-year audit period for warranty claims. The retail labor floor covers predelivery as well as warranty labor. Time allowances must be 'reasonable and adequate' ((b)).

Source: official · https://legislature.vermont.gov/statutes/section/09/108/04086 (full chapter https://legislature.vermont.gov/statutes/fu… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Washington (WA)

Law last amended: 2014 (eff. 2014-06-12) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Rev. Code Wash. § 46.96.105; RCW 46.96.260 (civil actions); RCW 46.70.101(2)(j) (manufacturer license sanctions)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Statute silent on time / not established	§ 46.96.105(1)(b)
Mfr-backed service contract	**Not addressed**	-	§ 46.96.105(1)
CPO warranty	**Not addressed**	-	§ 46.96.196(3) (secondary-products rule only)
Independent service contract	**Not addressed**	-	§ 46.96.105(1)

Hourly rate: Labor and diagnostic work, plus manufacturer-required documentation work, are paid at 'the rates charged by the dealer to its retail customers for such work'. The manufacturer may refuse an increase only by showing the rate 'unreasonably exceed[s] those of all other' same-line or competing-line dealers in the relevant market area. One increase per calendar year. The 100-RO/90-day method in (1)(a) covers parts markup only.

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Written notice setting forth the reasons the claim was not approved.	§ 46.96.105(2); decision/deemed approval (3)
Payment	30 days after submission. Dealer filing deadline: Within 90 days of the date the work was performed.	
Chargebacks	9 months; fraud: Fraudulent claims: any period in which a fraud action may be commence…. Chargeback only for unsubstantiated, incorrect, or false claims; no cost recovery by reduction, surcharge or other imposition ((4)).	§ 46.96.105(2)
Rate resubmission	One increase per calendar year (labor/diagnostic rate and parts markup each). Sample: No statutory labor-rate sample. Excluded: Discounted / promotional, Insurance-paid, Routine maintenance, Tires, Prep / reconditioning, Other (see text).	§ 46.96.105(1)(c); exclusions (1)(a)(i)-(vii); labor (1)(b)
Mfr response	Silent; no response = approved: no rule in statute. Challenge: Manufacturer must demonstrate the rates 'unreasonably exceed those of all other' franchised dealers in the same relevant market area offering the same or a competitive line. Forum: Department of Licensing adjudicative proceeding (ch. 34.05 RCW; $500….	§ 46.96.105(1)(b)
Penalties	Dealer (or dealer association) may petition DOL for an adjudicative proceeding or sue for actual damages, declaratory relief, injunction, costs and reasonable attorneys' fees if prevailing; court may treble damages for willful violations. Director may deny, suspend or revoke a manufacturer's license and/or assess civil penalties up to…	RCW 46.96.260; RCW 46.70.101(2)(j)
Audit procedures	Audit climate score 14/100 (Low restrictiveness; chargeback limits 14/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 46.96.105(2); decision/deemed approval (3)): "All claims for warranty work for parts and labor made by dealers under this section must be submitted to the manufacturer within ninety days of the date the work was performed."*
Chargebacks *(§ 46.96.105(2)): "The manufacturer has the right to audit claims for warranty work and to charge the dealer for any unsubstantiated, incorrect, or false claims for a period of nine months following payment."*
Rate *(§ 46.96.105(1)(c); exclusions (1)(a)(i)-(vii); labor (1)(b)): "A dealer may not be granted an increase in the average percentage markup or labor and diagnostic work rate more than once in one calendar year."*
Factory time *(§ 46.96.105(1)(b)): "A manufacturer shall compensate a dealer for labor and diagnostic work at the rates charged by the dealer to its retail customers for such work"*

Notes

Only state in this group with a statutory dealer filing deadline (90 days). Schedule of compensation may not fall below an existing dealer's schedule as of June 10, 2010. 2014 c 214 (latest amendment) applies to franchises amended, renewed or entered after June 12, 2014 (2014 c 214 s 9). No time-allowance standard. Recall pay (RCW 46.96.095) uses § 105 rates. Where the warranty agreement requires prior approval, the manufacturer must give it within a reasonable time and no later than 10 days, except in life, health or safety emergencies (WAC 308-66-150(2)).

Source: official · https://app.leg.wa.gov/RCW/default.aspx?cite=46.96.105 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Wisconsin (WI)

Law last amended: 2018 (eff. 2018-04-05) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: Wis. Stat. § 218.0125; Wis. Stat. § 218.0116(1)(km) (license ground); Wis. Stat. § 218.0163 (civil damages)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Negotiated/other	§ 218.0125(3m)(b); rate formula (3m)(c)1.
Mfr-backed service contract	**Conditional**	Negotiated/other	§ 218.0125(3m)(a)
CPO warranty	**Conditional**	Negotiated/other	§ 218.0125(3m)(a)
Independent service contract	**Not addressed**	-	§ 218.0125(3m)(a)

Hourly rate: Effective nonwarranty labor rate = total customer labor charges on qualifying nonwarranty repairs ÷ the hours the manufacturer's warranty time allowances would have allowed for those repairs. Qualifying repairs are those that would be warranty-covered, excluding routine maintenance, taken from 100 sequential ROs or all ROs in 90 days, whichever is less, within 180 days. The manufacturer must start paying within 30 days or give a written dispute stating the rate it considers…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Must be 'specifically disapproved in writing or by electronic transmission' within 30 days.	§ 218.0125(7)
Payment	30 days after approval. Dealer filing deadline: Silent.	
Chargebacks	12 months; fraud: With evidence of fraud, longer audit/chargeback allowed subject to th…. Chargeback only of amounts paid on false or unsubstantiated claims.	§ 218.0125(7)
Rate resubmission	Silent. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old; OEM-hour denominator. Excluded: Routine maintenance, Warranty / recall.	§ 218.0125(3m)(c)1.; sample (4m)(a)
Mfr response	30 days; no response = approved: no rule in statute. Challenge: Pay the rate 'substantiated by the submission'. (The 'not reasonably competitive' defense in sub. (5) is for parts only.) Forum: Not specified in § 218.0125; court action under § 218.0163(1)(a) or l….	§ 218.0125(4m)(b)
Penalties	Licensee may sue for pecuniary loss plus actual costs incl. reasonable attorney fees for violations of § 218.0116(1)(km), without exhausting administrative remedies; treble damages if willful. License may be denied, suspended or revoked for a manufacturer, importer or distributor violating § 218.0125. DOT determinations or licensing ac…	Wis. Stat. §§ 218.0116(1)(km), 218.0163(1)(a), (1m)
Audit procedures	Audit climate score 7/100 (Low restrictiveness; chargeback limits 7/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 218.0125(7)): "If a claim is not specifically disapproved in writing or by electronic transmission within 30 days after the date on which the manufacturer, importer or distributor receives it, the claim shall be considered to be approved"*

Chargebacks *(§ 218.0125(7)): "A manufacturer, importer or distributor retains the right to audit claims for a period of one year after the date on which the claim is paid and to charge back any amounts paid on claims that are false or unsubstantiated."*

Rate *(§ 218.0125(3m)(c)1.; sample (4m)(a)): "by dividing the total customer labor charges for qualifying nonwarranty repairs in the repair orders by the total number of hours that would be allowed for the repairs"*

Factory time *(§ 218.0125(3m)(b); rate formula (3m)(c)1.): "for labor is equal to the dealer's effective nonwarranty labor rate multiplied by the number of hours allowed for the repair under the manufacturer's, importer's, or distributor's time allowances used in compensating the dealer for warranty work."*

Notes

The rate uses an OEM-hour denominator, so it absorbs the gap between retail and warranty time. No statutory frequency limit on resubmissions. Covers work 'required, requested, or approved' by the manufacturer or that it agreed to pay, not only warranty ((3m)(a)). Motorcycles use a separate regime ((2m), (3), (4)): labor at the 'effective labor rate charged all customers'. Promotional/incentive claims (§ 218.0126) have a 2-year audit window.

Source: official · https://docs.legis.wisconsin.gov/statutes/statutes/218/i/0125 · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · West Virginia (WV)

Law last amended: 2024 (eff. 2024-06-05) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-02

Cites: W. Va. Code § 17A-6A-8a; W. Va. Code § 17A-6A-10(b)(19) (audit/chargeback); W. Va. Code §§ 17A-6A-16, -17 (remedies)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 17A-6A-8a(m)(1); see (a)(3), (e)
Mfr-backed service contract	**Not addressed**	-	§ 17A-6A-8a(a)(2)
CPO warranty	**Not addressed**	-	§ 17A-6A-8a(b)(1)
Independent service contract	**Not addressed**	-	§ 17A-6A-8a(b)(2)

Hourly rate: Average labor rate = total labor sales ÷ total hours that generated them, from 100 sequential nonwarranty customer-pay ROs or 90 consecutive days, within 180 days. The rate is presumed reasonable and takes effect 30 days after the manufacturer approves it; if the manufacturer does not rebut within 30 days, it is deemed approved. The manufacturer can rebut only for fraud, inaccuracy, noncompliance, or unreasonableness against all other same-line dealers in an economically sim…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Written notice of the grounds for disapproval.	§ 17A-6A-8a(k)
Payment	30 days after approval. Dealer filing deadline: Silent. No denial of an otherwise valid, properly submitted claim for clerical error or omission, incidental non-material processing fail…	
Chargebacks	12 months; fraud: Limit does not apply where a claim is fraudulent. Window runs from when the dealer made the claim. Chargeback only if false/fraudulent, repairs improper/unnecessary, or failure to reasonably substantiate per reasonable written requirements in effect when claim arose ((k)); no chargeback until notice and a 30…	§ 17A-6A-10(b)(19); § 17A-6A-8a(c), (k)
Rate resubmission	Demand (by dealer or manufacturer) not within 12 months of the last labor-rate declaration. Sample: 100 ROs or 90 days (dealer chooses); ROs <= 180 days old. Excluded: Discounted / promotional, Routine maintenance, Tires, Prep / reconditioning, Other (see text).	§ 17A-6A-8a(d)-(f), (i)
Mfr response	30 days; no response = approved: Yes. Challenge: Rate presumed reasonable; manufacturer must show it is (1) fraudulent or inaccurate, (2) not established per the section, or (3) unreasonable vs. all other same line-make dealers in an economically similar area of the state. Forum: Dealer civil action in circuit court of its county within 90 days aft….	§ 17A-6A-8a(g)
Penalties	Dealer action for damages and equitable relief; prevailing dealer may recover up to treble damages plus reasonable attorney's fees; declaratory judgment; dealer-association standing; injunction without bond. None. Manufacturers are not licensed under ch. 17A art. 6 (§ 17A-6-3), and DMV license sanctions (§ 17A-6-18) contain no warranty…	W. Va. Code §§ 17A-6A-16, 17A-6A-17
Audit procedures	Audit climate score 33/100 (Elevated restrictiveness; chargeback limits 27/75 + process and oversight 6/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: 30 days; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 17A-6A-8a(k)): "shall be paid by the manufacturer within 30 days after approval and shall be approved or disapproved by the manufacturer within 30 days after receipt. When any claim is disapproved, the dealer shall be notified in writing"*

Chargebacks *(§ 17A-6A-10(b)(19); § 17A-6A-8a(c), (k)): "Audit any dealer in this state for warranty parts or warranty service compensation ... more than 12 months after the claim for payment or reimbursement has been made by the dealer."*

Rate *(§ 17A-6A-8a(d)-(f), (i)): "The average labor rate shall be determined by dividing the amount of the dealer's total labor sales by the number of total hours that generated those sales."*

Factory time *(§ 17A-6A-8a(m)(1); see (a)(3), (e)): "The manufacturer shall use time allowances for the diagnosis and performance of the warranty and recall work and services that are reasonable and adequate for the work or services to be performed by a qualified technician."*

Notes

Bars paying on a 'flat-rate figure that is less than what the dealer charges for retail work' ((b)(3)). Dealer's written request to modify a time allowance is 'presumed reasonable' and may not be unreasonably denied ((a)(3), (e)); diagnostic allowance includes time communicating with the manufacturer (2024). Trucks/buses over 26,001 lb GVW: actual retrieval/return time at retail rate, $50 minimum per electronic-tool operation, +3 hours per 24-hour manufacturer-caused hold ((j)). OTA customer-assistance compensation required ((a)(4)). No 'deemed approved' rule for warranty claims (only for rate submissions). Article 6A has no administrative penalty provision. Ch. 17A art. 6 licenses dealers, not manufacturers, and its sanctions (§ 17A-6-18) have no warranty ground. 91 CSR has no warranty, audit or chargeback rules.

Source: official · https://code.wvlegislature.gov/17A-6A-8a/ · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.

WARRANTY ATLAS · Wyoming (WY)

Law last amended: 2025 (eff. 2025-07-01) · Next scheduled change: none found · Last verified: 2026-09-25 · Built 2026-11-02

Cites: Wyo. Stat. Ann. § 31-16-117; Wyo. Stat. Ann. § 31-16-112 (penalty); Wyo. Stat. Ann. § 31-16-103(c) (license sanctions); Wyo. Stat. Ann. § 31-16-124(g) (trailer exemption)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 31-16-117(b); see (a)
Mfr-backed service contract	**Not addressed**	-	§ 31-16-117(e)
CPO warranty	**Not addressed**	-	§ 31-16-117(r)(ii)
Independent service contract	**Not addressed**	-	§ 31-16-117(f)

Hourly rate: The rate is set by mutual agreement or by dealer submission. Rate = total labor charged on qualified ROs ÷ 'total number of hours worked' on those ROs, from 100 sequential qualified ROs or 90 consecutive days, whichever is less, within 180 days. It takes effect 45 days after receipt unless the manufacturer requests more ROs or contests it (material incompleteness, inaccuracy or unreasonableness). A contest goes to 60 days of mediation, then court, where the manufacturer bear…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: Yes. Must be 'specifically disapproved in writing or through electronic communication' within 30 days.	§ 31-16-117(d)
Payment	30 days after approval. Dealer filing deadline: Silent. Claim denied for a specific claim-processing requirement, clerical error or administrative technicality not questioning legitimac…	
Chargebacks	12 months; fraud: 4 years where manufacturer reasonably suspects fraud. Chargeback for unsubstantiated or incorrect claims; fraudulent claims 'as otherwise provided by law'.	§ 31-16-117(d)
Rate resubmission	Once every 12 months unless by mutual agreement. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Internal, Routine maintenance, Accessories, Prep / reconditioning, State inspections, Collision / body / glass, Warranty / recall, Other (see text).	§ 31-16-117(f)-(h), (k), (o), (t)
Mfr response	30 days; no response = approved: Yes. Challenge: Submitted rate is 'materially incomplete, materially inaccurate or materially unreasonable'. Forum: Mandatory mediation (60 days, extendable by mutual agreement), then d….	§ 31-16-117(m)-(q)
Penalties	Rate-dispute civil action after mediation (§ 31-16-117(q)); action for damages and equitable relief by a person injured for refusing to agree to a proposal that would violate the act (§ 31-16-107). Misdemeanor: fine up to $750 and/or up to 6 months' imprisonment per violation (§ 31-16-112); department may deny/suspend/revoke/refuse to…	Wyo. Stat. Ann. §§ 31-16-107, 31-16-112, 31-16-103(c), 31-16-117(q)
Audit procedures	Audit climate score 7/100 (Low restrictiveness; chargeback limits 7/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: no; rate validation: broader or no procedure.	

Statute quotes

Claims *(§ 31-16-117(d)): "Any claim not specifically disapproved in writing or through electronic communication within thirty (30) days after receipt is construed to be approved and payment shall be made within thirty (30) days."*
Chargebacks *(§ 31-16-117(d)): "The manufacturer may audit claims and charge the dealer for unsubstantiated or incorrect claims for a period of one (1) year following payment except where the manufacturer reasonably suspects fraud."*
Rate *(§ 31-16-117(f)-(h), (k), (o), (t)): "A new vehicle dealer's hourly labor rate shall be calculated by dividing the total amount charged for labor for the qualified repair orders submitted ... by the total number of hours worked for the qualified repair orders."*
Factory time *(§ 31-16-117(b); see (a)): "Time allowances for the diagnosis and performance of warranty work and service shall be reasonable and adequate for the work to be performed. The hourly labor rate charged by the dealer for warranty service shall not exceed the hourly labor…"*

Notes

(b) still says the warranty labor rate 'shall not exceed' the nonwarranty rate (worded as a ceiling), 'provided that rate is reasonable'; the 2025 (f)-(q) process is what sets the rate. The formula divides by 'hours worked', while (t)(v)(B) requires ROs to show 'labor hours charged'. Carve-outs ((r)): EV propulsion batteries supplied free get a reasonable handling fee; complete engine/transmission assemblies are paid at cost + 40%. Wyoming statutes skip subsection letters (i) and (l) by drafting convention. Applies to medium/heavy-duty truck component and engine makers ((e)). Since 7/1/2025, non-house-trailer/semitrailer trailer makers are exempt (§ 31-16-124(g)).

Source: official · https://wyoleg.gov/statutes/compress/title31.pdf (current Title 31) and enrolled act https://wyoleg.gov/2025/Enroll/SF0… · Confidence: high. Public-source research summary for audit planning, not legal advice. No company-approved rates. Confirm against the cited statute; escalate disputes to Legal.